

The Ease of **OPERATING SCHOOLS** Index 2026

A Comparative Assessment of
School Regulatory Frameworks
Across Indian States



Animesh Kumar
Shaivy Maheshwari
Nitesh Anand

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Authored by

Dr Animesh Kumar, Shaivy Maheshwari, and Nitesh Anand

Reviewers

Harish Doraiswamy, Project Director, Central Square Foundation

Rahul Ahluwalia, Co-Founder, Foundation for Economic Development

Vardan Kabra, Co-founder, Fountainhead Schools & SR VP ARISE Governing Body

Rohan Joshi, CEO, Ahvaan Trust

Cover Design

Ravi Kumar Yadav, Centre for Civil Society

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Usha Sondhi Kundu

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Interns

Abhimanyu R. Chhibber, Anushka Sharma, Arshiya Gupta, Atibhi Sharma, Geetanshi Meena, Janhavi Banyal, Malavika Panicker, Natasha Choudhury, Navaindu Joshi, Prabhu Prasad Kirtania, Ripudaman Chauhan, Samvardhan Tiwari, Sandeep K. Chetia, Sanyam Mahajan, Udayaditya Banerjee, and Yash Vineesh Bhatia

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For more information and other requests, write to:

Centre for Civil Society

A-69, Hauz Khas, New Delhi - 110016

Phone: +91 11 26537456

Email: research@ccs.in

Website: www.ccs.in | www.studentfirst.in

Justice Sanjay Kumar Dwivedi



HIGH COURT OF JHARKHAND
RANCHI - 834 004

10th June, 2026

Endorsement

In an era where institutions are increasingly measured not only by their outcomes but also by the efficiency, transparency, and accountability of their operations, *The Ease of Operating Index* emerges as a significant and thought-provoking work.

The author has undertaken the commendable task of developing a structured framework that seeks to evaluate and enhance the operational effectiveness of organizations and institutions. By identifying key indicators of governance, compliance, administration, stakeholder engagement, and service delivery, this book provides a practical roadmap for fostering institutional excellence.

What makes this work particularly noteworthy is its ability to simplify complex operational challenges into measurable and actionable parameters. The concept of an 'Ease of Operating Index' has the potential to encourage self-assessment, promote best practices, and strengthen institutional accountability across diverse sectors.

The book reflects a deep understanding of the need for systematic reforms and evidence-based decision-making. It offers valuable insights for administrators, policymakers, educational leaders, corporate managers, and all those entrusted with the responsibility of managing institutions in a rapidly evolving environment.

I am confident that this publication will stimulate constructive dialogue on governance and operational efficiency and will serve as a useful reference for organizations striving to achieve higher standards of performance and public trust.

I congratulate the author for this innovative contribution and extend my best wishes for the success of this important work.


(Justice Sanjay Kumar Dwivedi)
Judge
Jharkhand High Court

KAMAL NAYAN CHOUBEY

SENIOR ADVOCATE
PATNA HIGH COURT

Residence-cum-Office:

“Kamadgiri”, B.S.I.D.C. Colony,
Boring-Patliputra Road,
Opp. A.N. College,
Patna-800 013
Phone Nos. 0612-2261889, 6413022

Day Office:

19, Lawyers' Chambers
Bihar Bar Council Bhawan,
Patna High Court,
Patna 800 028
(Working Days Only)

Ref:

Date: 12 June 26

I congratulate the Centre for Civil Society on the monumental publication of the Ease of Operating School (EoS) Index 2026. The hard work put in by the research team - Dr Animesh, Shaivy and Nitesh deserves special attention for producing a study that combines legal rigour with practical relevance. Incidentally, the privilege of personal experience is confined to Dr Animesh only, but it is a sublime experience to bathe in the confidence of the united efforts of the trio in this magnificent publication, which is pregnant with more future useful publications.

The dedicated authors and the Centre for Civil Society appear to be inspired by the admonition of the Gita “न हि ज्ञानेन सदृशं पवित्रमिह विद्यते” (“*There is nothing in this world as purifying as knowledge*”). The EoS Index 2026 stands as a testament to an unwavering dedication to the pursuit of knowledge, characterised by a steadfast adherence to scholarly integrity and a profound concern for the collective good. Engaging in a thorough exploration of the intricate and frequently disjointed regulatory structures that span various states is indeed a formidable endeavour. The authors have deftly intertwined legal scholarship, policy analysis, and empirical rigour to craft a work that addresses a significant void in the discourse surrounding the governance of school education in India. The publication serves to deepen our comprehension of the regulatory quandaries that educational institutions encounter, whilst simultaneously establishing a robust groundwork for forthcoming inquiries, policy transformations, and informed public discourse. I hold a firm belief that this groundbreaking endeavour shall prove to be an invaluable asset for policymakers, scholars, educators, and the myriad organisations that constitute civil society.

It is with profound sincerity that I extend my warmest regards to the esteemed authors and the Centre for Civil Society, commending them on the fruition of this significant endeavour. May this initiative herald a multitude of similar contributions in the unfolding years ahead.

(Kamal Nayan Chaubey)

Why India's Education System Needs a 1991 Moment

PARTH J. SHAH

Soon we will celebrate the 35th anniversary of India's ground breaking reforms. In 1991, India made a quiet but revolutionary admission: the state is not a good businessman. Decades of license-permit-quota raj had produced scarcity, inefficiency, and stagnation. The liberalisation that followed did not weaken the state, it redirected it. The government stepped back from producing goods and stepped forward as a regulator, and enforcer of fair rules. The results are well known.

We have yet to apply the same logic to education. And the cost of that delay is visible in every classroom.

The Convenient Double Standard

Post-liberalisation India has largely settled the debate about the private sector's role in economic growth. Even the most committed statist no longer argue that the government should occupy the commanding heights of the economy. The consensus is clear: for the production of economic goods, the state's job is to enable – to facilitate, regulate, and enforce contracts – not to produce.

Yet the moment the conversation shifts to social goods like education and healthcare, this consensus evaporates. Suddenly, state production is not only acceptable but necessary. The justification is intuitive: inequality in access to economic goods may be tolerated, but access to education must be equal. Since the market produces unequal outcomes, the argument goes, the state must produce education itself.

This is a reasonable equity concern. It is not, however, a sound efficiency argument. And confusing the two has cost India enormously. The answer is not to abandon the state's role in

education – it is to redefine it around three specific shifts: from controller to regulator, from producer to financier, and from inspector to informer.

From Controller to Regulator

There is a meaningful difference between a controller and a regulator, and it matters enormously in education. A controller decides who can enter the market, what they can charge, how they must operate, and punishes deviation from its own preferences. A regulator sets minimum standards, monitors compliance, and protects the consumer. One suppresses the system, while the other disciplines it.

India's education system is still governed by the controller mindset. Starting a school or college remains a bureaucratic obstacle course. Quality institutions are scarce. The evidence is visible: high tuition fees, large donations, and long admission queues are not signs of greed, they are signs of shortage. Constrained supply meeting aspirational demand. The license-permit-quota raj did not disappear after 1991, it migrated into education.

What the system needs instead is an independent education regulator: an arm's-length body with a clear, bounded mandate. The National Education Policy recognises that quality monitoring cannot sit inside the same department that runs schools. You cannot be both player and referee. The ideal is a fully independent regulator, insulated from political pressure and departmental interest, and that is worth continuing to fight for.

In practice, however, many state governments have assigned regulatory functions to their State Councils of Educational Research and Training (SCERTs). SCERTs are not perfect regulators –

-they are too close to the government, too under-resourced, and too often pulled in multiple directions. But if they are going to serve this function, the question becomes: what can they realistically do well?

The answer is assessment. SCERTs should focus on systematically assessing the learning outcomes of every child in every school - government and private. Not to rank students, schools, districts, or states. Not to produce league tables that shame teachers or trigger administrative panic. This data should be kept deliberately low-stakes. Their sole purpose should be to inform schools and teachers about how their students are actually doing, and then to trust schools to use that information to improve their teaching and learning. Schools that wish to publish their data in a format useful to parents should be free to do so. But the data should not become a weapon, it should remain a mirror.

From Inspector to Informer

The regulator's second role is one of information, not inspection. The traditional model of school inspection - periodic visits, checklists, compliance reports - has produced little evidence of improving school quality anywhere in India. It consumes administrative energy and generates paperwork. What parents actually need is not an inspector's report. They need honest, comparable, accessible information about how schools are performing.

The regulator, whether an independent body or SCERT, should compile and publish information on how schools perform in board examinations and other competitive assessments for entry into colleges. This does not require generating new data. The data already exists. What is missing is a neutral, trusted body that aggregates it, standardises it, and puts it in the public domain in a form that parents can actually use.

Beyond exam results, the regulator should create a standard reporting format, building on the existing UDISE framework, that all schools, government and private, are required to complete

Beyond exam results, the regulator should create a standard reporting format, building on the existing UDISE framework, that all schools, government and private, are required to complete and publish on their own websites.

and publish on their own websites. The regulator compiles this data across all schools and makes it publicly available in one place, in machine-readable format. This would allow parents to compare schools meaningfully, and enable researchers to develop new insights into how India's schools actually function. Transparency of this kind costs relatively little and produces accountability that no inspection regime has managed to deliver.

The regulator, in this conception, is less an enforcer and more an informer - making the system legible to the people it is supposed to serve.

From Producer to Financier

The equity concern at the heart of public education is real and must be taken seriously. But the instrument for addressing it need not be state production. There is a crucial difference between the state financing education and the state producing it. Conflating the two has given India a system that is neither equitable nor efficient.

The reform should happen in two steps. The first is decentralisation within the government school system itself. Today, government school principals operate with far less authority than their counterparts in private

schools. They cannot make basic decisions about how their schools are run, how resources are deployed, or how teaching is organised. The education department controls everything from a distance, with predictably poor results. This must change. Government school principals should have the same operational authority as private school principals. The education department's role should shift to that of a board of trustees or of directors, setting broad expectations, evaluating outcomes, and holding leadership accountable rather than micromanaging daily operations.

The second step is financial autonomy. School funding should be converted into a broadly defined per-student formula allocation that goes directly to the school, giving principals real budgetary authority. Teacher salaries, which represent the largest cost and the most sensitive political variable, can initially continue to be paid directly by the education department. But non-salary resources – for materials, maintenance, programmes, and school-specific needs – should flow to principals to deploy as they see fit. A principal with a budget and accountability for outcomes is a fundamentally different actor than one who must route every request through a distant bureaucracy.

For students who cannot afford private schooling, the state should act as financier – through scholarships, education vouchers, and loans. A poor parent armed with a voucher has real power: the ability to choose the school that best serves their child, rather than accepting whatever the state assigns them. That is genuine equity. Not the hollow promise of a seat in an under-resourced, understaffed government school with no meaningful accountability to the family it is supposed to serve. This new system can initially supplement the 25% seats reserved in private schools and then slowly subsume it.

This combination of autonomous government schools, per-student funding, and demand-side support for the poor allows both private and public sectors to do well for their students. They both

respond to demand, innovate, and compete for students. The state stops trying to be a controller and becomes instead a guarantor of access and a monitor of quality.

The Mindset Shift India Needs

India did not become an economic success story by having the government produce more. It succeeded by redirecting state energy toward what the state can actually do well: set standards, enforce them fairly, fund those left behind by the market, and get out of the way of enterprise.

Education needs the same clarity of thinking. The reforms required are not radical, they are the logical extension of what India already believes about the economy, applied to the classroom.

From controller to regulator. From producer to financier. From inspector to informer.

India's economy had its 1991 moment. Its education system needs it badly and soon.

The Indian Education System: What lies underneath?

DR AMIT CHANDRA

India's ambition to become a developed nation by 2047, Viksit Bharat, will be won or lost in its classrooms. This makes a quiet but seismic shift in Indian school education, almost entirely overlooked in policy circles, impossible to ignore any longer.

Over the past two decades, India's public investment in education has grown substantially. The combined education spend by the Centre and all states rose from ₹94,484 crore in 2005-06, representing 2.88 % of GDP, to ₹8,30,000 crore in 2024-25, or 4.1 % of GDP. Government school teachers grew from 38.6 lakh to 59.1 lakh. Nearly every rupee was spent, and every post was filled with sincerity of intent. And yet, in 2006, 53.1 % of Class 5 children in rural India could read a Class 2 text. By 2024, that number had fallen to 44.8 %. Spending more produces less learning. That is the central, uncomfortable fact of Indian school education today. India's parents noticed before its policymakers did. And they acted.

A System Built by Families, Not the State

In 2005, private unaided schools enrolled 1.57 crore children, just 10.6 % of the total school population. By 2024, that number stood at 9.57 crore, accounting for 38.8 % of all enrolled students. The number of private unaided schools grew from 1.42 lakh to 3.39 lakh. Teachers in these schools expanded from 3.75 lakh to an extraordinary 39.6 lakh, a ten-fold increase achieved without a single government appointment order, without pension liabilities, and without public subsidy.

This is not a story of elite schools capturing wealthy families. Approximately 82 % of private

unaided schools in India charge a monthly fee of less than ₹2,000. These are neighbourhood schools in the community, often a few classrooms in a rented building, serving the children of daily-wage workers, small traders, and first-generation aspirants. Families earning ₹10,000-₹20,000 a month are choosing to spend 7-15% of their income on school fees. That sustained, voluntary, economic sacrifice across crores of households is a democratic verdict, and it is the most important data point in Indian education that no government report leads with.

Meanwhile, the enrollment story tells a truth that official narratives rarely credit to the right source. The proportion of 6-14 year olds in school rose from 93.1 % in 2005 to 98.1 % in 2024, an achievement celebrated as a triumph of public education policy. But the numbers tell a different story. In 2005, government schools held 77.3 % of all enrolled students, 11.45 crore children. By 2024, that share had collapsed to 50.0 %, with 12.35 crore students. Even as public spending on education grew nine-fold and the teacher workforce expanded by over 20 lakh. Government-aided schools tell an equally sobering story, slipping from 9.6 % to 9.0 % of enrollment over the same period. Private unaided schools, meanwhile, increased their share from 10.6 % to 38.8 %, enrolling 9.57 crore children in 2024, up from just 1.57 crore in 2005. A six-fold expansion in absolute numbers. It is the private unaided schools that absorbed the rising tide of educational aspiration and drove India's enrollment rate to near-universal levels. To attribute India's enrollment milestone solely to public policy is to misread the data and to deny credit where it is most consequentially due.

The Problem is not the Schools, but the Rules

And yet, despite their scale and social function, private unaided schools operate in a climate of regulatory uncertainty that would be unacceptable in any other sector with this level of ambition. Across 28 states and 8 union territories, school operators navigate a maze of inconsistent, overlapping, and often archaic requirements on land, infrastructure, teacher qualifications, compensation, recognition, affiliation, and fee revision. A school legally operating in Madhya Pradesh may face insurmountable barriers in Maharashtra. Recognition processes stretch into years. Fee revision approvals are discretionary and opaque. Inspections are unpredictable. The cumulative effect is that the schools most trusted by low-income families are also the most legally precarious.

This is not a minor inconvenience. It is a structural failure. When compliance costs are high and arbitrary, it is the small, lean, genuinely affordable school that suffers most. The regulatory burden falls hardest on those serving the poorest children.

The Case for Ease of Operating Schools

India needs a fundamental reorientation in how it approaches private school regulation from a posture of suspicion and control to one of enablement and accountability. The framework must be grounded in principles of transparency, predictability, proportionality, accountability, and autonomy. Transparent rules, publicly available and consistently applied. Predictable timelines for recognition and renewal, with no room for discretionary delay. Proportionate norms that recognise a 150-student neighbourhood school and a 2,000-student CBSE campus cannot be governed in the same way.

A concrete mechanism to drive this shift would be an Ease of Operating Schools Index – a systematic, annual, state-by-state ranking of how simple or burdensome it is to establish, run, and sustain a private school. India's Ease of Doing Business reforms demonstrated that public rankings create a competitive spirit in state governments to act. The same logic applies here.

India needs a fundamental reorientation in how it approaches private school regulation from a posture of suspicion and control to one of enablement and accountability.

If India is to achieve the dream of Viksit Bharat, we must recognise that human capital is the true currency of growth. Roads, ports, factories, and digital infrastructure are vital, but they will take us only halfway. Our children are our greatest asset. The India of 2047 will be built by the minds we nurture today. Let us therefore commit ourselves to radical reforms that expand choice for students, bring healthy competition among schools and make institutions accountable.

The journey is long, but the destination is worthy. And if we act boldly today, India will become truly Viksit and the knowledge superpower as envisioned in the National Education Policy 2020.

Institutions, Education, and the Enabling State

NITESH ANAND

Every society seeks better educational outcomes. Far fewer ask a more fundamental question: what kinds of institutions make those outcomes possible?

The answer shapes not only its schools, but also its economy and politics. India's educational debate is largely concerned with outcomes. We measure enrolment, literacy, infrastructure, and examination results. We compare states on educational performance and evaluate schools by what they achieve. Yet a prior question receives far less attention. What are the institutional conditions that make educational excellence possible? Before a child enters a classroom, before a teacher begins instruction, and before learning outcomes can be measured, an entire architecture of laws, regulations, approvals, inspections, and administrative procedures determines whether a school can exist, operate, innovate, expand, or even survive. Educational outcomes might be visible, but educational governance is often invisible.

The Republic Beyond the State

This distinction is not merely administrative. It is constitutional. The Constitution of India embodies a commitment to both public purpose and civic initiative. While the state bears important obligations in advancing educational opportunity, as reflected in Article 21A, the Indian constitutional order has never rested on a monopoly conception of educational provision. Instead, it has historically accommodated a pluralistic architecture in which governments, charitable trusts, religious institutions, community organisations, philanthropic actors, and educational entrepreneurs all contribute to the advancement of a common public purpose. Educational pluralism is therefore not a deviation from the constitutional vision; it is one of its defining features.

India's educational history confirms this. Many of its most enduring institutions emerged not from bureaucratic planning but from social initiative. Citizens built schools, communities sustained them, and philanthropy expanded them. Educational progress has often been the result of partnership rather than monopoly.

Gandhi's Swaraj, Tagore's Freedom

The intellectual foundations of this idea run deep. In Hind Swaraj, Mahatma Gandhi argued that freedom meant more than political independence. Swaraj was ultimately about self-governance, the ability of individuals and communities to shape the institutions that govern their lives. Rabindranath Tagore similarly resisted the mechanisation of education. He believed that education should cultivate free and creative minds, not merely produce administrative conformity.

C. Rajagopalachari (Rajaji), later warned against the dangers of the Licence-Permit-Quota Raj. His insight extended beyond economics. Societies do not become more capable simply because they become more regulated. Excessive control often weakens the very initiative upon which progress depends. B.R. Shenoy made a related argument through economics. Knowledge, he observed, is dispersed throughout society. No central authority possesses sufficient information to direct complex human systems effectively.

The Knowledge Problem in Education

This insight reached its fullest expression in Friedrich Hayek's idea of spontaneous order. Complex societies flourish not because they are comprehensively directed, but because individuals and institutions are free to use local knowledge,

adapt to changing circumstances, and discover solutions through experimentation.

Education is a powerful example of this principle. No ministry can fully understand the needs of every child, every family, every neighbourhood, and every school in a country as diverse as India. Educational excellence emerges from the combined efforts of parents, teachers, school leaders, community organisations, philanthropists, social entrepreneurs, and governments acting within an enabling institutional framework.

The Enabling State

The central challenge of educational governance is therefore not the production of rules. It is the design of institutions. This challenge can be understood through a simple framework:

	HIGH Accountability	LOW Accountability
High Freedom	Enabling State	Regulatory Vacuum
Low Freedom	Control State	Dysfunctional State

The objective of good governance is not the absence of regulation. Nor is it the accumulation of controls. It is the creation of an enabling state, one that combines freedom with accountability. An enabling state protects children, enforces transparency, and upholds standards. But it also recognises that educational excellence requires autonomy, diversity, experimentation, and initiative. Unfortunately, regulatory systems often drift toward a different equilibrium. Freedom is rarely extinguished through a single prohibition. More often, it is eroded through the cumulative weight of approvals, renewals, inspections, certifications, and discretionary controls. What begins as oversight gradually becomes micromanagement.

Education’s 1991 Moment

India has seen this story before. The reforms of 1991 were not merely economic reforms. They represented a transformation in the philosophy

An enabling state protects children, enforces transparency, and upholds standards. But it also recognises that educational excellence requires autonomy, diversity, experimentation, and initiative.

of governance. The central lesson was that prosperity could not be commanded into existence through administrative controls. The role of the state had to evolve, from controller to enabler, from gatekeeper to institutional architect. Three decades later, education confronts a similar challenge. The debate is no longer whether non-state actors should participate in schooling. Indian parents have already answered that question. Millions of families have exercised agency in choosing educational institutions they believe serve their children best. The real question is whether our regulatory architecture has evolved to recognise this reality.

Making Freedom Measurable

This is the intellectual foundation of the Ease of Operating Schools Index. The EoOS Index begins with a simple proposition: educational freedom is not merely a philosophical ideal. It is an institutional condition. A school is free when rules are clear, procedures are predictable, information is accessible, compliance is proportionate, arbitrary action is constrained, and institutional autonomy is respected. These conditions are neither abstract nor immeasurable.

The EoOS Index examines the quality of the institutional environment within which schools

Education is a Concurrent List subject, and states possess substantial authority over school regulation. Yet reform requires comparison. What gets measured can be compared. What can be compared can be improved.

operate. In this sense, the Index performs for educational governance what economic freedom indices have done for economic governance. It seeks to make visible the quality of the rules that shape educational enterprise, civic initiative, and institutional innovation by measuring the performance of educational governance itself.

Competitive Federalism for Educational Excellence

At the same time, the Index advances another important constitutional value: competitive federalism. Education is a Concurrent List subject, and states possess substantial authority over school regulation. Yet reform requires comparison. What gets measured can be compared. What can be compared can be improved. By evaluating regulatory frameworks across states, the EoOS Index creates a platform for mutual learning, healthy competition, and evidence-based reform. Its purpose is not to identify winners and losers. Its purpose is to help states build more enabling educational ecosystems.

Making Freedom Reformable

India's aspiration to become a developed nation by 2047 will depend on the quality of

its human capital. But human capital is not produced by expenditure alone. It emerges from institutions that empower individuals, strengthen communities, and enable excellence. For behind every learning outcome lies a governance outcome. Behind every governance outcome lies a set of institutions. And behind every institution lies a choice about freedom. The central question for Indian education in the twenty-first century is therefore not whether schools should be regulated. It is whether our regulatory architecture creates an enabling state, one that trusts citizens, empowers institutions, strengthens civil society, and expands the freedom to educate.

The EoOS Index is an attempt to answer that question through evidence. For what gets measured enters public debate. What enters public debate shapes reform. And what is reformed ultimately shapes the destiny of a nation. What economic freedom did for markets, educational freedom must do for learning, and both begin with the quality of the rules.

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Abbreviations

Art	Article
CBSE	Central Board of Secondary Education
CCS	Centre for Civil Society
CSF	Central Square Foundation
DISE	District Information System for Education
EoOS	Ease of Operating Schools
EWS	Economically Weaker Section
GO	Government Order
ICSE	Indian Certificate of Secondary Education
ISC	Indian School Certificate
MECE	Mutually exclusive and collectively exhaustive
NCERT	National Council of Educational Research and Training
NCTE	National Council for Teacher Education
NEP	National Education Policy 2020
NoC	No Objection Certificate
PTA	Parent Teacher Association
PWD	Persons with Disabilities
RTE	Right to Education Act
RTI	Right to Information
S	Section
SS	Sections
SCERT	State Council of Educational Research and Training.
SMC	School Management Committee
SSA	Sarva Shiksha Abhiyan
SSSA	State School Standards Authority
UDISE+	Unified District Information System for Education Plus

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We are particularly indebted to many school leaders and association representatives who assisted us in identifying, accessing, and verifying the applicable legal and regulatory frameworks governing schools in their respective states. In several instances, they shared government orders, circulars, notifications, and other regulatory documents that were difficult to locate through public sources. Their contributions were invaluable in improving the completeness and accuracy of this legal mapping exercise.

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conceptual foundations, methodology, and policy relevance of the report. We extend special thanks to Rahul Ahluwalia, whose perspectives contributed significantly to the framing, analytical architecture, and overall structure of the Index.

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We thank Atlas Network for supporting our work on improving education governance and expanding educational opportunity in India. We also acknowledge the role of legal research databases, government archives, and public repositories that facilitated access to state laws, rules, regulations, notifications, circulars, and judicial decisions, enabling the systematic collection and verification of regulatory information across states. Select digital and artificial intelligence-assisted tools were used to support information retrieval, document review, and editorial processes. All substantive analysis, methodology, findings, and conclusions were developed, reviewed, and validated.

Transparency and evidence-based reform can be powerful tools for improving education governance. We hope that this analysis contributes to creating a more enabling environment for schools and expands educational opportunities for children across India.

Centre for Civil Society

Executive Summary

India's Next Education Reform Challenge

Much of India's education debate focuses on what happens inside schools. Policymakers discuss learning outcomes, teacher quality, curriculum reform, infrastructure, financing, and educational technology. These are all critical concerns. Yet far less attention is paid to the institutional environment within which schools operate; the rules, regulations, and governance systems that shape whether schools can establish themselves, function effectively, adapt to changing needs, and sustain their educational mission over time.

Before a school can improve learning outcomes, recruit teachers, invest in infrastructure, or serve students, it must first navigate a regulatory framework. Recognition requirements, land and infrastructure norms, reporting obligations, compliance mandates, inspection mechanisms, fee regulations, governance provisions, and administrative procedures collectively determine the conditions under which schools operate. These regulations shape not only how schools are governed, but also what they are capable of achieving.

This question assumes particular importance in contemporary India. Over the past two decades, private unaided schools have emerged as a major pillar of the country's educational ecosystem. Today, they educate nearly four out of every ten students while constituting less than one-quarter of all schools. Their growth has been driven not by government mandate, but by the choices of millions of families seeking educational opportunities for their children. Across metropolitan cities, small towns, and rural communities, private schools have become an indispensable component of India's schooling landscape.

Yet while educational outcomes are routinely measured and compared, educational governance remains largely invisible. We know far more about

how students perform than about the regulatory environments within which schools function. As a result, an important dimension of education reform has remained underexplored. The Ease of Operating Schools (EoOS) Index 2026 has been developed to address this gap.

The EoOS Index is India's first comprehensive comparative assessment of the regulatory environment governing private unaided schools across states. Rather than measuring educational outcomes, the Index measures educational governance. It evaluates the extent to which state-level regulatory frameworks enable schools to establish themselves, operate effectively, mobilise resources, undertake institutional transitions, and exercise autonomy while remaining accountable to public objectives.

Drawing upon a systematic review of state education acts, laws, rules, regulations, and important government orders, notifications, circulars, and other legally operative instruments, the Index assesses 28 states and 2 union territories across six domains of school governance: Regulatory Clarity, Regulatory Compliance, Protection Against Arbitrary Regulatory Action, Financial Sustainability and Resource Mobilisation, School Lifecycle Operations, and Institutional Autonomy.

To the best of our knowledge, this represents one of the first systematic attempts globally to evaluate the ease of operating schools through a comprehensive legal and regulatory lens. In doing so, the Index seeks to bring educational governance into mainstream policy discourse and provide policymakers with a practical framework for regulatory reform.

The purpose of the Index is not to advocate the absence of regulation. Schools perform a vital public function and must remain accountable to

students, parents, and society. The question is not whether schools should be regulated. The question is whether regulation enables schools to fulfil their educational mission.

What the Index Reveals

The findings of the EoOS Index reveal a striking reality: schools in India do not operate within a single regulatory environment. They operate within distinct state-level regulatory ecosystems that vary significantly in their design, quality, and degree of enablement.

The variation observed across states is substantial. Some states have developed comparatively transparent, predictable, and enabling regulatory frameworks that support institutional functioning while maintaining accountability. Others continue to rely on systems characterised by greater complexity, administrative discretion, and limited institutional flexibility. The resulting differences have important implications for how schools are established, governed, financed, and sustained.

At one level, the findings are encouraging. Many states have made notable progress in codifying regulations, formalising procedures, and improving the accessibility of regulatory information. The strongest-performing domain nationally is Regulatory Clarity, suggesting that states have invested considerable effort in defining and communicating regulatory requirements. Schools today generally operate within more structured and visible regulatory systems than they did in previous decades. Yet the findings also reveal a deeper and more consequential reality. **India's school regulatory architecture is considerably more developed in governing schools than in enabling schools.**

The strongest-performing dimensions of the Index relate primarily to defining obligations, monitoring compliance, and administering oversight. The weakest-performing dimensions relate to financial sustainability, institutional adaptability, and operational autonomy. Simply put, states generally perform better in telling

schools what they must do than in creating conditions that allow schools to succeed. This pattern emerges consistently across domains and points towards three structural challenges that characterise school regulation in India.

The Sustainability Deficit: Schools today are expected to satisfy an expanding range of obligations relating to infrastructure, staffing, safety, compliance, reporting, and educational quality. However, the Index finds that regulatory frameworks remain considerably less developed in supporting financial sustainability and resource mobilisation. Across states, regulatory approaches appear substantially more focused on controlling institutional behaviour than on enabling long-term institutional viability. Schools are expected to do more, but often with limited flexibility to mobilise the resources necessary to meet those expectations.

The Adaptability Deficit: Educational institutions are dynamic organisations. They expand, innovate, introduce new programmes, respond to demographic shifts, and evolve to meet changing educational needs. Yet the Index reveals that regulatory frameworks governing institutional transitions remain among the weakest dimensions of school governance nationally. States generally possess detailed frameworks governing school establishment and recognition, but comparatively limited mechanisms supporting institutional evolution. Schools can enter the system more easily than they can adapt within it.

The Trust Deficit: Schools are expected to deliver educational outcomes, maintain standards, comply with regulations, and serve students effectively. Yet many continue to operate within frameworks that provide relatively limited decision-making authority. Institutional autonomy emerges as one of the weakest-performing domains in the Index. This suggests that schools are frequently entrusted with responsibility without being granted corresponding authority. The strongest-performing states demonstrate that accountability

and autonomy can coexist. However, this balance remains uneven across much of the country.

Taken together, these findings reveal a regulatory architecture that is stronger on control than enablement, stronger on compliance than capability, and stronger on oversight than institutional resilience.

Towards an Enabling Regulatory State

The findings of the EoOS Index do not suggest that regulation should be weakened. Rather, they suggest that regulation should be improved. India's educational governance challenge is no longer one of regulatory absence. It is increasingly a question of regulatory design.

Three decades ago, India recognised that prosperity could not be achieved through administrative control alone. The reforms of 1991 transformed the relationship between the state and the economy by shifting the emphasis from control towards enablement. The state did not withdraw from its responsibilities; it redefined them. School education today confronts a similar challenge.

The next generation of education reform will depend not only on curriculum design, public expenditure, technology adoption, or learning assessments. It will also depend on the quality of the institutional environment within which schools operate. The objective is not to choose between accountability and autonomy, or between regulation and flexibility. The objective is to build regulatory systems capable of balancing both. The findings of the Index point towards five principles that should guide this transition.

First, **clarity must replace opacity**. Schools should be able to easily identify, understand, and comply with the rules that govern them.

Second, **predictability must replace discretion**. Regulatory certainty is essential for institutional planning, investment, and long-term sustainability.

Third, **transparency must accompany accountability**. Regulatory systems should support institutions in meeting educational objectives rather than merely monitoring compliance against them.

Fourth, **governance architecture must integrate regulatory neutrality**. Governance architecture must integrate regulatory neutrality. Similar schools should be subject to similar rules, regardless of who operates them.

Finally, **sustainability should be recognised as a legitimate public policy objective**. Educational quality depends not only on standards and oversight, but also on the long-term viability of educational institutions.

These principles align closely with the vision articulated in the National Education Policy 2020, particularly its emphasis on transparency, institutional autonomy, separation of functions, and "light but tight" regulation. The findings of the EoOS Index suggest that this transition has begun, but remains incomplete.

The future of Indian education will depend not only on what schools teach, but also on the institutional environment within which they operate. A regulatory system that combines accountability with autonomy, oversight with flexibility, and public purpose with institutional sustainability can unlock the full potential of India's educational ecosystem. The Ease of Operating Schools Index is an attempt to make those institutional conditions visible. For what gets measured enters public debate, what enters public debate shapes reform, and what is reformed ultimately shapes the future of a nation.

Ease of Operating Schools (EoS) Index 2026– National Scores & Domain wise Ranking

State	EoS 2026 Score (out of 100)	EoS Index 2026 Rank	Regulatory Clarity, Predictability and Accessibility	Regulatory Compliance	Operations without Arbitrary Regulatory Action	Financial Mobilization	School Lifecycle Operations	Institutional Autonomy
Telangana	29.69	1	05	01	17	17	01	01
Haryana	27.66	2	01	19	02	10	01	15
Andhra Pradesh	27.11	3	03	05	24	01	09	02
Bihar	25.63	4	10	09	05	04	09	08
Assam	25.44	5	07	03	15	04	09	05
Jharkhand	24.59	6	06	29	04	15	09	05
Maharashtra	24.17	7	14	28	01	08	28	18
Kerala	24.12	8	02	06	21	17	08	08
Jammu & Kashmir	22.98	9	09	23	16	03	28	05
Punjab	22.79	10	15	10	11	17	01	11
Delhi	21.84	11	08	21	07	07	09	18
Himachal Pradesh	21.42	12	04	24	20	10	09	13
Odisha	21.15	13	12	14	12	23	26	10
Manipur	20.61	14	16	17	03	23	09	18
Madhya Pradesh	20.59	15	27	30	10	10	09	02
Nagaland	20.05	16	26	07	30	23	05	02
Chhatisgarh	19.81	17	28	08	06	17	09	15
Meghalaya	19.33	18	17	02	29	10	09	17
Tripura	19.19	19	11	13	13	23	09	18
Uttarakhand	18.51	20	22	12	23	23	09	11
Rajasthan	18.46	21	21	24	14	09	05	18
Uttar Pradesh	17.93	22	18	27	18	04	09	18
Gujarat	17.91	23	25	22	09	22	05	18
West Bengal	17.24	24	24	16	25	21	28	13
Mizoram	16.90	25	19	26	19	10	09	26
Arunachal Pradesh	16.88	26	20	04	22	23	09	27
Tamil Nadu	16.86	27	29	20	08	16	26	27
Karnataka	16.75	28	23	14	27	02	09	27
Goa	16.24	29	13	17	28	23	04	27
Sikkim	13.98	30	30	10	26	23	09	18

Introduction

A state derives its true value from its citizens.¹ The strength and prosperity of a nation is, in large measure, a reflection of the character, skills, and capabilities of its people. If people are provided with conditions to develop their capabilities, only then can a state fully realise its social and economic potential. Education plays an important role in this process by enabling individuals to realise their potential and participate more meaningfully in society. Schools are among the most important institutions through which the goal of education is realised. For schools to effectively discharge this responsibility, it is important that they function under conditions which allow them a meaningful existence that fosters their autonomy and continuous growth.

Evolution of School Education Governance in India

Since independence, India's school education system has undergone a steady expansion of state involvement through constitutional, legislative, and policy interventions aimed at widening access, improving equity, and standardising educational provision. While these reforms sought to advance important public objectives, they also contributed to the gradual emergence of an increasingly complex regulatory environment governing schools.

The National Policies on Education of 1968 and 1986² laid the foundations for a nationally coordinated approach to schooling, emphasising universalisation, equity, and common standards. India's ratification of the United Nations Convention on the Rights of the Child (UNCRC)³ in 1992 further strengthened the policy commitment towards children's educational entitlements. Programmes such as the District Primary Education Programme (DPEP) and the Sarva Shiksha Abhiyan (SSA)⁴ subsequently expanded the administrative and institutional architecture of school governance through large-scale interventions in planning, financing, monitoring, and educational delivery.

A major constitutional shift occurred with the 86th Constitutional Amendment Act, 2002⁵, which inserted Article 21A into the Constitution and recognised education as a fundamental right for children between six and fourteen years of age. This was followed by the enactment of the Right of Children to Free and Compulsory Education Act, 2009 (RTE Act)⁶, which established a nationwide regulatory framework governing school recognition, infrastructure standards, teacher qualifications, admissions, governance, and compliance requirements. Over time, these mandates were translated into a complex network of state-specific laws, rules, government orders,

¹ John Stuart Mill, On Liberty, 219 (The Project Gutenberg, 2011), available at: <https://gutenberg.org/files/34901/34901-h/34901-h.htm> (last visited on: 11.06.2026); See also, Pritchett Lant, The Rebirth of Education: Schooling Ain't Learning (Brookings Institution Press, 2013) available at: <http://www.jstor.org/stable/10.7864/j.ctt1gpcb8> (last visited on: 12.06.2026).

² Government of India, National Policy on Education, 1986 (Ministry of Human Resource Development, New Delhi, 1986), available at: https://ia600909.us.archive.org/35/items/dli.ernet.15448/15448-National%20Policy%20On%20Education-1986_text.pdf (last visited on: 13.06.2026).

³ United Nations Children's Fund (UNICEF), Convention on the Rights of the Child: Convention Text, available at: <https://www.unicef.org/child-rights-convention/convention-text> (last visited on: 13.06.2026); United Nations Treaty Collection, Convention on the Rights of the Child Status of Ratifications, available at: <https://treaties.un.org> (last visited on: 13.06.2026).

⁴ Ministry of Human Resource Development, Education in the Tenth Plan, available at: <https://www.pib.gov.in/newsite/erelcontent.aspx?relid=21996®=48&lang=2> (last visited on: 13.06.2026). See also, Ministry of Education, Providing Education to All Children, available at: <https://www.pib.gov.in/PressReleasePage.aspx?PRID=1784244®=48&lang=2> (last visited on: 13.06.2026).

⁵ Government of India, The Constitution (Eighty-Sixth Amendment) Act, 2002, Legislative Department, Ministry of Law and Justice, available at: <https://www.legislative.gov.in/static/uploads/2025/07/16970eb1a68d4fe46ac40acd783a6c34.pdf> (last visited on: 13.06.2026).

⁶ Government of India, The Right of Children to Free and Compulsory Education Act, 2009, available at: https://www.indiacode.nic.in/bitstream/123456789/19014/1/the_right_of_children_to_free_and_compulsory_education_act_2009.pdf (last visited on: 13.06.2026).

approvals, inspections, and administrative procedures that continue to shape the day-to-day functioning of schools.

The National Education Policy (NEP) 2020 represents the latest milestone in this evolution. Recognising the challenges posed by fragmented and overlapping regulatory structures, the policy advocates a clearer separation between policymaking, regulation, financing, and service delivery functions. Central to this vision is the establishment of an independent State School Standards Authority (SSSA)⁷ in every state and union territory to create a more transparent, objective, and outcomes-oriented regulatory framework for both public and private schools.

It is within this broader historical and institutional context that the Ease of Operating

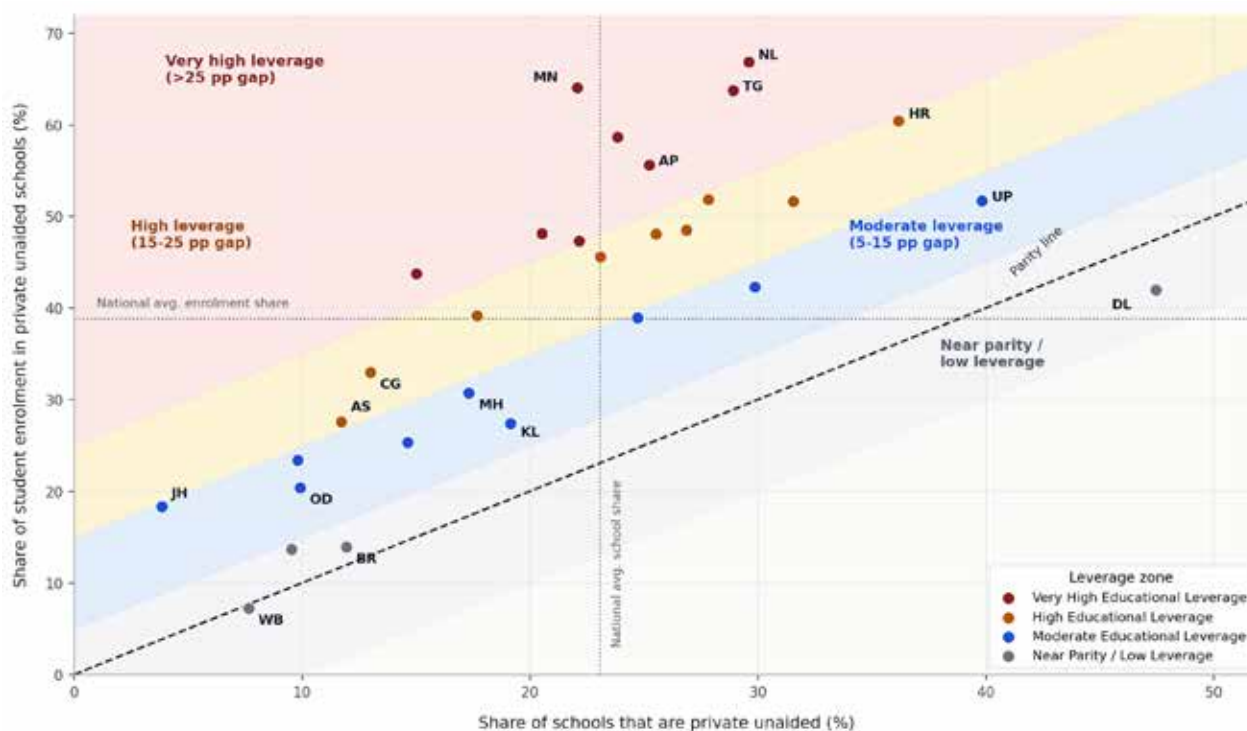
Schools (EoOS) Index has been developed. As states continue to govern schools through diverse regulatory frameworks, the Index seeks to assess the extent to which these frameworks promote clarity, predictability, accountability, and institutional autonomy while minimising unnecessary compliance burdens. In doing so, it brings attention to an often-overlooked dimension of education policy: the relationship between regulation and the effective functioning of schools.

Private Schools in India's Schooling Ecosystem

The significance of the regulatory environment governing schools becomes particularly evident when viewed against the contemporary structure of India's schooling ecosystem. Nationally, private unaided schools account for 23.1 percent of all schools, yet educate nearly 38.8 percent of all

Figure 1: Private School Institutional vs Educational Footprint Across States

States above the parity line educate a disproportionately larger share of students than their share of schools would suggest.



Source: UDISE+Report 2024-25, Tables on the number of schools by management. Calculations: Centre for Civil Society.

⁷ Government of India, National Education Policy 2020, chapter 8.3-8.4, Ministry of Education, available at: https://static.pib.gov.in/WriteReadData/userfiles/NEP_Final_English_0.pdf (last visited on: 13.06.2026)

students⁸. The growth of private schooling over the past few decades has been associated with a range of factors, including rising household incomes, increasing demand for English-medium education, and parental perceptions regarding the quality and responsiveness of available schooling options.⁹ As a result, private schools today constitute an important component of India's schooling ecosystem.

In other words, their educational footprint exceeds their institutional footprint by a considerable margin. As the figure illustrates, this pattern is visible across much of the country, with several states exhibiting an even larger gap between the share of schools and the share of students served by them. This highlights an important reality of Indian education: private schools are not peripheral actors operating at the margins of the system, but a major component of educational provision across the country. Consequently, the regulatory framework governing private schools has implications that extend far beyond the institutions themselves. It influences the educational opportunities available to millions of students, the choices available to parents, and the overall capacity of the schooling ecosystem to respond to changing educational needs. Understanding the ease with which schools can establish, operate, manage resources, and adapt to evolving circumstances is therefore not merely a question of administrative efficiency; it is a question that lies at the heart of how effectively India's school education system functions.

Why Ease of Operating Schools Matters

Discussions on school education in India often focus on enrolment, learning outcomes,

infrastructure, financing, and teacher availability. Comparatively less attention is paid to the regulatory environment within which schools operate. Yet regulation significantly influences a school's ability to establish itself, sustain operations, manage resources, innovate, and respond to the evolving needs of students and families.

The question is not whether schools should be regulated. Regulation serves important public purposes, including safeguarding children, ensuring accountability, maintaining educational standards, and promoting transparency. The more relevant policy question is whether regulatory frameworks enable schools to pursue these objectives effectively. When regulations become excessively complex, fragmented, unpredictable, or burdensome, they may impose significant costs¹⁰ without necessarily contributing to better educational outcomes.

These costs are often difficult to observe. Schools must devote time, personnel, and financial resources to obtaining approvals, managing inspections, fulfilling reporting requirements, securing certifications, and interacting with multiple authorities. While larger institutions may possess the capacity to absorb such burdens, the same requirements can prove particularly challenging for smaller schools and community-led educational institutions. Resources spent navigating regulatory processes are resources that cannot be directed towards teaching, learning, infrastructure, innovation, or student support.¹¹

The implications extend beyond individual schools. Regulatory frameworks influence who can establish

⁸ Ministry of Education, Government of India. (2025). UDISE+ 2024-25 Report, Percentage of Schools Management-Wise, available at: <https://dashboard.udiseplus.gov.in/#/school-reports-1003?id=1003&type=table> (last visited on: 11.06.2026).

⁹ Geeta Gandhi Kingdon, "The private schooling phenomenon in India: A review", 56 (10) The Journal of Development Studies 1795-1817 (2020), available at: <https://doi.org/10.1080/00220388.2020.1715943> (last visited on: 20.03.2026). See, Central Square Foundation, "State of the Sector Report on Private Schools in India" 41 (2020), available at: <https://www.centalsquarefoundation.org/State-of-the-Sector-Report-on-Private-Schools-in-India.pdf> (last visited on: 28.04.2026).

¹⁰ World Bank, Business Ready (B-READY) Methodology Handbook (World Bank Group, 2023), available at: <https://www.worldbank.org/en/businessready> (last visited on: 13.06.2026).

¹¹ Organisation for Economic Co-operation and Development (OECD), OECD Regulatory Compliance Cost Assessment Guidance (OECD Publishing, 2014), available at: <https://doi.org/10.1787/9789264209657-en> (last visited on: 13.06.2026).

schools, how schools are governed, the degree of autonomy available to educational leaders, and the conditions under which institutions can grow and adapt. Excessive compliance burdens may discourage the establishment of new schools, constrain the expansion of existing institutions, and limit the diversity of educational models available to families. Similarly, restrictions affecting financial sustainability, institutional decision-making, or operational flexibility may reduce a school's ability to respond to local needs and improve educational quality.

These considerations assume particular significance in the Indian context, where private schools educate a substantial share of the country's students. The effectiveness of the broader schooling ecosystem therefore depends not only on educational objectives, but also on the institutional conditions under which schools are expected to achieve them.¹² Regulatory frameworks influence educational access, parental choice, organisational sustainability, and the capacity of schools to innovate and evolve. The quality of regulation thus becomes an important determinant of the vitality and responsiveness of the schooling ecosystem itself.

The Ease of Operating Schools (EoOS) Index has been developed to examine this often-overlooked dimension of education policy. Rather than evaluating educational outcomes, the Index assesses the regulatory frameworks governing schools across India's states and union territories. Through a systematic examination of regulatory clarity, compliance requirements, safeguards against arbitrary action, financial mobilisation, school lifecycle operations, and institutional autonomy, it seeks to identify the extent to which regulations facilitate, or constrain, the effective functioning of schools.

The Index is therefore not an assessment of whether regulation exists, but of how regulation operates. By benchmarking states and identifying areas of regulatory friction, it aims to contribute to a more evidence-based discussion on school governance and support the development of regulatory frameworks that are transparent, predictable, proportionate, and conducive to educational provision.

Need for Comparative Analysis

While school education is guided by a common constitutional and policy framework, the regulatory environment governing schools is shaped largely at the state level. States determine many of the rules, procedures, approvals,¹³ and administrative processes that influence how schools establish themselves, operate, manage resources, and undertake institutional changes. As a result, schools pursuing similar educational objectives often encounter very different regulatory environments depending on the jurisdiction in which they operate.

Understanding these differences is important because regulation influences the conditions under which educational provision takes place. Some states have adopted relatively transparent procedures, clearly defined approval processes, accessible regulatory information, and stronger safeguards against arbitrary action. Others continue to rely on more fragmented systems characterised by multiple approvals, higher compliance burdens, or greater administrative uncertainty. Comparing these approaches makes it possible to identify both regulatory bottlenecks and emerging good practices.

The value of such comparison lies not in ranking states for its own sake¹⁴, but in generating

¹² Lant Pritchett, *The Rebirth of Education: Schooling Ain't Learning* (Center for Global Development, 2013), available at: <http://www.jstor.org/stable/10.7864/j.ctt1gpcb8> (last visited on: 13.06.2026). See also, World Bank, *World Development Report 2017: Governance and the Law* (World Bank Group, 2017), available at: <https://www.worldbank.org/en/publication/wdr2017> (last visited on: 13.06.2026).

¹³ Government of India, *The Constitution of India, Seventh Schedule, List III (Concurrent List), Entry 25*. See also, Government of India, *National Education Policy 2020*, Ministry of Education, available at: https://static.pib.gov.in/WriteReadData/userfiles/NEP_Final_English_0.pdf (last visited on: 13.06.2026).

evidence for policy learning and improvement. A comparative assessment provides policymakers, researchers, school operators, and other stakeholders with a clearer understanding of how different regulatory choices shape the operating environment for schools. By benchmarking states against a common framework, the Ease of Operating Schools (EoOS) Index seeks to facilitate a more informed discussion on school governance and contribute to the development of regulatory systems that are transparent, predictable, proportionate, and supportive of educational provision.

Purpose of the Report

The purpose of this report is to systematically assess the regulatory environment governing private schools across India's states and union territories. Through the Ease of Operating Schools (EoOS) Index, the report examines how state-level laws, rules, and administrative procedures shape the conditions under which schools establish themselves, operate, manage resources, and undertake institutional changes. By providing a comparative assessment of these regulatory environments, the report seeks to contribute to a more informed discussion on school governance and regulatory reform.

¹⁴ NITI Aayog, SDG India Index and Dashboard 2023–24, available at: <https://www.niti.gov.in> (last visited on: 13.06.2026). See also, World Bank, Business Ready (B-READY) Methodology Handbook (World Bank Group, 2023), available at: <https://www.worldbank.org/en/businessready> (last visited on: 13.06.2026); Organisation for Economic Co-operation and Development (OECD), OECD Regulatory Policy Outlook 2021 (OECD Publishing, 2021), available at: <https://www.oecd.org/gov/regulatory-policy/oecd-regulatory-policy-outlook-2021-38b0fdb1-en.htm> (last visited on: 13.06.2026).

Framework of the Index

The ease of operating a school cannot be understood merely as the absence of regulation¹⁵, rather, it depends on whether regulation is clear, proportionate, predictable, and capable of achieving its intended objectives without imposing unnecessary burdens. Schools perform a vital public function and therefore operate within a regulatory framework designed to safeguard educational standards, protect students, promote transparency, and ensure accountability. The relevant question is not whether schools should be regulated, but whether regulatory systems enable schools to fulfil these objectives in a manner that is clear, predictable, proportionate, and administratively feasible.

For the purposes of this Index, ease of operating schools refers to the extent to which schools are able to establish themselves, manage their operations, mobilise resources, undertake institutional changes, and pursue their educational objectives within the prevailing

regulatory environment. A more enabling regulatory environment is one in which schools can comply with legitimate public requirements without facing unnecessary procedural complexity, administrative uncertainty, or restrictions that undermine institutional effectiveness.

The regulatory experience of a school is shaped by its interaction with the state throughout its institutional lifecycle, from establishment and recognition to day-to-day operations, financial management, institutional growth, and ongoing regulatory oversight. Whether a school is able to function effectively depends not on a single regulation, but on a combination of factors including the clarity of regulatory requirements, the burden of compliance, the predictability of enforcement, the ability to mobilise resources, the ease of undertaking institutional changes, and the degree of autonomy available in operational decision-making.

¹⁵ Organisation for Economic Co-operation and Development (OECD), OECD Regulatory Policy Outlook 2021 (OECD Publishing, 2021), available at: <https://www.oecd.org/gov/regulatory-policy/oecd-regulatory-policy-outlook-2021-38b0fdb1-en.htm> (last visited on: 13.06.2026).

Architecture, Methodology, and Index Design

Architecture of the Ease of Operating Schools Index

The Ease of Operating Schools (EoOS) Index assesses the regulatory environment governing the establishment and operation of private unaided schools across Indian states and union territories. It evaluates the extent to which existing regulatory frameworks enable schools to function effectively within the formal legal and administrative system.

The assessment is guided by the principle that a well-functioning regulatory framework should be transparent, predictable, proportionate, and supportive of institutional autonomy while maintaining accountability and public oversight. Rather than evaluating individual regulations in

isolation, the assessment examines how legal and administrative provisions collectively shape the operating environment for schools.

School regulation is multidimensional and affects institutions through multiple channels. To capture these dimensions, the EoOS Index is organised into six domains. Together, these domains provide a comprehensive assessment of the conditions under which schools operate.

Together, the six domains capture the principal regulatory dimensions affecting the establishment, operation, expansion, and sustainability of private schools. Assessment under the EoOS framework is organised through a hierarchical architecture comprising domains, indicators, and sub-indicators. Domains capture broad dimensions of

Domains of the EoOS Index

Domain	Description	Indicators	Sub-indicators
Regulatory Clarity, Predictability, and Accessibility	Assesses the extent to which school regulations are publicly available and accessible, particularly through official government channels. The domain also evaluates whether regulatory requirements are clear, stable, and rule-based.	2	41
Regulatory Compliance	Examines the procedural and administrative burden imposed on private schools in complying with regulatory requirements.	7	27
Operations without Arbitrary Regulatory Action	Evaluates the extent to which school operations are protected from discretionary regulatory action through objective safeguards, procedural protections, and accountability mechanisms.	4	52
Financial Sustainability and Resource Mobilisation	Assesses the ability of schools to accumulate, utilise, allocate, and manage financial resources within the regulatory framework.	3	18
School Lifecycle Operations	Evaluates regulatory requirements governing the establishment of new schools, expansion of existing institutions, and processes relating to closure or exit.	5	16
Institutional Autonomy	Assesses the degree of operational, managerial, and governance flexibility available to schools within the existing legal framework.	2	10
Total		23	164

the regulatory environment, indicators identify key thematic areas within each domain, and sub-indicators assess specific legal and administrative provisions contained in laws, rules, regulations, government orders. The domain architecture has been designed to minimise conceptual overlap

Indicators Included within Each Domain

Domain	Indicators Included
Regulatory Clarity, Predictability, & Accessibility	Indicator 1: Regulatory Transparency Indicator 2: Procedural Predictability
Regulatory Compliance	Indicator 1: Compliances during school establishment Indicator 2: Infrastructure norms for school recognition Indicator 3: Fee Hike Indicator 4: Staffing requirements Indicator 5: Financial Reporting Indicator 6: Affiliation related requirements Indicator 7: Capital requirements for recognition
Operations without Arbitrary Regulatory Action	Indicator 1: Inspections Indicator 2: Withdrawal of Affiliation Indicator 3: Withdrawal of approvals and takeover powers Indicator 4: Parent Grievance Redressal-
Financial Sustainability and Resource Mobilisation	Indicator 1: Fee Collection and Utilization of Funds Indicator 2: Mechanism for fee approvals Indicator 3: Regulations on capitation fee
School Lifecycle Operations	Indicator 1: School Establishment Requirements Indicator 2: School Operation and Expansion Requirements Indicator 3: Board Affiliation Indicator 4: Voluntary Exit Indicator 5: Forced Exit
Institutional Autonomy	Indicator 1: Payment of Staff Salaries Indicator 2: Self Governance

while ensuring comprehensive coverage of the principal regulatory dimensions affecting private school operations.

Detailed descriptions of indicators are presented within the respective domain chapters and annexures of this report.

De Jure Approach to Assessment

The EoOS Index adopts a *de jure* approach to assessing regulatory environments across states. This choice is made to enhance:

- 1. Comparability:** A *de jure* framework enables meaningful comparison across states by assessing formally codified regulatory requirements rather than implementation experiences, which may vary across districts, institutions, and time periods.
- 2. Objectivity and Replicability:** The Index relies on publicly verifiable laws, rules, and regulations, ensuring that the assessment remains transparent, consistent, and reproducible.
- 3. Reform Orientation:** The purpose of EoOS is to evaluate regulatory design. By identifying specific legal and procedural provisions that create regulatory burden, the Index provides a clear basis for policy and regulatory reform.

While implementation remains important, the objective of the EoOS Index is to evaluate regulatory design as codified in law and administrative procedure.

Data Collection

The EoOS Index is constructed through a systematic review of official legal and regulatory documents governing private unaided schools across states and union territories. The assessment relies on a comprehensive legal repository comprising state education acts, rules, and relevant government orders, and other legally operative instruments. These documents were

obtained from official government gazettes, state education department websites, and other authorised public repositories.

Where relevant legal documents were not available in the public domain, information was obtained through requests submitted under the Right to Information Act, 2005. The resulting legal repository forms the evidentiary foundation for all coding, scoring, and comparative analysis undertaken in this report. Every assessment contained within the EoOS framework is linked to identifiable legal or administrative sources to ensure transparency, consistency, and verifiability.

Methodology and Scoring Design

The EoOS Index translates legal and regulatory provisions into measurable indicators that enable systematic comparison across states and union territories. Since the regulatory provisions assessed under the Index differ in nature, scope, and measurement scale, a standardised coding and aggregation methodology has been adopted to ensure consistency and comparability.

Selection of Indicators and Sub-indicators

Indicators and sub-indicators were identified through a systematic review of legal and regulatory provisions affecting the establishment and operation of private schools. The selection process was guided by three criteria:

- 1. Regulatory Relevance** – The provision must directly affect the establishment, operation, governance, or management of private schools.
- 2. Interstate Variation** – The provision must exhibit meaningful variation across jurisdictions to enable comparative assessment.
- 3. Data Availability and Clarity** – The provision must be clearly identifiable and verifiable through official legal or regulatory documents.

Coding Framework

All indicators are coded such that higher scores consistently reflect a more enabling regulatory environment and greater ease of operating schools. Where provisions reduce administrative

burden, improve transparency, strengthen safeguards, or shorten procedural timelines, they receive higher scores. Conversely, provisions that increase complexity, uncertainty, or compliance burdens receive lower scores.

Normalisation

Since sub-indicators are measured using different scales, values are normalised using a min-max transformation. This converts all observations onto a common scale ranging from 0 to 1, enabling comparison and aggregation across jurisdictions.

Weighting and Aggregation

Scores are aggregated progressively through the following structure:

Sub-indicators → Indicators → Domains → Composite Index Score

Sub-indicator scores are first aggregated to generate indicator-level scores. Indicator scores are then aggregated to generate domain-level scores, which are subsequently combined to produce the overall EoOS score for each state.

The Index adopts an equal-weighting methodology. Equal weighting was adopted to avoid imposing subjective judgments regarding the relative importance of individual regulatory provisions. Under this approach:

- All sub-indicators within an indicator receive equal weight;
- All indicators within a domain receive equal weight; and
- Each domain contributes equally to the final composite score.

Following aggregation, all domain scores and composite scores are standardised and expressed on a scale of 0 to 100. Higher scores indicate a comparatively more enabling and accessible regulatory environment for operating schools.

Analytical Approach

The EoOS Index is intended to support both comparative assessment and policy analysis of

school regulatory frameworks across states and union territories.

The analytical framework facilitates:

- Comparison of regulatory environments across jurisdictions;
- Identification of relative strengths and weaknesses within individual domains;
- Benchmarking of state performance against national patterns;
- Identification of regulatory bottlenecks and reform opportunities; and
- Construction of composite rankings based on overall regulatory performance.

While the composite score provides an overall measure of regulatory performance, domain-level scores provide more granular insights into the specific regulatory factors shaping state performance. Accordingly, the findings presented in this report should be interpreted through both overall rankings and domain-level performance.

Limitations

The EoOS Index provides a systematic framework for assessing and comparing regulatory environments governing private schools across states and union territories. The findings presented in this report should be interpreted in light of certain limitations inherent in comparative regulatory assessment.

De Jure Scope: The Index evaluates formally codified regulatory frameworks and does not assess variation in implementation across districts, institutions, or administrative authorities. Differences in administrative practice, enforcement behaviour, and institutional capacity may therefore influence the actual experience of operating schools but fall outside the scope of the present assessment.

Time-Bound Assessment: The findings presented in this report reflect the legal and regulatory framework applicable during the assessment period. The assessment period – laws available in the public domain till December 2025. Legislative amendments, policy reforms, or regulatory changes introduced subsequently are not captured in the current edition of the Index.

Comparative Interpretation: The scores and rankings presented in this report are comparative measures intended to benchmark regulatory environments across jurisdictions. They should therefore be interpreted as relative assessments rather than absolute measures of regulatory quality.

Scope of Measurement: The EoOS Index measures the relative ease of operating private unaided schools only. It does not cover regulations imposed on government or private aided schools. It focuses on acts, rules, and regulations to some extent, but does not cover ad-hoc government directions. This is done in order to ensure stability of the index, as these ad-hoc instruments could be frequently issued, modified, or withdrawn, which makes them less reliable for stable and consistent assessment.

Data Availability: The assessment relies on the availability and accessibility of official legal and regulatory documents. Variations in the public availability of such documents across jurisdictions may affect the completeness of the evidence base in certain cases.

Findings and Insights

What the Index Reveals About School Regulation in India

The preceding chapters outlined the historical evolution of school regulation in India, the role of private schools within the country's educational ecosystem, and the analytical framework through which state-level regulatory environments have been assessed. This section turns to the findings of the Ease of Operating Schools (EoS) Index and examines what the evidence reveals about the nature, structure, and functioning of school regulation across India.

The purpose of this section is not merely to identify which states perform better or worse on particular indicators. Rankings, while useful, offer only a partial understanding of the regulatory environment. The more important question is what these rankings reveal about the broader design of educational governance in India. The findings therefore seek to move beyond scores and examine the institutional philosophies, regulatory patterns, and governance choices that shape the everyday experience of operating a school.

The analysis reveals that India does not possess a single regulatory framework governing schools. Instead, it operates through a collection of distinct state-level regulatory systems, each reflecting different assumptions about accountability, autonomy, compliance, oversight, and institutional control. These differences are not merely technical variations in legal drafting. They have significant implications for the ability of schools to establish themselves, mobilise resources, adapt to changing circumstances, respond to local educational needs, and sustain their operations over time.

The findings also reveal an important distinction between educational outcomes and regulatory quality. Several states that are traditionally regarded as strong performers on educational

indicators do not necessarily provide the most enabling regulatory environments for schools. Similarly, certain states with relatively modest educational outcomes perform comparatively better in creating regulatory conditions that reduce procedural complexity and administrative burden. This suggests that educational achievement and regulatory accessibility are analytically distinct dimensions of governance and should be examined independently.

More broadly, the evidence points towards a persistent tension within India's educational regulatory architecture. State governments continue to impose extensive obligations relating to infrastructure, staffing, financial reporting, recognition, inspections, and compliance. However, these obligations are not always accompanied by corresponding levels of institutional autonomy, operational flexibility, procedural safeguards, or financial sustainability. The result is a regulatory environment that often prioritises oversight over enablement and control over institutional resilience.

The findings presented in this section therefore address a broader policy question that extends beyond school education alone: what constitutes good regulation? While the State has a legitimate responsibility to ensure accountability, educational quality, and protection of student interests, regulatory systems must also remain proportionate, predictable, transparent, and facilitative. Excessive procedural requirements, fragmented approval systems, and restrictive operational frameworks can undermine the very objectives they seek to advance.

The chapters that follow examine these issues at three distinct levels. The first chapter presents a national overview of regulatory performance

and highlights the major findings emerging from the dataset. The second chapter synthesises cross-domain insights and explores what the index reveals about the philosophy of school regulation in India. Subsequent chapters examine each regulatory domain in detail, identifying patterns, strengths, weaknesses, and governance implications. The section then concludes with state archetypes, implications for private schools, and a reform agenda that emerges from the findings.

Together, these findings offer one of the most comprehensive assessments of school regulation undertaken in India. More importantly, they provide an opportunity to reorient the policy conversation from a narrow focus on educational outcomes towards a broader consideration of the regulatory environments within which educational institutions operate. If educational quality depends not only on what schools do but also on the conditions under which they function, then understanding the nature of those conditions becomes an essential component of education reform itself.

CHAPTER 1

THE STATE OF SCHOOL REGULATION IN INDIA

Introduction

The Ease of Operating Schools (EoOS) Index was developed to examine a question that has received comparatively limited attention within education policy discourse: how easy is it to operate a school?

While debates on school education frequently focus on access, learning outcomes, public expenditure, infrastructure, and teacher availability, the regulatory conditions within which schools function remain less systematically examined. Yet regulation shapes virtually every aspect of school operations. It determines the requirements for establishment and recognition, the conditions governing expansion and continuity, the extent of managerial discretion available to school leaders, the procedures through which schools interact with government authorities, and the ability of institutions to mobilise resources necessary for long-term sustainability.

The findings reveal substantial variation across states. Schools operating within the same constitutional framework encounter significantly different regulatory environments depending upon their jurisdiction. More importantly, the findings suggest that the principal challenge facing school regulation in India is not simply one of variation across states. It is a question of balance within regulatory design itself.

Across states, regulatory systems appear considerably more developed in defining, monitoring, and enforcing institutional obligations than in enabling institutional sustainability, adaptability, and autonomy. This chapter presents the principal national findings emerging from the Index.

National Performance Snapshot

The national average EoOS score stands at 20.86. State scores range from 29.69 in Telangana to 13.97 in Sikkim, reflecting a substantial gap in the

ease with which schools can navigate regulatory systems across jurisdictions.

The distribution of scores demonstrates that schools in India do not operate within a single regulatory environment. Instead, they function

Table 1.1 National Performance Snapshot

Metric	Value
Highest State Score	Telangana (29.69)
Lowest State Score	Sikkim (13.97)
National Average (Mean)	20.86
National Median	20.32
Score Range	15.72
States Above National Average	14
States Below National Average	16

within a collection of state-level regulatory systems characterised by different administrative structures, legal frameworks, and governance approaches.

The gap between the highest- and lowest-performing states is not merely statistical. It reflects meaningful differences in the ease with which schools can establish themselves, satisfy compliance obligations, access procedural protections, exercise autonomy, and sustain operations over time.

At the same time, overall scores provide only a partial picture. States with similar overall scores often display markedly different patterns across individual domains, suggesting that regulatory quality cannot be adequately understood through rankings alone.

A Regulatory Architecture Built Around Obligations

The strongest-performing domains relate primarily to the visibility of regulations and the specification of institutional obligations. Regulatory Clarity and Regulatory Compliance record the highest national averages among the six domains.

By contrast, the weakest-performing domains relate to financial sustainability and institutional adaptability. School Lifecycle Operations and [Table 1.2 National Domain Performance](#)

Domain	National Average
Regulatory Clarity, Predictability and Accessibility	37.36
Regulatory Compliance	33.32
Operations without Arbitrary Regulatory Action	21.90
Institutional Autonomy	20.72
School Lifecycle Operations	7.13
Financial Sustainability and Resource Mobilisation	4.71

Financial Sustainability record the lowest national averages by a considerable margin. Taken together, these findings suggest that state regulatory systems have evolved further in defining what schools must do than in creating conditions that enable schools to sustain themselves, adapt to changing circumstances, and exercise institutional discretion.

This observation should not be interpreted as a criticism of regulation itself. Regulatory oversight serves important public purposes. Rather, the findings suggest that regulatory development has been uneven across governance functions, resulting in a framework that appears stronger on oversight than on enablement.

National Findings

FINDING 1

Regulatory Clarity is Stronger than Institutional Autonomy

The average score for Regulatory Clarity (37.36) exceeds the average score for Institutional Autonomy (20.72) by nearly seventeen points. This suggests that states have generally invested greater regulatory effort in defining institutional obligations than in expanding institutional decision-making authority.

The finding is significant because clarity and autonomy serve different governance objectives. Clarity reduces uncertainty by making rules visible and predictable. Autonomy enables institutions to respond to local needs and exercise professional judgement. The data suggest that the former is considerably more developed than the latter.

FINDING 2

Compliance Systems Are More Developed Than Enablement Systems

Regulatory Compliance records a national average score of 33.32, compared to only 7.13 for School Lifecycle Operations.

The contrast indicates that state regulatory systems are generally better equipped to govern approvals, reporting, recognition, and compliance than to facilitate institutional evolution, expansion, restructuring, or continuity.

Schools therefore operate within regulatory frameworks that are comparatively strong in monitoring institutional behaviour but considerably weaker in supporting institutional adaptability.

FINDING 3

Financial Sustainability Represents the Weakest Dimension of School Regulation

Financial Sustainability and Resource Mobilisation records the lowest average score among all six domains. Even the highest-performing state achieves only a modest score relative to other domains, while several states exhibit extremely limited performance. The finding suggests that financial sustainability remains an underdeveloped component of school regulation across India. Unlike several other domains, this weakness appears broadly distributed rather than confined to a small group of states.

FINDING 4

Procedural Protections Remain Uneven Across States

The domain measuring protection against

arbitrary regulatory action exhibits some of the largest interstate variations observed in the Index. While certain states provide comparatively strong procedural safeguards, others offer considerably fewer protections against discretionary administrative action. The findings suggest that schools operating in different jurisdictions experience markedly different levels of regulatory certainty and procedural fairness.

FINDING 5

Educational Performance and Regulatory Accessibility Are Distinct Dimensions of Governance

Several states traditionally associated with strong educational outcomes perform below the national average on the EoOS Index, while some states facing broader educational governance challenges emerge among the stronger performers.

The findings therefore suggest that educational achievement and regulatory accessibility should be treated as analytically distinct dimensions of governance. Strong educational outcomes do not necessarily imply an enabling regulatory environment, just as regulatory accessibility does not automatically translate into educational performance.

Conclusion

The findings of this chapter reveal a regulatory architecture characterised not only by interstate variation but also by an important structural imbalance. Across states, regulatory systems appear considerably more developed in areas concerned with defining obligations, monitoring compliance, and administering oversight than in areas concerned with enabling sustainability, adaptability, and autonomy. The challenge facing policymakers is therefore not simply how much regulation should exist, but how regulatory systems can achieve a more effective balance between accountability and enablement.

CHAPTER 2

WHAT THE INDEX REVEALS ABOUT SCHOOL REGULATION IN INDIA

Introduction

The findings presented in Chapter 1 establish the broad contours of school regulation across India. This chapter moves beyond description and examines what those findings reveal about the structure of regulatory systems themselves.

The purpose of this chapter is interpretive rather than descriptive. The analysis that follows seeks to identify broader governance patterns emerging from the data and to explore what these patterns suggest about the evolution of school regulation in India. Four recurring tensions emerge across the dataset. Together, they provide a useful framework for understanding the regulatory environment within which schools operate.

Rules versus Flexibility

The first tension concerns the relationship between regulatory clarity and institutional autonomy. The findings reveal that states generally perform more strongly in defining rules than in delegating decision-making authority. Regulatory frameworks appear relatively successful in making obligations visible and identifiable, yet considerably less successful in creating space for institutional discretion.

This distinction is important because clarity and flexibility perform different governance functions. Clarity seeks to reduce uncertainty. Flexibility seeks to enable adaptation. The evidence suggests that the regulatory architecture places greater emphasis on the former than the latter. As a result, schools increasingly know what is required of them, but often possess limited discretion in determining how those requirements are fulfilled.

Compliance versus Enablement

A second tension emerges from the relationship between compliance systems and institutional enablement. The findings indicate that states have generally developed detailed frameworks governing

approvals, reporting, inspections, recognition, and compliance obligations. By contrast, considerably less attention has been devoted to facilitating institutional transitions such as expansion, upgradation, restructuring, or closure.

The result is a regulatory environment in which schools are expected to navigate increasingly sophisticated compliance systems while operating within relatively rigid lifecycle frameworks. This does not imply that compliance requirements are unnecessary. Rather, it suggests that regulatory development has proceeded unevenly, with greater attention devoted to accountability mechanisms than to institutional adaptability.

Control versus Sustainability

The third tension concerns the relationship between regulatory control and institutional sustainability. Financial Sustainability and Resource Mobilisation emerges as the weakest-performing domain nationally. This finding suggests that financial governance remains one of the least developed dimensions of school regulation.

The implication is not that schools operate without financial regulation. On the contrary, financial activity is often subject to extensive oversight. Rather, the findings suggest that regulatory frameworks are considerably more developed in governing financial behaviour than in supporting financial resilience.

This distinction is important because educational quality ultimately depends upon institutional sustainability. Schools cannot maintain infrastructure, recruit qualified teachers, invest in innovation, or respond to changing educational needs without adequate financial capacity.

Authority versus Accountability

The variation observed in protection against arbitrary regulatory action reveals a fourth tension within educational governance. Regulatory authority is necessary for maintaining standards and protecting public interests. However, the

exercise of authority also requires safeguards that promote fairness, predictability, and accountability.

The findings suggest that states differ substantially in the extent to which such safeguards are embedded within their regulatory frameworks.

Where procedural protections are limited, schools may face greater uncertainty regarding inspections, approvals, recognition decisions, and regulatory enforcement. The challenge therefore lies not in limiting authority but in ensuring that authority operates within transparent and predictable procedural frameworks.

A Regulatory System in Transition

Taken together, the findings suggest that school regulation in India is best understood as a system in transition. Across states, elements of both traditional and emerging regulatory approaches coexist. Some jurisdictions have begun introducing more facilitative features characterised by greater transparency, procedural simplification, and institutional flexibility. Others continue to rely primarily on compliance-oriented approaches centred on approvals, oversight, and administrative control. The resulting diversity creates opportunities for comparative learning.

The next chapter develops a framework for understanding these different approaches through a set of regulatory archetypes derived from observed patterns within the data.

CHAPTER 3 REGULATORY CLARITY, PREDICTABILITY & ACCESSIBILITY

Introduction

The effectiveness of any regulatory system depends not only on the quality of its rules but also on the ability of regulated entities to understand them. Before a school can comply with a regulation, it must first know that the regulation exists. It must be able to identify the applicable legal provisions, understand the requirements imposed upon it, determine which authority is responsible for implementation, and navigate the procedures through which compliance is assessed. Where regulations are difficult to locate, fragmented across multiple legal instruments, or inaccessible to stakeholders, compliance becomes more costly and uncertainty becomes more pervasive.

Regulatory clarity, predictability, and accessibility therefore constitute the foundation of regulatory quality. This principle is particularly relevant in the context of school education. Unlike highly regulated industries with dedicated legal and compliance teams, most schools operate with limited administrative capacity. School leaders, management committees, and administrators are expected to navigate complex regulatory environments while simultaneously focusing on educational delivery, staffing, governance, and student welfare.

The ease with which schools can identify, interpret, and navigate regulatory requirements is therefore an important determinant of the broader ease of operating schools. This chapter examines the first domain of the Ease of Operating Schools Index: Regulatory Clarity, Predictability and Accessibility.

National Performance

Among the six domains assessed under the EoOS Index, Regulatory Clarity, Predictability and Accessibility records the highest national average score of 37.36.

At first glance, this appears encouraging. Compared with other dimensions of school regulation,

Table 4.1 National Performance in Regulatory Clarity, Predictability and Accessibility

Metric	Value
Highest State Score	Haryana (53.78)
Lowest State Score	Sikkim (19.97)
National Average	37.36
Score Range	33.81

states perform relatively better in ensuring that regulatory requirements are visible, documented, and identifiable. Regulatory Clarity records the highest national average among all six domains, outperforming Institutional Autonomy (20.72), School Lifecycle Operations (7.13), and Financial Sustainability and Resource Mobilisation (4.71).

This finding suggests that states have generally devoted greater regulatory attention to defining obligations than to enabling institutions. However, the results should be interpreted carefully. A relatively stronger performance in this domain does not necessarily imply that school regulation is simple, user-friendly, or easy to navigate. Rather, it indicates that regulatory frameworks are comparatively more developed in making obligations identifiable than in other dimensions of governance. The distinction between visibility and simplicity is important and lies at the heart of this chapter.

What Does the Domain Measure?

This domain evaluates whether schools can reasonably determine:

- What regulations apply to them;
- Where regulatory requirements are located;
- Which authorities are responsible for implementation;
- Whether procedures are publicly available;
- Whether timelines are specified;
- Whether legal instruments are accessible;
- Whether schools can anticipate how regulatory processes are expected to operate.

The domain therefore assesses the visibility and navigability of regulation rather than the substantive burden of regulation itself. A school may disagree with a regulatory requirement while still benefiting from clarity regarding that requirement. Conversely, even modest regulatory obligations can become difficult to comply with when rules are fragmented, inaccessible, or unpredictable.

FINDING 1

School Regulation in India Is Increasingly Codified

One of the most important findings emerging from the Index is the extent to which school regulation is embedded within formal legal and administrative frameworks. Across states, schools are governed through a combination of statutes, rules, government orders, notifications, circulars, departmental guidelines, and administrative instructions. In most jurisdictions, at least some aspects of school regulation have been codified and documented through identifiable legal instruments.

From a governance perspective, this is a significant development. Codification performs several important functions. It creates visibility. It improves predictability. It reduces dependence on informal administrative practices. It allows schools to identify obligations and challenge arbitrary interpretations. The findings therefore suggest that the regulatory architecture governing schools has evolved beyond purely discretionary administration towards more formalised systems of governance. This is an important strength of contemporary school regulation in India.

FINDING 2

Visibility Does Not Necessarily Mean Accessibility

While regulations are frequently documented, their accessibility remains uneven. Across many states, legal requirements are dispersed across multiple instruments issued by different authorities over extended periods of time. Schools may need to consult legislation, subordinate rules,

departmental notifications, government orders, circulars, and administrative guidelines to obtain a complete understanding of their obligations.

The cumulative result is informational fragmentation. The rules exist. But locating and assembling them can be difficult. This challenge becomes particularly acute where regulations are amended repeatedly without consolidation. Schools may be required to interpret multiple instruments issued over several years to determine the current legal position. The findings therefore reveal an important distinction. A regulation can be visible without being easily accessible. Accessibility requires more than publication. It requires organisation, consolidation, and usability.

FINDING 3

Language Remains an Underappreciated Dimension of Regulatory Accessibility

A less visible but equally important challenge concerns language. Many states make regulatory documents publicly available, but access may remain constrained when information is available only in a single language or when key instruments are not easily available in formats that can be understood by a broad range of stakeholders. From the perspective of regulatory quality, accessibility should be understood as a question of stakeholder usability rather than mere publication. Schools, researchers, policymakers, investors, education providers, and civil society organisations all interact with regulatory frameworks in different ways. A regulatory system becomes more accessible when information is available in formats and languages that minimise barriers to understanding.

The findings therefore highlight the importance of multilingual accessibility as a component of regulatory quality. The objective is not the prioritisation of any particular language, but the reduction of informational barriers.

FINDING 4

Clarity Is a Necessary but Insufficient

Condition for Ease of Operation

Perhaps the most important insight emerging from this domain is that regulatory clarity should not be confused with regulatory flexibility. Several states perform relatively strongly on Regulatory Clarity while performing considerably less strongly on Institutional Autonomy, School Lifecycle Operations, or Financial Sustainability. This suggests that schools may clearly understand their obligations while still operating within restrictive regulatory environments. A school can know precisely:

- how recognition is granted,
- what infrastructure standards apply,
- what reporting obligations exist,
- how inspections are conducted,

and still face significant operational constraints.

The findings therefore suggest that regulatory clarity represents a foundational condition for ease of operation, but not a sufficient condition. Schools benefit from understanding the rules. However, the overall ease of operating schools depends equally on the nature of those rules.

What Distinguishes Stronger Regulatory Systems?

The findings suggest that stronger performance is associated less with the volume of regulation and more with the organisation and accessibility of regulation. In other words, schools appear to benefit not from fewer rules, but from clearer rules.

Governance Implications

The findings reveal an important characteristic of school regulation in India. Among the six domains assessed under the EoOS Index, Regulatory Clarity records the strongest average performance. This suggests that states have generally made greater progress in codifying and communicating regulatory obligations than in improving other dimensions of governance.

At the same time, the findings also reveal the limits

Table 4.2 Characteristics of Stronger and Weaker Regulatory Systems

Feature	Strong Systems	Weak Systems
Consolidated Legal Repository	✓	✗
Public Access to Legal Documents	✓	✗
Multilingual Accessibility	✓	✗
Published Procedures and Guidance Notes	✓	✗
Clearly Defined Regulatory Authorities	✓	✗
Defined Timelines	✓	✗
User-Friendly Regulatory Portals	✓	✗

of transparency-focused reforms. Publishing regulations does not automatically reduce compliance burdens. Digitising procedures does not automatically increase autonomy. Making rules visible does not automatically improve financial sustainability. Clarity therefore represents the starting point of regulatory quality rather than its culmination.

Reform Priorities: Three broad reform priorities emerge from the findings.

Consolidation: States should periodically consolidate statutes, rules, notifications, circulars, and government orders into unified regulatory repositories that reflect the current legal position.

Accessibility: Regulatory information should be organised around user needs rather than administrative structures, ensuring that schools can readily identify applicable requirements.

Multilingual Communication: States should seek to maximise accessibility by making key legal instruments, procedural guidance, and compliance requirements available in formats and languages that minimise informational barriers.

The relevant question is not simply whether a regulation has been published. The more important question is whether a school can reasonably find, understand, and comply with it.

Conclusion

The findings suggest that Regulatory Clarity, Predictability and Accessibility constitutes one of the strongest dimensions of school regulation in India. Across states, regulations are increasingly formalised, documented, and identifiable. This reflects an important shift towards more transparent and predictable systems of governance. However, the domain also reveals that visibility alone does not guarantee accessibility. Schools continue to face challenges arising from fragmented legal repositories, dispersed administrative instruments, language barriers, and procedural complexity.

The central lesson emerging from this domain is straightforward. Schools cannot comply with rules they cannot find or understand. Improving regulatory quality therefore begins with making regulation visible, accessible, and predictable. Yet true ease of operation requires more than clarity alone. It requires regulatory systems that are not only understandable, but also coherent, navigable, and ultimately supportive of educational institutions.

CHAPTER 4 REGULATORY COMPLIANCE

Introduction

Every regulatory system imposes obligations. The relevant policy question is not whether schools should be regulated, but whether the obligations imposed upon them remain proportionate, navigable, and aligned with legitimate educational objectives.

Once schools understand the rules that govern them, they must comply with those rules. The ease with which this can be done depends upon the complexity of approval processes, the volume of documentation required, the frequency of reporting obligations, the nature of infrastructure requirements, staffing norms, recognition conditions, financial disclosure obligations, and the broader administrative architecture through which compliance is enforced.

Regulatory compliance therefore represents the operational face of school regulation. For schools, compliance obligations are not abstract legal requirements. They translate into administrative costs, management attention, staff time, professional services, and institutional resources. Excessive compliance burdens can divert attention away from educational priorities, while poorly designed compliance systems can create uncertainty, delay, and inefficiency. This chapter examines the second domain of the Ease of Operating Schools Index: Regulatory Compliance.

National Performance: Regulatory Compliance records a national average score of 33.32, making it the second-highest performing domain in the Index after Regulatory Clarity, Predictability and Accessibility.

At first glance, the results appear relatively encouraging. However, the findings require careful interpretation. A score of 33.32 does not indicate a low compliance burden. Rather, it suggests that while states have established

Table 5.1 National Performance in Regulatory Compliance

Metric	Value
National Average	33.32
Highest State Score	Telangana (48.70)
Lowest State Score	Madhya Pradesh (18.41)
Score Range	30.29

comparatively developed compliance frameworks, schools continue to operate within administrative environments characterised by multiple regulatory obligations and extensive procedural requirements. The evidence therefore points towards a regulatory ecosystem in which compliance remains a central organising principle of educational governance.

What Does the Domain Measure?

This domain evaluates the extent to which compliance obligations imposed upon schools remain manageable, reasonable, and procedurally navigable. The assessment examines seven major areas of regulatory compliance:

- School establishment requirements;
- Infrastructure norms for recognition;
- Fee revision requirements;
- Staffing obligations;
- Financial reporting requirements;
- Affiliation-related conditions;
- Capital and deposit requirements associated with recognition.

Together, these indicators capture the cumulative compliance burden imposed upon schools throughout their operational lifecycle. Importantly, the domain does not evaluate whether regulatory objectives are legitimate. Rather, it evaluates whether the means used to achieve those objectives are proportionate and administratively manageable.

FINDING 1 Compliance Remains the Dominant Logic of

School Regulation

One of the clearest findings emerging from the Index is the centrality of compliance within school governance. Across states, regulatory systems devote substantial attention to defining conditions under which schools may be established, recognised, staffed, financed, affiliated, and operated.

The findings suggest that educational governance continues to rely heavily upon ex ante regulation; that is, regulatory controls imposed before or during institutional operations rather than after outcomes are observed. This approach is reflected in extensive procedural requirements relating to recognition, infrastructure, staffing, approvals, certifications, and reporting. From a governance perspective, such requirements often seek to promote accountability, educational standards, and institutional transparency.

However, the cumulative effect can be substantial. Schools are frequently required to satisfy multiple compliance obligations simultaneously, creating significant administrative workloads that extend well beyond educational delivery. The findings therefore suggest that compliance remains the dominant organising principle of school regulation across much of India.

FINDING 2

Clarity Does Not Necessarily Reduce Compliance Burdens

One of the most important cross-domain findings emerges when Regulatory Compliance is compared with Regulatory Clarity. Several states that perform strongly in Regulatory Clarity do not perform equally strongly in Regulatory Compliance.

Haryana and Himachal Pradesh provide particularly notable examples. Both states perform among the strongest jurisdictions on regulatory clarity, yet their compliance performance is comparatively weaker. This finding highlights an important distinction. Schools may clearly

understand what is required of them while still facing substantial compliance burdens. In other words, transparency does not automatically produce simplicity.

A regulatory framework can be highly transparent, thoroughly codified, and procedurally predictable while simultaneously imposing extensive documentation requirements, multiple approvals, recurring reporting obligations, and detailed compliance conditions. The findings therefore reinforce an important lesson from Chapter 4: clarity is a necessary condition for ease of operation, but it is not a sufficient one.

FINDING 3

The Burden of Compliance Is Often Cumulative Rather Than Individual

Few individual compliance requirements appear excessive when viewed in isolation. Infrastructure norms, staffing requirements, recognition conditions, financial disclosures, and affiliation standards often serve legitimate public purposes. The challenge emerges from their cumulative effect. Schools are rarely required to comply with a single obligation. Instead, they must satisfy multiple requirements simultaneously, often involving different authorities, different timelines, and different forms of documentation.

The findings suggest that regulatory burden is therefore best understood as an aggregate phenomenon. Even where individual requirements appear reasonable, their combined administrative impact may become significant. This is particularly relevant for smaller schools that may lack dedicated compliance staff, legal advisers, or specialised administrative capacity.

FINDING 4

Significant Interstate Variation Persists

The 30.29-point gap between Telangana and Madhya Pradesh reveals substantial differences in the compliance environments faced by schools across states. The strongest-performing

states generally exhibit comparatively streamlined compliance structures, fewer layers of procedural fragmentation, and greater administrative navigability. Telangana, Meghalaya, Assam, Andhra Pradesh, and Kerala emerge among the strongest-performing jurisdictions in this domain.

Notably, several north-eastern states perform strongly despite facing broader capacity challenges in other areas of governance. This finding suggests that manageable compliance frameworks are not necessarily dependent upon state size, fiscal capacity, or economic development. Conversely, several larger and administratively sophisticated states perform below the national average, indicating that regulatory burden is fundamentally a question of regulatory design rather than administrative capacity alone.

FINDING 5

The Findings Reveal Tension Between Control and Trust

The National Education Policy 2020 advocates a governance model characterised by simplified procedures, institutional trust, and a “light but tight” approach to regulation. The findings suggest that many states continue to rely upon governance models that remain heavily compliance-oriented.

Documentation-intensive procedures, multiple approvals, recurring certifications, and inspection-linked compliance mechanisms continue to feature prominently across many jurisdictions. The resulting regulatory architecture often reflects a philosophy of verification rather than trust. This observation should not be interpreted as an argument against accountability. Rather, it raises a broader governance question: Can educational accountability be achieved through simpler and more proportionate regulatory instruments?

The findings suggest that this remains an

unresolved challenge within many state regulatory systems.

What Distinguishes Stronger Compliance Frameworks?

The strongest-performing states in this domain tend to exhibit several common characteristics.

Table 5.2 Characteristics of Stronger and Weaker Compliance Frameworks

Feature	Stronger Systems	Weaker Systems
Streamlined Recognition Processes	✓	✗
Limited Procedural Duplication	✓	✗
Clear Documentation Requirements	✓	✗
Reduced Approval Layers	✓	✗
Predictable Reporting Obligations	✓	✗
Lower Administrative Fragmentation	✓	✗
Simpler Compliance Architecture	✓	✗

The findings suggest that schools benefit less from the absence of regulation than from the simplification of regulation. In other words, regulatory ease appears to be driven more by administrative design than by regulatory volume alone.

Governance Implications

The findings reveal that compliance remains one of the defining features of school regulation in India. States have developed relatively sophisticated systems for regulating establishment, recognition, staffing, infrastructure, financial reporting, and institutional accountability.

However, the findings also suggest that these systems often prioritise procedural control over

administrative efficiency. As a result, schools may devote substantial resources towards satisfying regulatory requirements that do not always directly contribute to educational improvement. The challenge for policymakers is therefore not whether compliance obligations should exist, but whether they remain proportionate to their intended objectives.

assessed by the ease with which those rules can be satisfied. A regulatory framework that is clear but excessively burdensome remains difficult to navigate. The future challenge for educational governance is therefore not only to improve transparency, but also to ensure that compliance systems remain proportionate, navigable, and aligned with educational objectives.

Reform Priorities: Three broad reform priorities emerge from the findings.

Rationalisation of Compliance Requirements:

States should periodically review existing compliance obligations to identify duplicative, outdated, or low-value requirements.

Risk-Based Regulation: Compliance intensity should increasingly reflect institutional risk rather than applying identical requirements to all schools regardless of size, context, or compliance history.

Digital and Integrated Compliance Systems:

Where compliance requirements remain necessary, they should be integrated through simplified digital systems that minimise duplication and administrative burden.

The objective should be to ensure that compliance serves educational quality rather than becoming an end in itself.

Conclusion

The findings reveal that compliance remains the dominant organising principle of school regulation across India. States have invested considerable effort in constructing systems that govern recognition, staffing, infrastructure, financial reporting, and institutional accountability. However, these systems often impose substantial administrative obligations upon schools.

The central lesson emerging from this domain is that regulatory quality cannot be measured solely by the existence of rules. It must also be

CHAPTER 5

OPERATIONS WITHOUT ARBITRARY REGULATORY ACTION

Introduction

Good regulation requires more than written rules. It also requires fair procedures for enforcing those rules. A school may understand its regulatory obligations and may even be willing to comply with them. Yet if inspections, penalties, withdrawal of recognition, takeover powers, or grievance proceedings are governed by broad administrative discretion, the regulatory environment remains uncertain. In such cases, schools do not merely face regulation; they face regulatory risk.

This domain examines whether state frameworks provide schools with procedural protection against arbitrary regulatory action. It assesses whether enforcement processes are guided by clear procedures, notice requirements, opportunities to be heard, appellate mechanisms, written reasons, and limits on discretionary powers. In other words, this domain asks a foundational rule-of-law question: Can schools expect fair and predictable treatment from the regulatory state?

National Performance

Operations without Arbitrary Regulatory Action records a national average score of **21.90**, making it one of the weaker domains in the EoOS Index.

The score range is especially important. The gap between Maharashtra and Nagaland is 47.22

Table 6.1 National Performance in Operations without Arbitrary Regulatory Action

Metric	Value
National Average	21.90
Highest State Score	Maharashtra (55.56)
Lowest State Score	Nagaland (8.34)
Score Range	47.22

points, the largest kind of variation one would expect in a domain dealing with procedural safeguards. This suggests that schools across India experience highly uneven levels of protection against arbitrary administrative action.

Maharashtra emerges as a clear outlier, with a score of 55.56. Haryana follows with 43.85, while Manipur, Jharkhand, Bihar, Chhattisgarh, Delhi, and Tamil Nadu also perform above the national average. At the lower end, Nagaland, Meghalaya, Goa, Karnataka, Sikkim, West Bengal, Andhra Pradesh, and Uttarakhand record particularly weak scores. The findings suggest that due process protections are not evenly embedded across state regulatory systems.

What Does the Domain Measure?

This domain evaluates whether schools are protected from arbitrary or unpredictable regulatory enforcement. It examines four major areas:

- inspection procedures;
- withdrawal of affiliation;
- withdrawal of approvals and takeover powers;
- parent grievance redressal.

Together, these indicators assess whether schools are provided with procedural safeguards when the State exercises regulatory authority. These safeguards may include notice, hearing, written reasons, appellate remedies, review procedures, and limitations on discretionary decision-making.

The domain therefore does not ask whether the State should regulate schools. It asks whether the exercise of regulatory authority is procedurally fair, predictable, and accountable.

FINDING 1

Procedural Safeguards Are Among the Weakest Elements of School Regulation

The national average score of 21.90 indicates that procedural protections remain relatively weak across states. This finding is significant because procedural safeguards are central to regulatory legitimacy.

Schools may accept regulatory oversight where processes are clear, fair, and reviewable. But where enforcement powers are broad and safeguards are limited, regulation can become unpredictable.

The findings suggest that several state frameworks continue to rely heavily on administrative discretion, particularly in relation to inspections, recognition-related decisions, affiliation withdrawal, and adverse regulatory action. This does not necessarily mean that arbitrary action occurs in practice. The Index is a de jure assessment. It examines what the legal and regulatory framework provides. The finding is therefore narrower but still important: many state frameworks do not sufficiently codify safeguards that would reduce the risk of arbitrary action.

FINDING 2

Maharashtra Is a Procedural Safeguards Outlier

Maharashtra records the highest score in this domain at 55.56, substantially above the national average of 21.90. This makes Maharashtra a notable outlier in the Index. Its performance suggests comparatively stronger codification of enforcement procedures, clearer safeguards, or more structured mechanisms governing adverse regulatory action.

Haryana also performs strongly, with a score of 43.85. Manipur, Jharkhand, Bihar, Chhattisgarh, Delhi, and Tamil Nadu score above the national average, suggesting stronger procedural frameworks relative to most other states. The broader implication is important: procedural fairness is reformable. States can design systems in which inspections, penalties, withdrawals, and grievance proceedings are guided by clearer safeguards.

FINDING 3

Regulatory Clarity Does Not Automatically Protect Schools from Arbitrary Action

A major cross-domain insight emerges when this domain is compared with Regulatory Clarity. Several states that perform reasonably well in clarity do not perform equally well in protection

against arbitrary action. Andhra Pradesh, for instance, ranks third in Regulatory Clarity with a score of 49.96 but records only 11.87 in this domain. Kerala ranks second in Regulatory Clarity with 51.64 but scores 14.57 here.

This is one of the most important findings in the report. It demonstrates that knowing the rules is not the same as being protected during enforcement. A state may publish regulations, codify procedures, and make requirements visible. Yet if inspections, withdrawals, penalties, or adverse decisions are not accompanied by adequate safeguards, schools may continue to face regulatory uncertainty. Clarity tells schools what the rules are. Due process determines how those rules are applied. Both are necessary for a fair regulatory environment.

FINDING 4

Weak Safeguards Increase Regulatory Risk

Where procedural safeguards are weak, schools may face uncertainty in several areas: inspection outcomes, recognition renewal, withdrawal of approvals, penalties, takeover powers, affiliation decisions, and fee-related grievance proceedings.

Such uncertainty has consequences beyond legal procedure. It can affect institutional planning, investment decisions, expansion, teacher recruitment, and long-term sustainability. Schools are less likely to invest in growth when regulatory enforcement is unpredictable or when adverse decisions lack clear routes for review.

This is especially significant for smaller and low-fee private schools, which often lack the financial and legal capacity to absorb regulatory shocks. The findings therefore suggest that protection against arbitrary action should be understood not merely as a legal safeguard, but as a condition for institutional confidence.

FINDING 5

The Core Challenge Is Not Authority, but

Accountable Authority

The State has legitimate authority to regulate schools in the public interest. It may inspect schools, enforce safety norms, regulate recognition, address grievances, and ensure accountability. The issue is not whether such authority should exist. The issue is whether authority is exercised through predictable and accountable procedures.

A well-designed regulatory system does not eliminate state power. It structures that power. It ensures that decisions are made through transparent procedures, that affected institutions receive notice, that reasons are recorded, and that appeal or review mechanisms are available. The findings suggest that many states still need to strengthen this procedural architecture.

What Distinguishes Stronger

Table 6.2 Characteristics of Stronger and Weaker Procedural Safeguard Frameworks

Feature	Stronger Systems	Weaker Systems
Codified Inspection Procedures	✓	✗
Notice Before Adverse Action	✓	✗
Opportunity to Be Heard	✓	✗
Written Reasons for Decisions	✓	✗
Appeal or Review Mechanisms	✓	✗
Limits on Discretionary Powers	✓	✗
Defined Consequences for Violations	✓	✗

Procedural Safeguard Frameworks?

The stronger-performing states in this domain tend to show better legal architecture around enforcement and adverse action.

The findings suggest that procedural fairness depends less on the volume of regulation and more on whether regulatory authority is properly structured.

Governance Implications

This domain reveals an important weakness in India's school regulatory architecture. States have often developed elaborate systems to impose obligations on schools. However, the safeguards governing enforcement of those obligations are much more uneven. This creates a mismatch between regulatory power and procedural accountability.

From an administrative law perspective, this is a critical concern. Schools operate in a sector where state action can have severe consequences: recognition can be withdrawn, affiliation can be affected, management may be subject to intervention, and penalties may be imposed. Where such powers exist, procedural safeguards are not optional. They are central to fair governance. The findings therefore suggest that improving ease of operation requires attention not only to reducing compliance burdens, but also to strengthening due process.

Reform Priorities: Three reform priorities emerge from the findings.

Codify Enforcement Procedures: States should clearly codify inspection processes, recognition withdrawal procedures, affiliation-related adverse action, and takeover-related powers.

Strengthen Procedural Safeguards: Schools should receive notice, an opportunity to respond, written reasons for adverse decisions, and access to appeal or review mechanisms.

Move Towards Risk-Based and Transparent Enforcement: Regulatory enforcement should be guided by objective criteria and risk-based principles rather than broad discretionary authority.

The goal is not to weaken enforcement. The goal is to make enforcement fair, predictable, and accountable.

Conclusion

The findings reveal that protection against arbitrary regulatory action remains uneven across India. Some states provide comparatively stronger procedural safeguards, while others continue to rely on regulatory frameworks where discretionary authority is insufficiently structured. The wide score range in this domain indicates that schools in different states experience very different levels of procedural certainty.

The central lesson is clear. Regulation becomes legitimate when authority is accompanied by accountability.

For schools, ease of operation depends not only on clear rules and manageable compliance obligations, but also on fair enforcement. A regulatory system that is transparent but discretionary remains incomplete. A truly enabling framework must ensure that schools are not only told what the rules are, but are also protected by fair procedures when those rules are applied.

CHAPTER 6

FINANCIAL SUSTAINABILITY AND RESOURCE MOBILISATION

Introduction

Educational institutions are expected to fulfil a growing range of responsibilities. Schools must recruit qualified teachers, maintain infrastructure, comply with safety norms, adopt new technologies, implement curricular reforms, maintain records, respond to inspections, and meet an expanding set of regulatory expectations. Increasingly, they are expected not merely to provide education, but to function as professionally managed institutions capable of delivering high-quality educational outcomes in a rapidly changing environment.

Each of these expectations carries financial implications. Yet discussions on educational governance often focus overwhelmingly on what schools must do, while paying comparatively little attention to how schools are expected to finance those obligations. This omission is significant. Educational quality ultimately depends upon institutional viability. Schools cannot maintain infrastructure without resources. They cannot attract and retain qualified teachers without sustainable revenue streams. They cannot invest in innovation, technology, or improvement without financial capacity.

Financial sustainability is therefore not simply a financial issue. It is a precondition for educational effectiveness. This domain examines whether state regulatory frameworks create conditions that allow schools to mobilise, manage, and utilise resources necessary for long-term institutional sustainability. In doing so, it asks a fundamental governance question: **Can schools realistically sustain themselves while complying with the obligations imposed upon them?**

National Performance

Among all six domains assessed under the Ease of

Operating Schools Index, Financial Sustainability and Resource Mobilisation records the weakest performance.

The findings are striking. The national average

Table 7.1 National Performance in Financial Sustainability and Resource Mobilisation

Metric	Value
National Average	4.71
Highest State Score	Andhra Pradesh (15.90)
Lowest State Score	0.00 (Multiple States)
Score Range	15.90

score of 4.71 is dramatically lower than every other domain assessed under the Index. Even the highest-performing state records a score of only 15.90, while several states score zero. Unlike other domains, where high-performing states demonstrate the existence of relatively enabling regulatory models, Financial Sustainability exhibits weakness across almost the entire country.

This distinction is important. The findings do not point to isolated weaknesses in particular jurisdictions. Rather, they suggest the presence of a broader structural characteristic of school regulation in India. Financial sustainability appears to be the least developed dimension of educational governance nationally.

What Does the Domain Measure?

This domain evaluates whether schools possess the regulatory flexibility necessary to achieve long-term financial sustainability. The assessment examines provisions relating to:

- fee governance;
- resource mobilisation;
- financial flexibility;
- utilisation of institutional resources;
- restrictions affecting revenue generation;
- regulatory provisions influencing institutional sustainability.

Importantly, the domain does not assess whether

schools are profitable or financially successful. Nor does it evaluate affordability. Instead, it assesses whether regulatory frameworks create conditions that enable schools to remain financially viable while fulfilling their educational obligations.

FINDING 1

Financial Sustainability Is the Weakest Dimension of School Regulation in India

The most important finding emerging from the Index is straightforward. Financial Sustainability and Resource Mobilisation records the lowest average score among all six domains. The significance of this finding extends beyond ranking. A national average of 4.71 suggests that financial sustainability has received considerably less regulatory attention than other dimensions of educational governance.

States have developed extensive frameworks governing recognition, compliance, staffing, infrastructure, inspections, reporting, and administrative oversight. By contrast, frameworks governing institutional sustainability remain comparatively underdeveloped. The findings therefore suggest that the regulatory architecture governing schools is substantially more developed in defining obligations than in supporting the capacity required to fulfil those obligations.

FINDING 2

The Governance Identity Problem

One of the most important insights emerging from this domain concerns the unique institutional position occupied by private schools within India's regulatory framework. Private schools are neither conventional businesses nor public institutions. Unlike commercial enterprises, they generally operate on a not-for-profit basis and are subject to restrictions regarding the distribution of surpluses. At the same time, unlike public institutions, they are expected to mobilise their own resources, acquire land, build infrastructure, recruit staff,

absorb operational risks, and sustain day-to-day operations without routine state financing.

The result is a hybrid institutional model. Schools bear many of the financial responsibilities associated with private enterprise while operating under regulatory constraints that significantly limit financial discretion. This creates a fundamental governance tension. Educational institutions are expected to function as financially self-sustaining organisations while being denied many of the financial freedoms available to ordinary enterprises. The findings suggest that this tension remains insufficiently recognised within contemporary regulatory frameworks.

FINDING 3

The Fee Regulation Paradox

Perhaps the most important regulatory development of the past decade has been the emergence of fee regulation frameworks across multiple states. Several states have introduced:

- fee regulation acts;
- fee approval committees;
- fee determination authorities;
- restrictions on fee revisions;
- grievance mechanisms relating to school fees.

These interventions are often justified on grounds of affordability, consumer protection, and prevention of exploitative practices. These objectives are legitimate. However, the findings of the EoOS Index invite a broader question. While considerable regulatory attention has been devoted to controlling how schools generate revenue, comparatively less attention appears to have been devoted to understanding how schools remain financially sustainable. This imbalance is reflected in the domain results.

States increasingly possess sophisticated mechanisms for regulating fee increases. Yet the overall architecture supporting financial sustainability remains exceptionally weak. In many jurisdictions, fee regulation frameworks

establish restrictions without providing transparent principles regarding how schools are expected to recover legitimate costs arising from inflation, infrastructure investments, regulatory compliance requirements, technological upgrades, or improvements in educational quality.

The challenge is not whether fee regulation should exist. The challenge is whether fee regulation is accompanied by equally rigorous thinking on institutional sustainability. The findings suggest that, in many states, the answer remains uncertain.

FINDING 4

Schools Face Expanding Obligations Without Equivalent Financial Flexibility

Across the EoOS Index, a recurring pattern emerges. Schools are expected to satisfy an expanding range of obligations relating to:

- infrastructure;
- safety;
- staffing;
- compliance;
- reporting;
- educational quality.

Each of these requirements carries financial implications. Yet the findings suggest that financial flexibility has not evolved at the same pace as regulatory expectations. The result is what may be described as a sustainability gap. Schools face increasing obligations while operating within frameworks that provide relatively limited support for generating the resources necessary to fulfil those obligations. This tension appears repeatedly throughout the regulatory architecture.

FINDING 5

Sustainability Is a Public Interest Issue

Discussions on financial sustainability are often framed as matters affecting school operators alone. The findings suggest a

broader perspective is required. Institutional sustainability directly affects:

- educational continuity;
- teacher retention;
- infrastructure quality;
- organisational resilience;
- long-term educational outcomes.

Schools that cannot sustain themselves cannot reliably deliver educational services. Consequently, financial sustainability should not be viewed merely as a private institutional concern. It is a public interest issue because sustainable schools are a prerequisite for sustainable educational systems.

The Sustainability Paradox

Taken together, the findings reveal what may be the central paradox of school regulation in India. Schools are expected to meet increasingly sophisticated educational, infrastructural, administrative, and regulatory obligations. At the same time, regulatory frameworks provide comparatively limited support for institutional sustainability. In effect, schools are expected to do more while being given relatively limited flexibility to finance those expectations.

The result is a regulatory architecture that appears considerably more sophisticated in prescribing responsibilities than in supporting viability. This paradox helps explain why Financial Sustainability emerges as the weakest-performing domain in the Index.

What Distinguishes Stronger Financial Frameworks?

Although overall performance remains weak, relatively stronger states tend to exhibit several common characteristics.

The findings suggest that sustainability is strengthened not by the absence of oversight, but by greater predictability, transparency, and institutional resilience.

Table 7.2 Characteristics of Stronger and Weaker Financial Sustainability Frameworks

Feature	Stronger Systems	Weaker Systems
Greater Financial Predictability	✓	✗
Clear Financial Rules	✓	✗
Reduced Regulatory Uncertainty	✓	✗
Greater Institutional Flexibility	✓	✗
Resource Mobilisation Pathways	✓	✗
Transparent Fee Governance Principles	✓	✗
Supportive Sustainability Provisions	✓	✗

Governance Implications

The findings reveal one of the most significant weaknesses in India's school regulatory architecture. States have invested substantial effort in defining obligations, monitoring compliance, regulating institutional behaviour, and controlling financial activity.

They have invested considerably less effort in developing frameworks that enable institutions to sustain those obligations over time. This imbalance creates a regulatory model that is stronger in prescribing responsibilities than supporting viability. Over time, such a model risks undermining the very educational objectives it seeks to advance. Educational quality ultimately depends not only on standards, but also on the ability of institutions to sustain those standards.

Reform Priorities: Three broad reform priorities emerge from the findings.

Align Regulatory Expectations with Institutional Capacity: New obligations should be assessed not only in terms of educational objectives but also in terms of their financial implications.

Reframe Financial Governance Around Sustainability:

Financial governance should increasingly recognise institutional viability as a legitimate policy objective alongside accountability, affordability, and transparency.

Develop Transparent and Principle-Based Fee Governance:

Where fee regulation frameworks exist, they should operate through transparent, predictable, and objective principles that recognise legitimate costs, inflationary pressures, educational investments, and institutional sustainability.

The objective is not deregulation. The objective is sustainable regulation.

Conclusion

The findings reveal that Financial Sustainability and Resource Mobilisation is the weakest dimension of school regulation in India. The challenge is not simply that schools face financial constraints. The deeper issue is that regulatory systems appear considerably more developed in controlling financial activity than in enabling institutional sustainability. The findings reveal a regulatory architecture that has devoted substantial attention to what schools must do, but comparatively limited attention to how schools are expected to sustain themselves while doing it.

This imbalance may represent the single most important governance challenge identified by the Ease of Operating Schools Index. Ultimately, educational institutions cannot continuously absorb expanding obligations without corresponding financial capacity. If educational governance is to move beyond compliance towards long-term improvement, sustainability must become a central consideration rather than a peripheral one. Schools can only deliver educational outcomes if they possess the resources necessary to remain viable. A regulatory framework that overlooks this reality risks weakening the very institutions upon which educational reform depends.

Key Insight

No other domain exhibits a gap as large as that observed in Financial Sustainability and Resource Mobilisation. The findings suggest that while states have invested considerable effort in regulating schools, substantially less attention has been devoted to creating conditions that allow schools to remain financially sustainable. This imbalance may represent the single most important governance challenge identified by the EoOS Index.

CHAPTER 7

SCHOOL LIFECYCLE OPERATIONS

Introduction

Educational institutions are not static entities. Schools evolve continuously. They expand enrollment, add grades, introduce new programmes, upgrade facilities, relocate campuses, modify organisational structures, and respond to changing demographic, technological, and educational realities. In many cases, schools must adapt simply to remain viable.

A school that serves a small rural community today may seek to expand tomorrow. An institution established decades ago may need to modernise infrastructure, revise operational arrangements, introduce new educational offerings, or restructure governance systems in response to changing circumstances. The ability to undertake such transitions is not merely an administrative issue.

It is a question of institutional adaptability. Educational systems function most effectively when schools possess the capacity to respond to changing needs while remaining accountable to public objectives. This domain examines whether regulatory frameworks support schools throughout their institutional lifecycle. In doing so, it asks a fundamental question: **Can schools evolve as their circumstances evolve?**

National Performance

Among the six domains assessed under the Ease of Operating Schools Index, School Lifecycle Operations records the second-lowest national average score.

The findings are revealing. Even the highest-performing state records a score of only 18.00, while numerous states record scores approaching zero. As with Financial Sustainability, the weakness observed in this domain is not confined to a small group of jurisdictions. Rather, it appears across much of the country. This suggests that lifecycle governance remains one of the least

Table 8.1 National Performance in School Lifecycle Operations

Metric	Value
National Average	7.13
Highest State Score	Telangana (18.00)
Lowest State Score	0.00 (Multiple States)
Score Range	18.00

developed dimensions of school regulation nationally. The challenge is therefore not merely that schools face procedural barriers. The deeper challenge is that regulatory systems appear considerably more developed in governing school establishment than in governing school evolution.

What Does the Domain Measure?

This domain evaluates whether schools possess the regulatory flexibility necessary to navigate key institutional transitions. The assessment examines provisions relating to:

- expansion of capacity;
- addition of grades or sections;
- modification of educational offerings;
- relocation;
- transfer of management;
- closure or exit procedures;
- other lifecycle transitions affecting institutional continuity.

Together, these indicators assess whether schools can adapt to changing circumstances without facing excessive regulatory friction. The domain therefore focuses not on the operation of schools as they currently exist, but on their ability to evolve over time.

FINDING 1

Lifecycle Governance Is One of the Least Developed Areas of School Regulation

The national average score of 7.13 suggests that regulatory frameworks governing institutional transitions remain significantly underdeveloped. This finding is important because schools are not static organisations. Over time, institutions must

respond to:

- demographic change;
- shifts in demand;
- urbanisation;
- technological developments;
- educational innovation;
- financial pressures.

Yet the findings suggest that regulatory systems devote relatively limited attention to facilitating such adaptation. The result is a governance framework that appears considerably more effective at controlling entry than supporting evolution.

FINDING 2

Schools Are Regulated as Static Institutions

One of the most significant insights emerging from this domain is that regulatory frameworks often appear to treat schools as fixed entities rather than evolving organisations. Many regulations implicitly assume that schools will continue operating indefinitely under the same structure, at the same location, with the same configuration of programmes and facilities. The reality is very different. Schools grow. Schools contract. Schools merge. Schools relocate. Schools introduce new educational models. Schools respond to changing circumstances. The findings suggest that regulatory systems have not always evolved to accommodate these realities. As a result, schools frequently encounter significant procedural friction when attempting to undertake relatively routine institutional transitions.

FINDING 3

The Regulatory State Is Better at Governing Entry Than Change

A recurring pattern across the EoOS dataset is the relative sophistication of frameworks governing establishment and recognition. States generally possess detailed provisions governing:

- recognition;
- infrastructure requirements;
- staffing norms;
- compliance obligations;

- approvals.

By contrast, lifecycle transitions often receive comparatively limited regulatory attention. This imbalance suggests that educational governance has historically focused on controlling who enters the sector rather than how institutions evolve once they are established. The result is a regulatory architecture that is strong at regulating beginnings but relatively weak at regulating transitions.

FINDING 4

Weak Lifecycle Frameworks Can Discourage Innovation

The implications of lifecycle governance extend beyond administrative efficiency. Schools frequently need to adapt in order to innovate. New educational programmes, technological investments, alternative pedagogical models, capacity expansion, and organisational restructuring often require institutions to modify existing arrangements.

Where lifecycle processes are uncertain, fragmented, or administratively burdensome, schools may become less willing to undertake such changes. The findings therefore suggest that lifecycle governance should not be viewed merely as an operational issue. It is also a question of institutional dynamism. Educational systems that wish to encourage innovation must ensure that schools possess reasonable pathways for adaptation.

FINDING 5

Exit Is a Neglected Dimension of Educational Governance

Perhaps the most overlooked aspect of lifecycle regulation concerns institutional exit. Educational governance frequently focuses on establishment, recognition, and compliance. Considerably less attention is devoted to what happens when schools cease operations, transfer management, merge with other institutions, or otherwise exit the sector. Yet closure and transition are natural components of any

educational ecosystem.

The absence of clear and predictable exit pathways can create uncertainty for schools, students, staff, and regulators alike. The findings suggest that lifecycle governance remains incomplete unless it addresses not only entry and operation, but also transition and exit.

The Adaptability Deficit

Taken together, the findings reveal what may be described as an **Adaptability Deficit** within school regulation. Across India, schools operate within systems that are generally capable of defining obligations, monitoring compliance, and regulating institutional behaviour. However, those same systems often provide relatively limited support for institutional adaptation. In effect, schools are expected to respond to changing educational realities while operating within regulatory frameworks that remain comparatively rigid. The result is a mismatch between the dynamic nature of educational institutions and the static assumptions embedded within many regulatory systems.

What Distinguishes Stronger Lifecycle Frameworks?

Although overall performance remains weak, relatively stronger states tend to share several common characteristics.

The findings suggest that schools benefit less from reduced oversight than from reduced uncertainty. Lifecycle flexibility is ultimately a question of predictability.

Governance Implications

The findings reveal another important imbalance within India’s school regulatory architecture. States have invested considerable effort in regulating school establishment and ongoing compliance. Far less effort has been devoted to creating frameworks that support institutional adaptation over time. This imbalance reflects a broader regulatory philosophy that treats schools primarily as entities requiring supervision

Table 8.2 Characteristics of Stronger and Weaker Lifecycle Frameworks

Feature	Stronger Systems	Weaker Systems
Clear Expansion Procedures	✓	✗
Defined Transition Pathways	✓	✗
Predictable Approval Processes	✓	✗
Reduced Procedural Fragmentation	✓	✗
Transparent Closure Mechanisms	✓	✗
Flexibility for Institutional Adaptation	✓	✗

rather than organisations requiring flexibility. Yet schools operate in changing environments. A regulatory system that cannot accommodate change risks becoming increasingly disconnected from the realities of educational provision.

Reform Priorities: Three priorities emerge from the findings.

Recognise Schools as Dynamic Institutions: Regulatory frameworks should acknowledge that schools evolve over time and require pathways for adaptation.

Simplify Lifecycle Transitions: Expansion, restructuring, relocation, transfer, and closure processes should be governed through clear and predictable procedures.

Align Regulation with Institutional Reality: Lifecycle governance should reflect how schools actually operate rather than how regulations assume they operate.

The objective is not deregulation. The objective is adaptive regulation.

Conclusion

The findings reveal that School Lifecycle Operations is one of the weakest dimensions of school regulation in India. The challenge is not simply procedural complexity. The deeper issue is that regulatory systems appear considerably more developed in governing institutional establishment than institutional evolution. Schools are dynamic organisations operating within changing educational, demographic, technological, and economic environments. Yet many regulatory frameworks continue to treat them as largely static entities.

The central lesson emerging from this domain is therefore straightforward. Educational institutions cannot remain effective if they are unable to adapt. A regulatory system that facilitates entry but constrains evolution risks limiting the very dynamism that educational improvement requires. If educational governance is to become more enabling, it must support not only the creation of schools, but also their ability to evolve over time.

CHAPTER 8 INSTITUTIONAL AUTONOMY

Introduction

Every regulatory system must answer a fundamental question: Who should make decisions? Should decisions regarding the operation of schools be made primarily by regulators, or should they be made by educational institutions themselves? This question lies at the heart of educational governance.

Governments have legitimate responsibilities to establish standards, protect student welfare, ensure accountability, and safeguard public interests. At the same time, schools are complex institutions operating within diverse educational, social, and economic contexts. They are often best positioned to understand their own needs, challenges, and opportunities. The challenge for policymakers is therefore not whether schools should be regulated.

The challenge is determining which decisions should remain with the State and which decisions should be entrusted to institutions. Institutional autonomy sits at the centre of this debate. This domain examines the extent to which schools possess meaningful authority over their internal affairs and operational decisions. In doing so, it asks a fundamental governance question: **Can schools govern themselves within the existing regulatory framework?**

National Performance

Institutional Autonomy records a national average score of 20.72, making it one of the weaker-performing domains in the Ease of Operating Schools Index.

The findings reveal substantial variation across states. Some states provide schools with comparatively greater flexibility in areas relating to governance, management, and institutional decision-making. Others maintain significantly more restrictive frameworks.

The nearly thirty-nine-point gap between the highest and lowest performers suggests that schools across India operate under markedly different assumptions regarding institutional authority. This variation is particularly significant because autonomy affects virtually every aspect of school operations. The ability of institutions to recruit staff, organise governance structures, allocate resources, respond to local needs, and pursue educational innovation is shaped by the degree of discretion available to them.

What Does the Domain Measure?

This domain evaluates the extent to which schools possess authority over key institutional decisions. The assessment examines provisions relating to:

- governance and management structures;
- decision-making authority;
- institutional flexibility;
- administrative discretion available to schools;
- restrictions affecting internal operations;
- broader questions of institutional self-governance.

Importantly, autonomy does not imply the absence of accountability. The domain does not assess whether schools operate without oversight. Rather, it evaluates whether institutions retain meaningful decision-making authority within accountable regulatory frameworks.

FINDING 1

Institutional Autonomy Remains Limited Across Much of India

Table 9.1 National Performance in Institutional Autonomy

Metric	Value
National Average	20.72
Highest State Score	Haryana (43.95)
Lowest State Score	Uttarakhand (5.13)
Score Range	38.82

The national average score of 20.72 suggests that institutional autonomy remains relatively constrained across many states. This finding is important because autonomy is not merely a governance preference. It is increasingly recognised as an important component of institutional effectiveness. Schools function in highly diverse contexts. Educational needs vary across regions, communities, and student populations. Effective decision-making often requires flexibility, responsiveness, and local knowledge.

Yet the findings suggest that many regulatory systems continue to rely on relatively centralised approaches to educational governance. Institutional discretion frequently remains limited in comparison to the degree of control exercised through regulatory frameworks.

FINDING 2

The Regulatory State Often Trusts Schools to Deliver Outcomes but Not to Make Decisions

One of the most significant insights emerging from the Index concerns the relationship between responsibility and authority. Schools are expected to deliver educational outcomes, maintain infrastructure, comply with standards, recruit staff, satisfy regulatory requirements, and respond to evolving expectations.

In short, schools carry substantial responsibility. Yet the findings suggest that they often possess comparatively limited authority over many decisions affecting their operations. This creates a governance imbalance. Institutions are expected to be accountable for outcomes while operating within frameworks that provide limited discretion regarding how those outcomes are achieved. The result is a system in which responsibility is frequently devolved further than authority.

FINDING 3

Autonomy Appears Significantly Weaker Than Regulatory Clarity

A particularly important cross-domain finding emerges when Institutional Autonomy is compared with Regulatory Clarity. Regulatory Clarity records a national average of 37.36, while Institutional Autonomy records 20.72. The contrast suggests that states have generally devoted greater regulatory attention to defining institutional obligations than to expanding institutional discretion. This does not imply that autonomy and clarity are substitutes. Rather, it highlights an important feature of the regulatory architecture. States appear considerably more comfortable specifying what schools must do than determining what schools should be free to decide.

FINDING 4

Stronger Regulatory Systems Demonstrate That Accountability and Autonomy Can Coexist

Perhaps the most important lesson emerging from the domain is that accountability and autonomy need not be competing objectives. Several higher-performing states demonstrate that schools can be granted meaningful flexibility while remaining subject to regulatory oversight and public accountability. This finding challenges a common assumption within educational governance. The choice is not between complete state control and complete institutional freedom. The more relevant question is how responsibilities should be allocated between regulators and institutions. The strongest-performing frameworks suggest that autonomy and accountability can reinforce rather than undermine one another.

FINDING 5

Autonomy Is Ultimately About Trust

Beneath the technical provisions examined in this domain lies a broader governance question. To what extent does the regulatory system trust educational institutions? Every restriction on institutional decision-making reflects an underlying judgement regarding

where authority should reside. Some regulatory frameworks assume that important decisions should remain with regulators. Others assume that institutions themselves are capable of exercising professional judgement within broad accountability frameworks. The findings suggest that states differ significantly in how they answer this question. Institutional autonomy therefore reflects more than administrative design. It reflects deeper assumptions regarding trust, responsibility, and the role of educational institutions within society.

The Trust Deficit

Taken together, the findings reveal what may be described as a **Trust Deficit** within educational governance. Across India, schools are expected to comply with increasingly sophisticated regulatory requirements, deliver educational outcomes, and satisfy expanding public expectations.

Yet regulatory frameworks often remain hesitant to devolve meaningful decision-making authority. In effect, schools are trusted to achieve results but not always trusted to determine how those results should be achieved. This tension lies at the heart of many contemporary debates regarding educational governance. It also helps explain why Institutional Autonomy remains one of the weaker-performing domains in the Index.

What Distinguishes Stronger Autonomy Frameworks?

The strongest-performing states tend to exhibit several common characteristics.

The findings suggest that autonomy is strengthened not through deregulation, but through clearer allocation of authority and responsibility.

Governance Implications

The findings reveal an important feature of India's school regulatory architecture. States have

Table 9.2 Characteristics of Stronger and Weaker Autonomy Frameworks

Feature	Stronger Systems	Weaker Systems
Greater Institutional Flexibility	✓	✗
Reduced Administrative Micromanagement	✓	✗
Clear Allocation of Responsibilities	✓	✗
Strong Accountability Mechanisms	✓	✗
Greater Managerial Discretion	✓	✗
Predictable Governance Frameworks	✓	✗

invested substantial effort in defining obligations, monitoring compliance, and regulating institutional behaviour. They have invested comparatively less effort in creating frameworks that empower institutions to make decisions. This imbalance reflects a broader tendency within educational governance to equate accountability with control. However, the strongest-performing states suggest a different possibility.

Accountability can be achieved through outcomes, transparency, and procedural safeguards rather than extensive operational control. The challenge is therefore not whether schools should be accountable. The challenge is whether accountability can be achieved while preserving institutional agency.

Reform Priorities: Three priorities emerge from the findings.

Clarify the Appropriate Boundary Between Regulation and Management: Regulatory systems should focus on public-interest objectives while avoiding unnecessary involvement in routine institutional decisions.

Strengthen Accountability Through Outcomes Rather Than Micromanagement: Governance

frameworks should increasingly emphasise transparency, reporting, and performance rather than detailed operational control.

Build Trust-Based Regulatory Systems:

Educational institutions should be viewed as partners in achieving educational objectives rather than solely as entities requiring supervision.

The objective is not deregulation. The objective is responsible autonomy.

Conclusion

The findings reveal that Institutional Autonomy remains one of the weaker dimensions of school regulation in India. The challenge is not merely administrative. It reflects a deeper question regarding the relationship between educational institutions and the State. Schools are expected to deliver outcomes, manage resources, respond to community needs, and continuously improve educational quality. Yet many continue to operate within frameworks that provide relatively limited decision-making authority.

The central lesson emerging from this domain is therefore straightforward. Educational institutions cannot be fully effective if they are denied meaningful agency. The strongest-performing regulatory systems demonstrate that accountability and autonomy are not opposing principles. Rather, they are complementary components of effective governance. The future challenge for educational reform is not whether schools should be regulated. It is whether regulation can evolve from a framework centred primarily on control towards one that combines accountability, trust, institutional responsibility, and educational excellence.

Ultimately, the quality of educational governance depends not only on the standards imposed upon schools, but also on the extent to which schools are empowered to meet those standards.

CHAPTER 9

SCHOOL REGULATION AFTER NEP 2020

Introduction

The National Education Policy (NEP) 2020 is often discussed in the context of curriculum reform, foundational learning, multidisciplinary education, teacher development, and educational quality. Less frequently acknowledged is the fact that NEP 2020 is also one of India's most significant governance reform documents.

Beyond its educational objectives, the policy articulates a clear vision for the future of educational regulation. It recognises that educational quality is influenced not only by what schools teach, but also by the regulatory environment within which they operate. Accordingly, NEP 2020 seeks to move educational governance towards a framework characterised by transparency, institutional autonomy, separation of functions, reduced compliance burdens, and what it famously describes as “light but tight” regulation.

In many respects, the Ease of Operating Schools (EoS) Index provides an opportunity to assess the extent to which this vision is reflected in contemporary state-level regulatory frameworks. The purpose of this chapter is not to evaluate the implementation status of NEP 2020 as a whole. Rather, it is to examine how the regulatory architecture revealed by the EoS Index aligns with the governance philosophy articulated by the policy.

The findings suggest a nuanced picture. States have made meaningful progress in improving regulatory visibility, codification, and administrative clarity. However, reforms relating to institutional autonomy, independent regulation, financial sustainability, and lifecycle flexibility remain considerably less developed. The result is a regulatory landscape that appears to be moving towards the vision articulated in NEP 2020, but has not yet fully arrived there.

NEP 2020 and the Idea of an Enabling Regulatory State

One of the most important contributions of NEP 2020 is its recognition that regulation should serve educational outcomes rather than become an end in itself. Historically, educational governance in India has often relied upon detailed procedural controls, extensive compliance requirements, multiple approval mechanisms, and administrative supervision. While many of these measures were introduced with legitimate objectives, their cumulative effect frequently resulted in regulatory systems that prioritised procedural compliance over institutional effectiveness. NEP 2020 seeks to rebalance this relationship. The policy advocates a governance model characterised by:

- transparency and predictability;
- reduced regulatory burden;
- institutional autonomy;
- outcome-oriented accountability;
- professional regulation;
- separation of policy, operations, regulation, and academic functions.

Taken together, these principles reflect a broader shift from control-centric regulation towards enablement-oriented governance. The EoS findings provide an opportunity to examine how far this transition has progressed.

FINDING 1

Progress on Transparency and Codification

The strongest area of alignment between the EoS findings and the aspirations of NEP 2020 relates to regulatory visibility. Regulatory Clarity, Predictability and Accessibility records the highest national average score among all six domains. Across most states, regulatory requirements are increasingly codified through statutes, rules, notifications, circulars, and administrative frameworks. Compared with earlier periods, schools today generally operate within more formalised regulatory environments.

This trend represents an important achievement. Transparent and identifiable rules reduce uncertainty, improve predictability, and strengthen accountability. The findings suggest that states have made meaningful progress in moving towards more rule-based systems of governance. In this respect, many jurisdictions appear broadly aligned with NEP's aspiration for transparent and predictable regulatory frameworks. However, codification alone does not constitute regulatory reform. The more difficult challenge lies in transforming how regulation functions.

FINDING 2

The “Light but Tight” Vision Remains Incomplete

Perhaps the most significant governance concept introduced by NEP 2020 is the idea of “light but tight” regulation. The phrase reflects an important balance. Regulation should be “tight” in protecting educational standards, student welfare, transparency, and accountability. At the same time, it should be “light” in minimising unnecessary procedural burdens, excessive controls, and administrative friction.

The EoOS findings suggest that progress towards this balance remains uneven. States appear to have invested considerable effort in strengthening the “tight” dimensions of regulation. Regulatory Compliance and Regulatory Clarity emerge as two of the strongest-performing domains in the Index. By contrast, Financial Sustainability, School Lifecycle Operations, and Institutional Autonomy record some of the weakest scores. This contrast reveals an important pattern.

The architecture of oversight has evolved considerably faster than the architecture of enablement. In effect, many regulatory systems have become tighter without becoming correspondingly lighter. The challenge identified by the Index is therefore not the absence of regulation, but the absence of balance.

FINDING 3

The Unfinished Agenda of Institutional Autonomy

NEP 2020 repeatedly emphasises the importance of institutional autonomy. The policy recognises that educational institutions operate most effectively when they possess the flexibility necessary to respond to local contexts, innovate, allocate resources, and make decisions consistent with their educational objectives. The EoOS findings suggest that this agenda remains substantially incomplete. Institutional Autonomy records a national average score of only 20.72.

Across many states, schools continue to operate within frameworks characterised by significant administrative controls and limited decision-making flexibility. This finding does not imply that schools should operate without accountability. Rather, it suggests that the balance between accountability and autonomy remains tilted towards control. The challenge for policymakers is therefore not whether autonomy should exist, but how autonomy can be expanded while preserving public accountability.

FINDING 4

The Missing SSSA Reform

Among the most ambitious governance reforms proposed under NEP 2020 was the creation of State School Standards Authorities (SSSAs). The rationale was straightforward. Historically, state education departments have often performed multiple functions simultaneously. They have acted as policymakers, operators, regulators, funders, and evaluators. This concentration of responsibilities creates potential conflicts of interest and can undermine the effectiveness of regulation.

NEP 2020 sought to address this challenge by recommending the establishment of independent State School Standards Authorities responsible for school regulation and standards-setting. At its core, the SSSA proposal was not merely an administrative reform. It was an institutional reform designed to separate functions,

professionalise regulation, and create greater credibility within educational governance. The EoOS findings suggest that this transition remains incomplete across most states.

While several states have formally notified or designated institutions to perform SSSA-related functions, genuinely independent regulatory structures remain relatively uncommon. Instead, many jurisdictions have assigned these responsibilities to existing educational bodies. This raises important questions regarding the extent to which the broader objectives of the reform have been realised.

The SCERT-as-SSSA Question

One of the most notable trends emerging across states has been the designation of State Councils of Educational Research and Training (SCERTs) to perform SSSA-related functions. This approach may offer administrative convenience. However, it also raises important governance considerations. Traditionally, SCERTs have served as academic and developmental institutions. Their primary responsibilities include curriculum development, teacher education, pedagogical support, research, academic guidance, and educational innovation.

Regulation is fundamentally different. A regulator is expected to establish standards, monitor compliance, conduct oversight, assess institutional performance, and, where necessary, exercise enforcement authority. These functions require a distinct institutional orientation. The governance logic underpinning the SSSA proposal was precisely to separate developmental functions from regulatory functions. When the same institution is expected to simultaneously support schools and regulate schools, the distinction between developmental and regulatory roles may become blurred. The issue is not whether SCERTs possess technical expertise. Many do. The issue is whether assigning regulatory responsibilities to academic support institutions advances the separation-of-functions principle that NEP 2020 sought to establish. The findings suggest that this question remains unresolved.

FINDING 5

Administrative Modernisation Has Outpaced Regulatory Transformation

Another important insight emerging from the Index is that administrative modernisation appears to have progressed more rapidly than regulatory reform. Across states, there is evidence of:

- digitised processes;
- online portals;
- electronic submissions;
- formalised procedures;
- improved documentation systems.

These developments are valuable and should not be understated. However, digitisation and regulatory reform are not synonymous. A complex process does not necessarily become enabling simply because it is online. Similarly, an excessive compliance burden remains excessive even when it is digitised. The findings suggest that many states have focused successfully on improving the administration of regulation while making comparatively less progress in transforming the underlying regulatory philosophy.

FINDING 6

The Persistence of Control-Centric Regulation

The findings of the EoOS Index reveal three recurring patterns:

- a Sustainability Deficit;
- an Adaptability Deficit;
- a Trust Deficit.

Taken together, these patterns suggest that many state regulatory frameworks remain organised around assumptions of control rather than enablement. Schools are expected to comply with extensive requirements, but often possess limited flexibility to sustain themselves financially, adapt institutionally, or exercise meaningful autonomy. This does not imply that regulators lack reform intent. Rather, it suggests that the inherited architecture of school regulation continues to shape contemporary governance arrangements.

The transition towards trust-based regulation envisioned by NEP 2020 therefore remains a work in progress.

Towards the Next Generation of Regulatory Reform

The findings suggest that the next phase of educational reform may require a shift in focus. The first generation of reforms focused primarily on expanding educational access. The second generation focused increasingly on accountability, standards, and compliance. The emerging challenge is to build regulatory systems capable of combining accountability with institutional enablement. This requires moving beyond the traditional debate between regulation and deregulation. The question is not whether schools should be regulated.

The question is whether regulation can be designed in ways that strengthen educational quality while simultaneously supporting institutional sustainability, innovation, adaptability, and autonomy. That is ultimately the vision reflected in NEP 2020.

Conclusion

The findings of the Ease of Operating Schools Index suggest that India's regulatory architecture is undergoing a gradual but incomplete transition. States have made meaningful progress in improving transparency, codification, procedural visibility, and administrative modernisation. These developments represent important steps towards the governance philosophy articulated in NEP 2020.

At the same time, substantial gaps remain. Institutional autonomy remains constrained. Financial sustainability remains weak. Lifecycle flexibility remains limited. The separation-of-functions agenda underpinning the SSSA reform remains only partially realised across most states. The challenge facing policymakers is therefore no longer whether regulatory reform is necessary. The challenge is how to complete the transition

from compliance-centric regulation towards an enabling regulatory framework that preserves accountability while expanding institutional capacity. Viewed through the lens of the EoOS Index, that transition may well represent the next frontier of school governance reform in India.

CHAPTER 10

THE ANATOMY OF SCHOOL REGULATION IN INDIA

Introduction

The six domains of the Ease of Operating Schools Index examine different dimensions of school regulation. Individually, each domain provides important insights into specific aspects of the regulatory environment governing schools. Collectively, however, they reveal something much more significant. Taken together, the findings provide a window into the underlying architecture of school regulation in India. The purpose of this chapter is therefore not to present additional rankings or state comparisons. Rather, it is to identify the broader patterns that emerge when the findings are examined as a whole. Three themes stand out.

First, school regulation in India appears considerably more developed in defining obligations than in enabling institutions.

Second, regulatory systems appear stronger in governing compliance than in supporting sustainability and adaptation.

Third, many regulatory frameworks continue to be organised around assumptions of administrative control rather than institutional trust.

These patterns reveal important insights about how school regulation has evolved and where future reform efforts may need to focus.

The Control–Enablement Imbalance

The most significant finding emerging from the Index is the contrast between the strongest and weakest domains.

The pattern is striking. The strongest-performing domains are those concerned primarily with defining obligations and regulating behaviour. The weakest-performing domains are those concerned with enabling institutions.

Table 10.2 National Domain Performance

Domain	National Average
Regulatory Clarity, Predictability and Accessibility	37.36
Regulatory Compliance	33.32
Operations without Arbitrary Regulatory Action	21.90
Institutional Autonomy	20.72
School Lifecycle Operations	7.13
Financial Sustainability and Resource Mobilisation	4.71

States perform relatively well in:

- making rules visible;
- specifying compliance requirements;
- codifying administrative obligations.

States perform considerably less well in:

- supporting financial sustainability;
- enabling institutional adaptation;
- granting operational autonomy.

The findings therefore reveal what may be described as a Control–Enablement Imbalance. India’s school regulatory architecture appears substantially more developed in regulating schools than in enabling schools. This observation should not be interpreted as an argument against regulation. Rather, it suggests that regulatory development has been uneven across governance functions. The challenge is not the existence of regulation. The challenge is the absence of an equivalent emphasis on enablement.

The Rise of Compliance–Centric Governance

A second pattern emerges from the relationship between Regulatory Compliance and the remaining domains. The Index suggests that compliance has become one of the central organising principles of school regulation. Across states, regulatory systems devote considerable attention to:

- recognition requirements;

- infrastructure standards;
- staffing norms;
- reporting obligations;
- inspections;
- approvals;
- documentation.

These mechanisms play important roles in ensuring accountability and maintaining educational standards. However, the findings suggest that compliance has often become the dominant lens through which schools are governed. The result is what may be described as a Compliance-Centric Regulatory Model. Within this model, regulatory success is frequently measured by the ability to monitor institutions rather than by the ability to enable institutions. This helps explain why Regulatory Compliance records one of the highest domain scores while Financial Sustainability and School Lifecycle Operations record some of the lowest. The architecture of oversight has evolved faster than the architecture of enablement.

The Sustainability Deficit

The weakest-performing domain in the Index is Financial Sustainability and Resource Mobilisation. This finding deserves particular attention. Financial sustainability is not simply another regulatory issue. It is a foundational condition for institutional viability. Schools cannot recruit teachers, maintain infrastructure, invest in technology, or improve educational quality without adequate financial resources. Yet the findings suggest that regulatory frameworks devote relatively limited attention to the question of how schools are expected to sustain themselves over time. This creates what may be described as a Sustainability Deficit.

Schools are expected to comply with an expanding range of obligations while operating within frameworks that provide comparatively limited support for resource mobilisation and financial resilience. The result is a regulatory architecture that specifies what institutions must do without adequately addressing how those obligations

are to be financed. This deficit is particularly significant because it affects the long-term viability of educational institutions themselves.

The Adaptability Deficit

The findings relating to School Lifecycle Operations reveal a second structural weakness. Educational institutions are dynamic organisations. They expand, contract, relocate, restructure, innovate, and respond to changing educational needs. However, the findings suggest that regulatory frameworks often treat schools as relatively static entities. States generally possess detailed provisions governing establishment and recognition. Far fewer possess equally developed frameworks governing institutional evolution. This creates what may be described as an **Adaptability Deficit**.

Schools operate in dynamic environments but often encounter regulatory systems designed around static assumptions. The result is increased friction when institutions seek to adapt, innovate, or respond to changing circumstances. In a rapidly evolving educational landscape, this deficit may become increasingly significant.

The Trust Deficit

The findings relating to Institutional Autonomy reveal a third structural challenge. Schools are expected to deliver educational outcomes, satisfy regulatory requirements, maintain standards, and serve students effectively. Yet many continue to operate within frameworks that provide relatively limited decision-making authority. This creates what may be described as a **Trust Deficit**.

Institutions are entrusted with responsibility but not always with corresponding authority. The result is a governance model in which accountability is frequently accompanied by extensive operational control. The strongest-performing states suggest that this trade-off may be unnecessary. Accountability and autonomy are not mutually exclusive. Indeed, the findings indicate that effective governance often depends upon balancing the two.

The Governance Identity Problem

The findings also reveal a deeper tension within school regulation. Private schools occupy a distinctive position within India's regulatory framework. Unlike public institutions, they are expected to mobilise their own resources, absorb operational risks, and sustain themselves financially. Unlike commercial enterprises, they operate within frameworks that impose significant restrictions on financial discretion and institutional autonomy. The result is a hybrid institutional model. Schools bear many of the responsibilities associated with private organisations while operating under constraints that limit their ability to function as fully autonomous institutions. This creates what may be described as a **Governance Identity Problem**.

Regulatory systems often expect schools to behave like independent institutions without granting them the flexibility typically associated with institutional independence. This tension appears repeatedly across multiple domains of the Index.

The Fee Regulation Paradox

The emergence of fee regulation frameworks across many states illustrates this broader challenge. In recent years, several states have introduced increasingly sophisticated mechanisms governing fee determination and fee revisions. These interventions are frequently justified on grounds of affordability and consumer protection. However, the findings reveal an important asymmetry. States have increasingly developed mechanisms to regulate how schools generate revenue, while devoting comparatively less attention to how schools sustain themselves. The result is what may be described as the **Fee Regulation Paradox**.

Regulatory systems often possess more detailed frameworks for controlling revenues than for supporting sustainability. The challenge is not whether fee regulation should exist. The challenge is whether financial governance has become disproportionately focused on control at the

expense of viability.

Beyond Regulation versus Deregulation

One of the most important lessons emerging from the Index is that educational governance should not be framed as a choice between regulation and deregulation. The strongest-performing states do not necessarily regulate less. Rather, they appear to regulate differently. Their frameworks are generally characterised by:

- greater clarity;
- stronger predictability;
- reduced procedural fragmentation;
- clearer allocation of responsibilities;
- greater institutional flexibility.

The findings therefore suggest that the future challenge for educational governance is not reducing regulation but improving regulatory design. The question is not how much regulation exists. The more important question is whether regulation enables institutions to fulfil their educational mission.

Towards an Enabling Regulatory State

Taken together, the findings suggest that school regulation in India is at an inflection point. The past several decades have witnessed significant growth in the sophistication of regulatory systems governing schools. States have developed increasingly detailed frameworks governing recognition, compliance, oversight, inspections, and accountability. The next stage of reform may require a different emphasis.

Rather than focusing exclusively on how schools should be regulated, policymakers may need to devote greater attention to how schools can be enabled. This does not imply abandoning accountability. It implies recognising that accountability and enablement are complementary rather than competing objectives. The strongest educational systems are not those that choose between regulation and autonomy. They are those that successfully balance both.

Conclusion

The findings of the Ease of Operating Schools Index reveal a regulatory architecture characterised by an important structural imbalance. Across states, regulatory systems appear considerably more developed in defining obligations, monitoring compliance, and exercising oversight than in supporting sustainability, adaptability, and institutional autonomy. The result is a governance framework marked by three interrelated deficits:

- a Sustainability Deficit;
- an Adaptability Deficit;
- a Trust Deficit.

Taken together, these deficits help explain many of the challenges identified throughout the Index. The central lesson emerging from the findings is therefore straightforward. The future challenge for school regulation in India is not simply improving compliance or strengthening oversight. It is building a regulatory architecture that combines accountability with enablement, oversight with flexibility, and public interest with institutional sustainability. Ultimately, schools can only deliver educational outcomes if they are not merely regulated, but also empowered to succeed.

The background is a solid yellow color with a series of thin, wavy, concentric lines that create a sense of depth and movement, resembling a stylized wave or a series of overlapping circles.

STATE PROFILES



Andhra Pradesh

EoOS Index 2026 – State Profile

SCORECARD



#3
National
Rank

Among all states assessed
under the EoOS Index



27.11
Overall
EoOS Score

Composite score out of 100



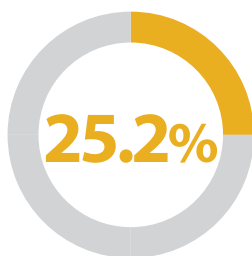
20.86
National
Average

All-India benchmark

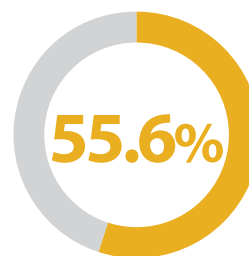


84,54,817
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Andhra Pradesh	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	49.96	37.36	#3
 Regulatory Compliance	40.75	33.32	#5
 Operations without Arbitrary Regulatory Action	11.87	21.90	#24
 Financial Sustainability & Resource Mobilisation	15.90	4.71	#1
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	37.50	20.72	#2

Leading Performer

Ranked 3rd nationally and performs significantly above the national average.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Prior permission is required for establishing a school. Recognition follows a staged process linked to infrastructure, compliance, and continued fulfilment of prescribed conditions.



GOVERNANCE & STAFFING

School upgradation and teacher appointments require regulatory approval. Recruitment procedures and safeguards relating to staff dismissal are prescribed by law.



FINANCIAL REGULATION

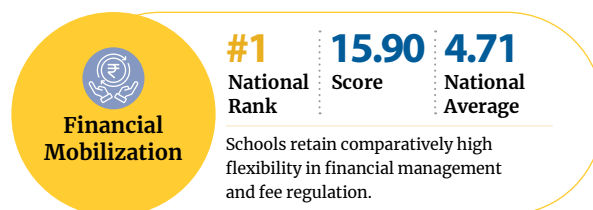
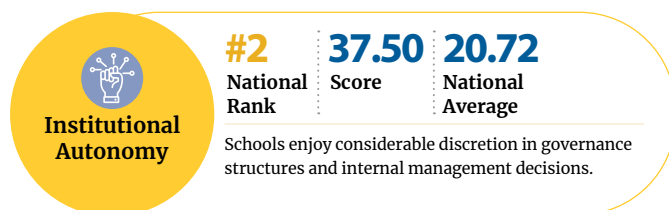
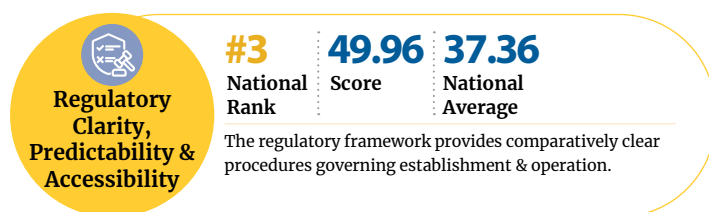
Schools enjoy relatively high flexibility in fee management and may revisit fee caps under prescribed conditions. Representation exists within fee-regulatory processes.



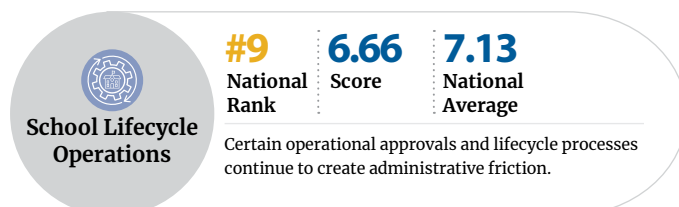
ACCOUNTABILITY & ENFORCEMENT

Notice and hearing requirements apply before adverse regulatory action. Appeal and review mechanisms exist, although inspection safeguards remain comparatively weak.

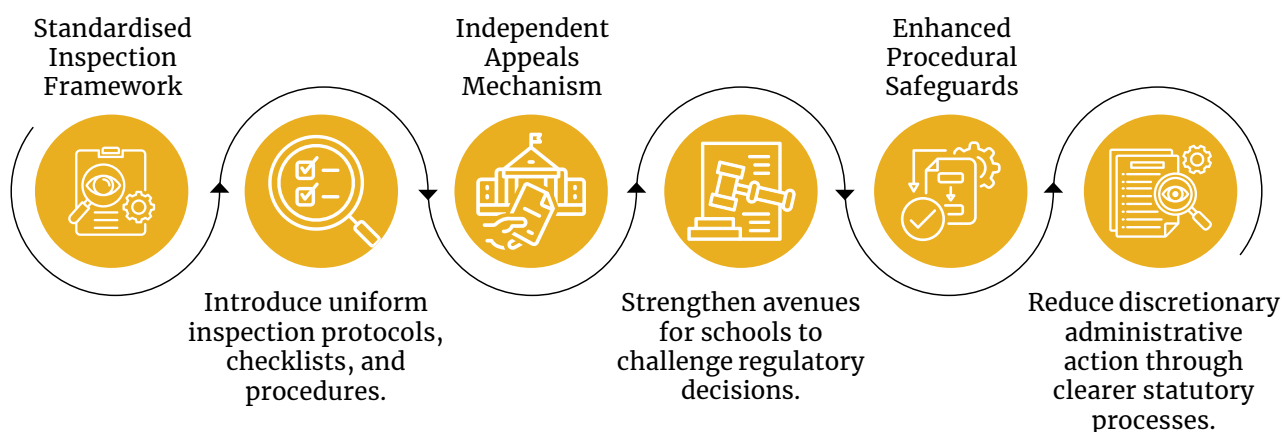
Strengths



Bottlenecks



Reform Priorities



Policy Pathway

Andhra Pradesh is among India's strongest-performing regulatory environments for schools, particularly in areas relating to financial flexibility, institutional autonomy, and regulatory clarity. Future improvements are likely to depend less on reducing compliance requirements and more on strengthening procedural fairness, inspection transparency, and safeguards against arbitrary regulatory action. Addressing these gaps would allow the state to further consolidate its position as a leading regulatory environment for school education.

“Apart from taking RTE students, we are also expected to provide uniforms and mid-day meals. But many times, the money we receive from the government does not fully cover these expenses.”

– Uttarakhand, School Leader



Arunachal Pradesh

EoOS Index 2026 – State Profile

SCORECARD



26
National
Rank

Among all states assessed
under the EoOS Index



16.88
Overall
EoOS Score

Composite score out of 100



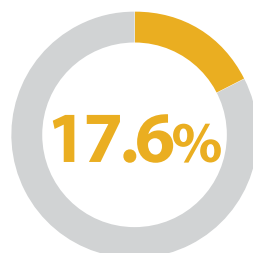
20.86
National
Average

All-India benchmark

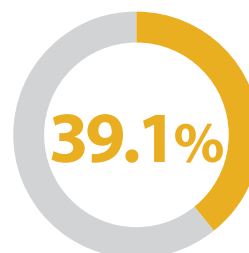


3,19,826
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

DOMAIN PERFORMANCE

Domain	Arunachal Pradesh	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	33.82	37.36	#20
 Regulatory Compliance	40.86	33.32	#4
 Operations without Arbitrary Regulatory Action	12.67	21.90	#22
 Financial Sustainability & Resource Mobilisation	0.00	4.71	#23
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	7.25	20.72	#27

Reform Priority State

Ranked 26th nationally and performs well below the national average. The state performs relatively better in simplifying regulatory compliance requirements but continues to face significant constraints relating to financial flexibility, institutional autonomy, and procedural safeguards, limiting the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools operate under a recognition-based framework requiring self-declaration of compliance with prescribed norms. Recognition is linked to infrastructure standards and operation through a registered society or trust.



GOVERNANCE & STAFFING

Teacher qualifications, sanctioned teacher strength, and salary parity norms are prescribed by the state. No approvals are required relating to curriculum, medium of instruction, or school upgradation.



FINANCIAL REGULATION

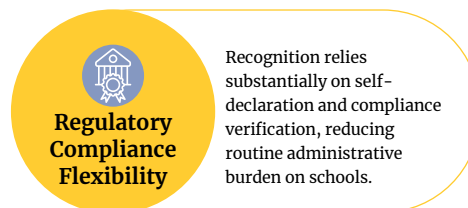
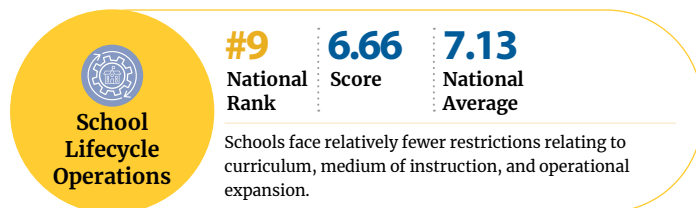
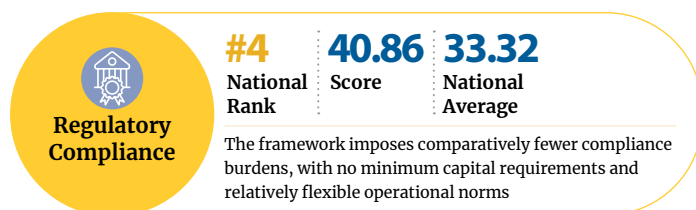
No dedicated fee-regulation framework exists, but regulations prescribe factors governing fee determination and utilisation of school revenues. Reimbursements under the Right to Education Act are linked to notified per-child expenditure.



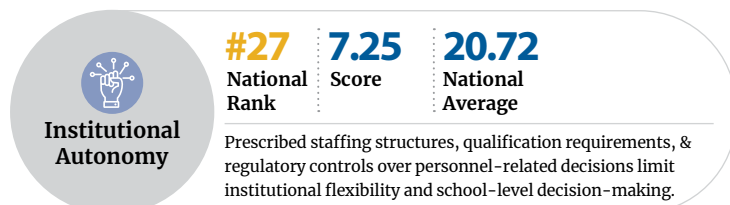
ACCOUNTABILITY & ENFORCEMENT

Compliance inspections are conducted by the Deputy Director of School Education. Recognition may be withdrawn in cases of non-compliance with prescribed regulatory requirements.

Strengths



Bottlenecks



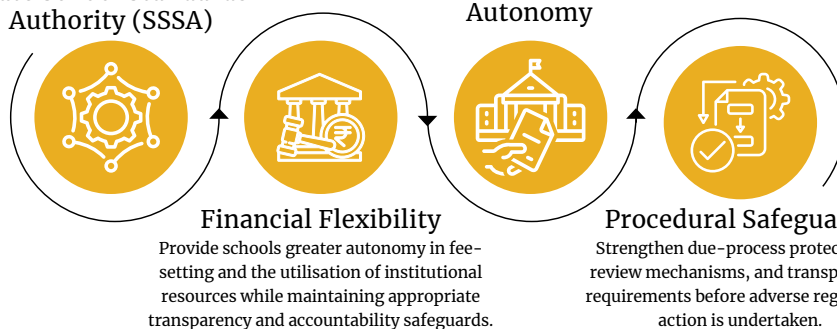
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Reduce regulatory control over staffing structures and internal governance decisions to enable greater school-level decision-making.

Institutional Autonomy



Policy Pathway

Arunachal Pradesh demonstrates that reducing compliance burdens alone is insufficient to create a fully enabling regulatory environment for schools. While the state performs relatively well in simplifying compliance requirements, schools continue to face constraints relating to financial flexibility, institutional autonomy, and protections against discretionary regulatory action. Future reforms should focus on strengthening school-level decision-making, improving financial autonomy, enhancing procedural safeguards, and modernising regulatory governance structures to create a more predictable and enabling environment for educational provision.

“Since what is prohibited by the law enunciated by the Supreme Court is “commercialization” and “profiteering”, as such, it would not be wholly unjustified if the private educational institutions are allowed to derive reasonable profits on the investments made by them in establishing and maintaining the school infrastructure. Such profit, in our opinion, shall not exceed the commercial rate of interest at the relevant point of time.”

**– New Convent High School v. Union of India
2026 SCC OnLine J&K 135 at para 9.**



Assam

EoOS Index 2026 – State Profile

SCORECARD



#5
National
Rank

Among all states assessed
under the EoOS Index



25.44
Overall
EoOS Score

Composite score out of 100



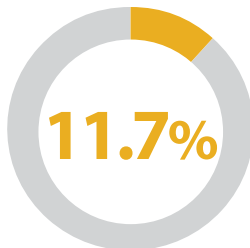
20.86
National
Average

All-India benchmark

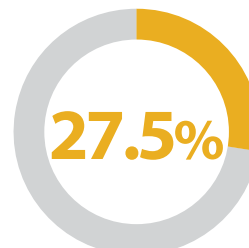


70,41,824
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

DOMAIN PERFORMANCE

	Domain	Assam	National Average	Rank
	Regulatory Clarity, Predictability & Accessibility	42.58	37.36	#7
	Regulatory Compliance	43.41	33.32	#3
	Operations without Arbitrary Regulatory Action	19.62	21.90	#15
	Financial Sustainability & Resource Mobilisation	9.09	4.71	#4
	School Lifecycle Operations	6.66	7.13	#5
	Institutional Autonomy	31.25	20.72	#5

Top-Tier Relative Performer

Ranked 5th nationally and performs well above the national average. The state demonstrates relatively strong performance across regulatory clarity, compliance requirements, financial flexibility, and institutional autonomy. However, safeguards relating to inspections and discretionary regulatory action remain areas where further improvements could strengthen the overall operating environment for schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission to establish and must satisfy prescribed legal, infrastructure, safety, and land requirements. Recognition is governed through both Right to Education Act provisions and administrative recognition processes.



GOVERNANCE & STAFFING

School managements enjoy considerable autonomy in recruitment and service conditions, subject to approved Schemes of Management. Teacher qualifications must comply with NCTE norms and curriculum requirements prescribed by the relevant Board.



FINANCIAL REGULATION

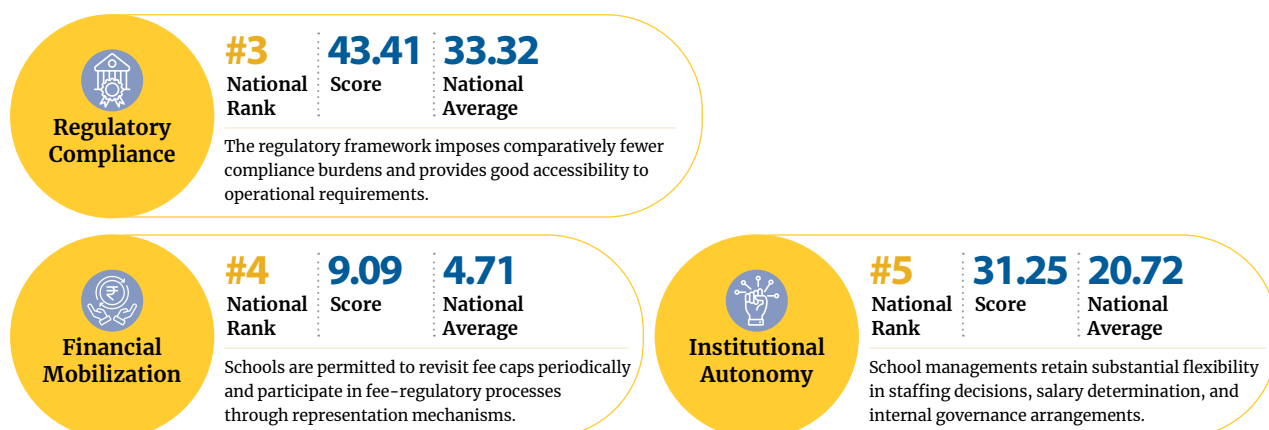
Fee regulation is administered through a Fee Regulatory Committee. Schools may periodically revise fee proposals and are represented within fee-regulatory processes. Capitation fees are prohibited.



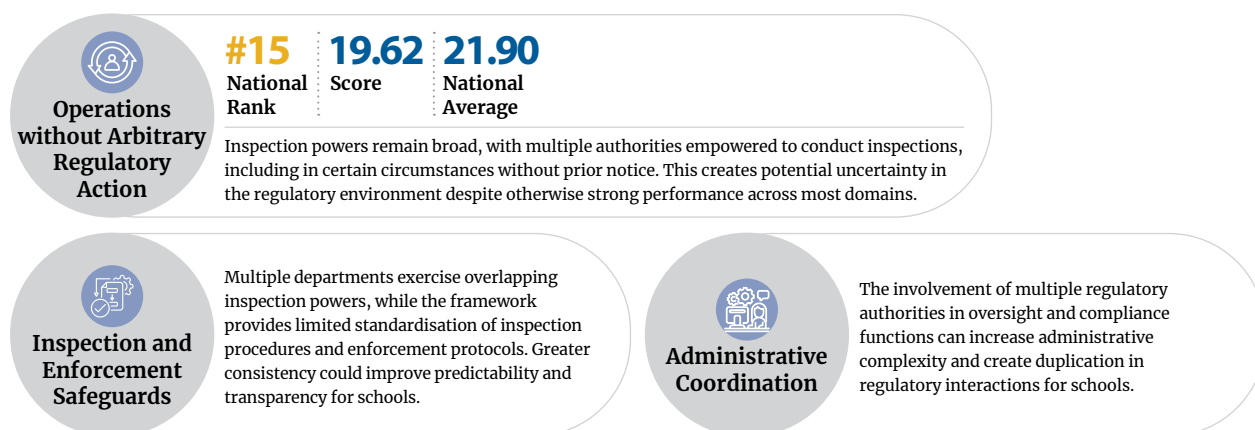
ACCOUNTABILITY & ENFORCEMENT

Multiple authorities are empowered to conduct inspections, including education, health, and transport departments. Recognition may be withdrawn following due process, with appeals available to the state government.

Strengths



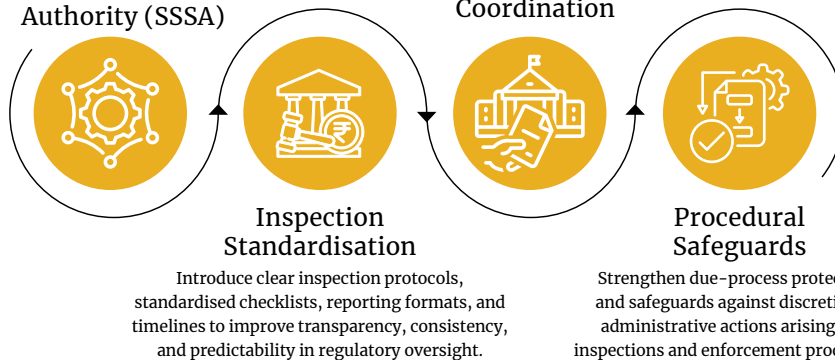
Bottlenecks



Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)



Streamline overlapping inspection and oversight functions exercised by multiple departments and authorities to reduce administrative burden and improve regulatory coherence.

Regulatory Coordination

Inspection Standardisation
Introduce clear inspection protocols, standardised checklists, reporting formats, and timelines to improve transparency, consistency, and predictability in regulatory oversight.

Procedural Safeguards
Strengthen due-process protections and safeguards against discretionary administrative actions arising from inspections and enforcement proceedings.

Policy Pathway

Assam is among the highest-performing states assessed under the Ease of Operating Schools Index and demonstrates a relatively balanced regulatory framework characterised by strong compliance performance, financial flexibility, institutional autonomy, and regulatory clarity. However, the state's overall score of 25.43 out of 100 indicates that significant opportunities for regulatory improvement remain. Future reforms should focus on strengthening procedural safeguards, improving transparency and consistency in inspection processes, and reducing overlapping regulatory oversight. Addressing these areas would enhance regulatory certainty while preserving the state's comparatively enabling approach to school governance.

“From the aforesaid discussion, it is apparent that private unaided recognized school managements have a fundamental right under Article 19(1)(g) of the Constitution to maximum autonomy in the day-to-day administration including the right to admit students.”

– Forum for Promotion of Quality Education v. Governor of Delhi 2014 SCC OnLine Del 6650 at para 114.



Bihar

EoOS Index 2026 – State Profile

SCORECARD



#4
National
Rank

Among all states assessed
under the EoOS Index



25.63
Overall
EoOS Score

Composite score out of 100



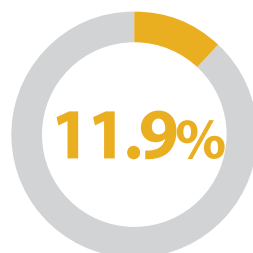
20.86
National
Average

All-India benchmark

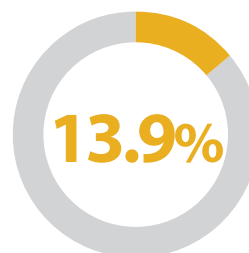


2,11,33,228
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Bihar	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	41.96	37.36	#8
 Regulatory Compliance	35.28	33.32	#9
 Operations without Arbitrary Regulatory Action	32.66	21.90	#5
 Financial Sustainability & Resource Mobilisation	9.09	4.71	#4
 School Lifecycle Operations	6.66	7.13	#5
 Institutional Autonomy	28.12	20.72	#8

**Top-Tier
Relative
Performer**

Ranked 4th nationally and performs substantially above the national average. The state demonstrates relatively strong performance in financial flexibility, institutional autonomy, and procedural safeguards governing regulatory action. However, greater predictability in approvals, timelines, and administrative processes could further strengthen the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required to establish a school. Recognition is granted to not-for-profit institutions operating through registered societies that comply with prescribed norms relating to land, infrastructure, sanitation, learning resources, and pupil-teacher ratios.



GOVERNANCE & STAFFING

Teacher qualifications are prescribed by the authorised academic authority, while curriculum, textbooks, and learning materials are determined by state authorities. The medium of instruction is prescribed by law for different stages of schooling.



FINANCIAL REGULATION

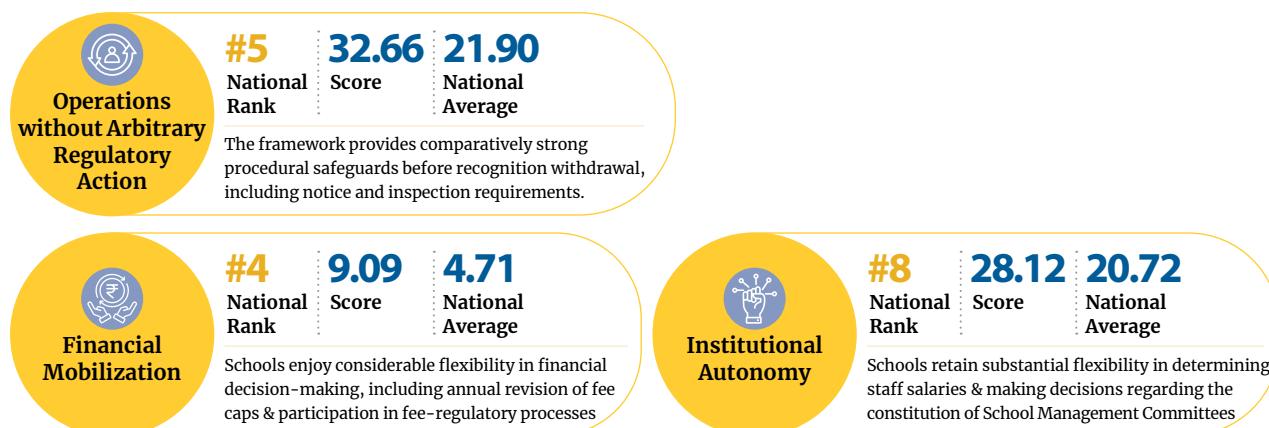
Fee regulation is administered through a Fee Regulatory Committee. Schools may revisit fee structures annually within prescribed limits and are represented within fee-regulatory processes. Capitation fees are prohibited.



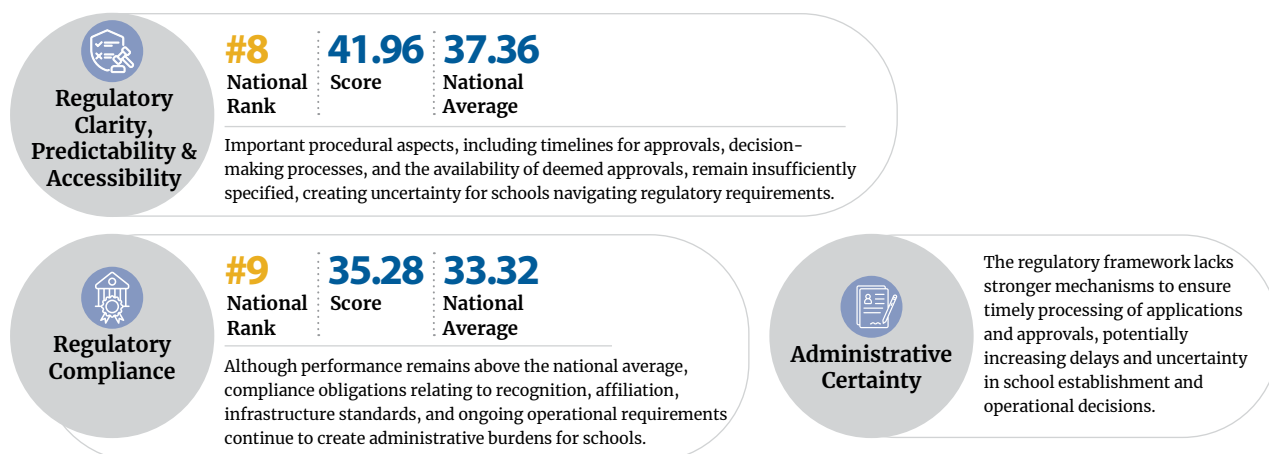
ACCOUNTABILITY & ENFORCEMENT

Recognition may be withdrawn following notice, inspection, and departmental approval. The state also possesses powers to take over management and control of schools under specified circumstances.

Strengths



Bottlenecks



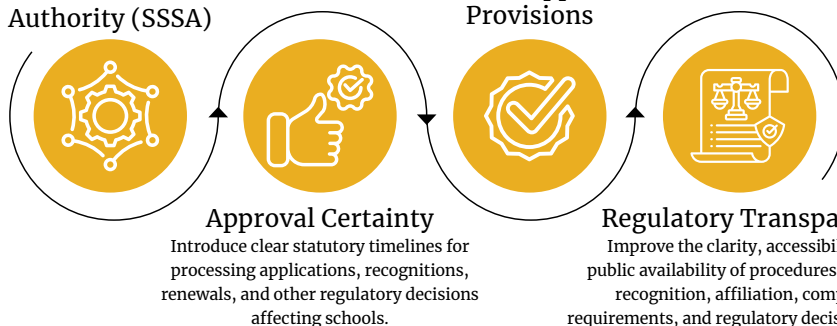
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Provide automatic approvals where competent authorities fail to decide applications within prescribed time periods, reducing administrative uncertainty and delays.

Establish Independent State School Standards Authority (SSSA)

Deemed Approval Provisions

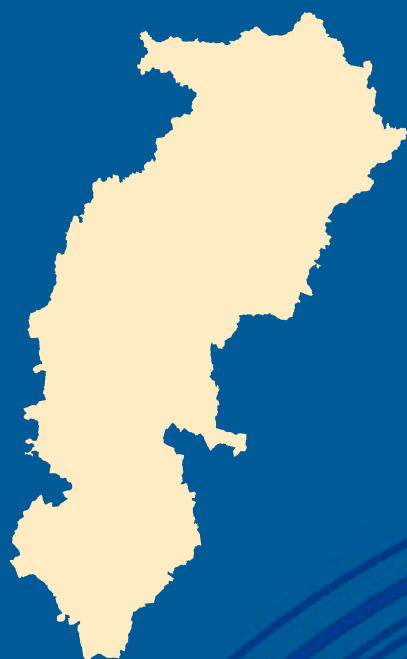


Policy Pathway

Bihar ranks among the highest-performing states assessed under the Ease of Operating Schools Index, supported by strong performance in financial mobilization, institutional autonomy, and safeguards against arbitrary regulatory action. However, the state's overall score of 25.63 out of 100 indicates that meaningful opportunities for regulatory reform remain. Future improvements should focus on strengthening regulatory predictability, improving transparency in approval processes, and reducing uncertainty in administrative decision-making. These reforms would help create a more predictable and enabling regulatory environment while preserving the state's comparatively strong performance across key dimensions of school governance.

“Education today remains liberation – a tool for the betterment of our civil institutions, the protection of our civil liberties, and the path to an informed and questioning citizenry. Then as now, we recognise education’s “transcendental importance” in the lives of individuals and in the very survival of our Constitution and Republic.”

– Avinash Mehrotra v. Union of India, (2009) 6 SCC 398 at para 29.



Chhattisgarh

EoOS Index 2026 – State Profile

SCORECARD



#17
National
Rank

Among all states assessed
under the EoOS Index



19.81
Overall
EoOS Score

Composite score out of 100



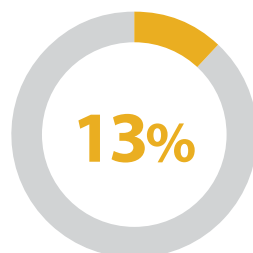
20.86
National
Average

All-India benchmark

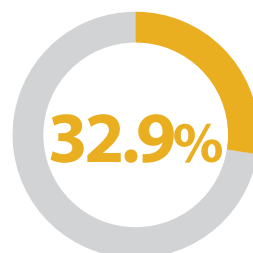


58,06,871
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Chhattisgarh	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	23.29	37.36	#28
 Regulatory Compliance	36.10	33.32	#8
 Operations without Arbitrary Regulatory Action	31.02	21.90	#6
 Financial Sustainability & Resource Mobilisation	3.03	4.71	#17
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	18.75	20.72	#15

Emerging Performer

Ranked 17th nationally and performs close to the national average. The state combines relatively low compliance burdens and strong procedural safeguards with comparatively weak regulatory clarity, predictability, & financial flexibility. Improving transparency & certainty in regulatory processes would significantly strengthen the overall operating environment for schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required to establish a school. Recognition is mandatory and is granted through a self-declaration and inspection-based process administered by the District Education Officer.



GOVERNANCE & STAFFING

The framework imposes relatively few operational requirements. Provisions relating to teacher recruitment, service conditions, curriculum, medium of instruction, and school upgradation are generally not prescribed.



FINANCIAL REGULATION

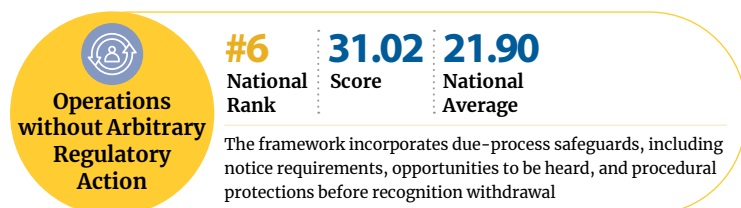
Fee regulation is administered through a three-tier committee structure. Fee increases up to 8 percent may be approved at the school level, while higher increases require district-level approval.



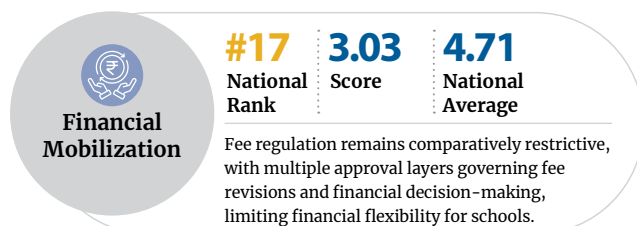
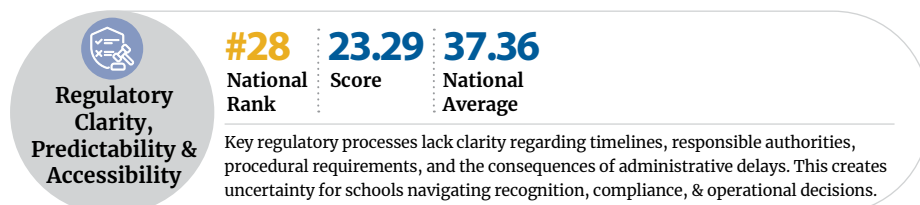
ACCOUNTABILITY & ENFORCEMENT

Recognition may be withdrawn following inspection, notice, and an opportunity to be heard. Designated officers are responsible for inspections and post-inspection reporting requirements are prescribed.

Strengths



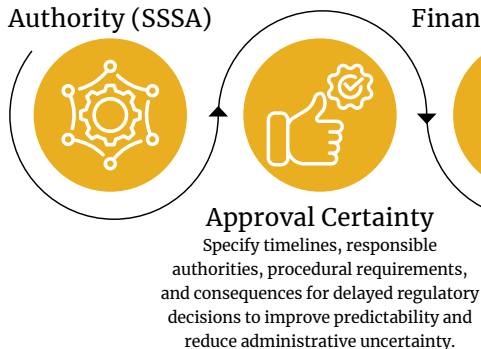
Bottlenecks



Reform Priorities

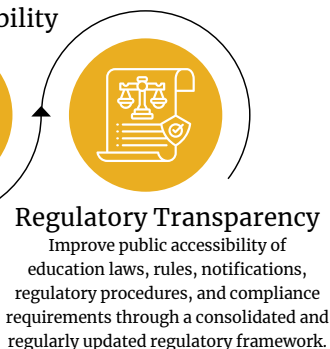
Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)



Simplify fee-approval processes and provide schools greater autonomy in financial management while maintaining appropriate accountability and transparency safeguards.

Financial Flexibility



Policy Pathway

Chhattisgarh demonstrates that relatively low compliance burdens and strong procedural safeguards can coexist with significant regulatory uncertainty. Schools benefit from comparatively simple recognition processes, limited operational approvals, and protections against arbitrary regulatory action. However, the state's overall score of 19.81 out of 100 reflects continuing challenges relating to transparency, accessibility, and predictability of regulatory processes. Future reforms should focus on improving regulatory clarity, strengthening approval certainty, and enhancing financial flexibility while preserving the state's comparatively streamlined compliance framework.

“The concept of autonomy has also been recognized and conferred upon schools by the DSE Act and Rules, 1973. Rule 145 of DSE Rules, 1973 states that the head of every recognised unaided school shall regulate admissions in its school. Consequently, the private unaided schools have maximum autonomy in day-to-day administration including the right to admit students.”

*– Forum for Promotion of Quality Education v. Governor of Delhi 2014
SCC OnLine Del 6650 at para 115*



Delhi (NCT)

EoOS Index 2026 – State Profile

SCORECARD



#11
National
Rank

Among all states assessed
under the EoOS Index



21.84
Overall
EoOS Score

Composite score out of 100



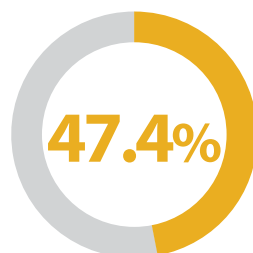
20.86
National
Average

All-India benchmark

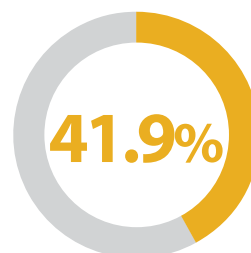


44,91,032
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Delhi	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	42.27	37.36	#8
 Regulatory Compliance	30.95	33.32	#21
 Operations without Arbitrary Regulatory Action	30.57	21.90	#7
 Financial Sustainability & Resource Mobilisation	8.06	4.71	#7
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	12.50	20.72	#18

Above-Average Performer

Ranked 11th nationally and performs above the national average.

The regulatory framework combines comparatively strong procedural safeguards, financial flexibility, and regulatory clarity with relatively higher compliance burdens and more limited institutional autonomy.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission to establish and must demonstrate educational need, compliance with infrastructure requirements, and operation through a not-for-profit society or trust. Recognition is granted through both Right to Education Act provisions and the Delhi School Education Rules framework.



GOVERNANCE & STAFFING

Teacher qualifications and curriculum requirements are prescribed by affiliating authorities. Prior approval is required for dismissal or removal of staff, and management decisions remain subject to significant regulatory oversight.



FINANCIAL REGULATION

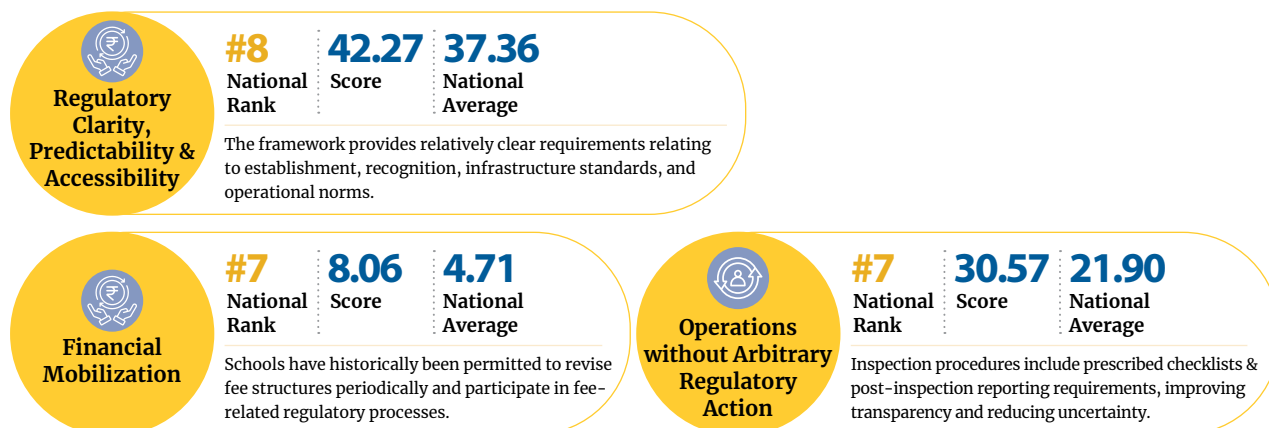
Schools have historically enjoyed flexibility in revising fee structures and participating in fee-related decision-making processes. Reimbursements under the Right to Education Act are linked to prescribed per-child expenditure norms.



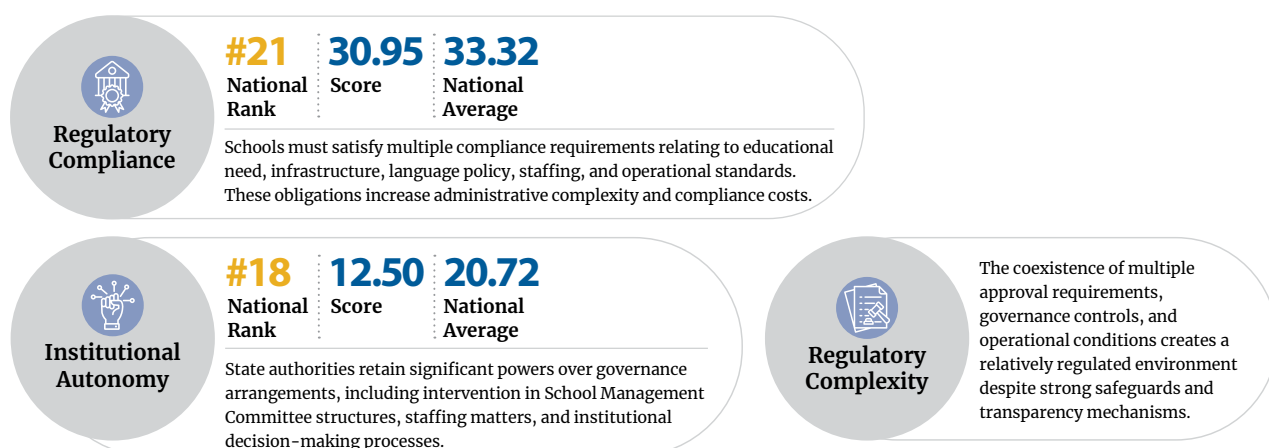
ACCOUNTABILITY & ENFORCEMENT

Inspection teams are constituted by the Director and generally provide advance notice, except in cases of surprise inspections. Recognition may be withdrawn for non-compliance, while management takeover and school closure remain subject to government approval.

Strengths



Bottlenecks



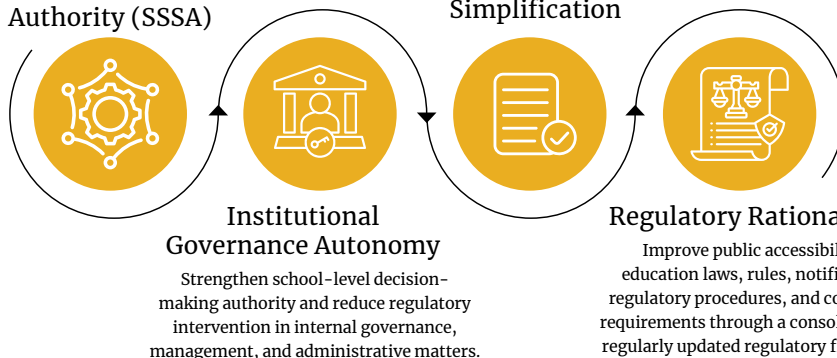
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Reduce administrative burdens associated with approvals, documentation requirements, reporting obligations, and operational compliance processes.

Compliance Simplification

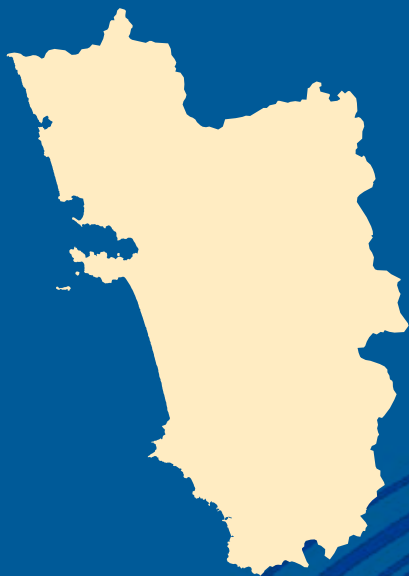


Policy Pathway

Delhi combines one of India's largest private school ecosystems with comparatively strong procedural safeguards, financial flexibility, and regulatory transparency. However, the state's overall score of 21.83 out of 100 suggests that substantial regulatory constraints remain despite its above-average ranking. Future reforms should focus on reducing compliance burdens, simplifying administrative requirements, and expanding institutional autonomy while preserving existing accountability and transparency safeguards. Such reforms would strengthen the ease of operating schools in one of India's most significant education markets and support greater responsiveness, innovation, and institutional flexibility across the schooling ecosystem.

“The failure of the public education system has led to the mushroom growth of private institutions. Unemployed educated youth have taken up this occupation for earning their livelihood. The elements of profit-making and employment generation involved in establishing private institutions by making substantial investment cannot be ignored. While there may be instances of commercialization of school education and profiteering in urban and semi-urban areas, the same may not be true of small schools established in rural areas by the educated unemployed youth.”

– New Convent High School v. Union of India, 2026
SCC OnLine J&K 135 at para 23.



Goa

EoOS Index 2026 – State Profile

SCORECARD



#29
National
Rank

Among all states assessed
under the EoOS Index



16.24
Overall
EoOS Score

Composite score out of 100



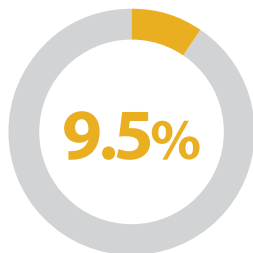
20.86
National
Average

All-India benchmark



3,00,546
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Goa	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	38.50	37.36	#13
 Regulatory Compliance	32.11	33.32	#17
 Operations without Arbitrary Regulatory Action	9.54	21.90	#28
 Financial Sustainability & Resource Mobilisation	0.00	4.71	#23
 School Lifecycle Operations	10.00	7.13	#4
 Institutional Autonomy	7.25	20.72	#27

Reform Priority State

Ranked 29th nationally and performs substantially below the national average. While the state performs relatively well in school lifecycle operations and regulatory accessibility, significant constraints relating to financial flexibility, institutional autonomy, and procedural safeguards continue to limit the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required to establish a school. Recognition is granted subject to compliance with financial stability, infrastructure, management, and not-for-profit requirements, and is renewed annually following inspection.



GOVERNANCE & STAFFING

Minimum salary standards are prescribed by the state and cannot be lower than those applicable in government institutions. Teacher qualifications and curriculum requirements are determined by competent academic authorities.



FINANCIAL REGULATION

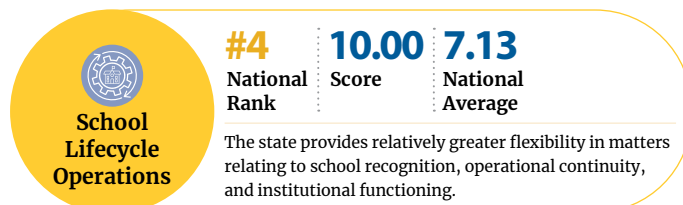
Fee regulation is administered through a three-tier committee structure. Fee increases require approval through prescribed mechanisms, with higher revisions subject to additional scrutiny and regulatory approval.



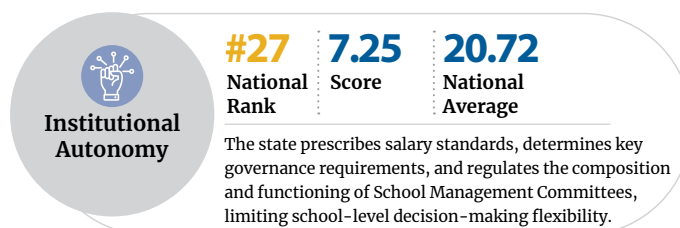
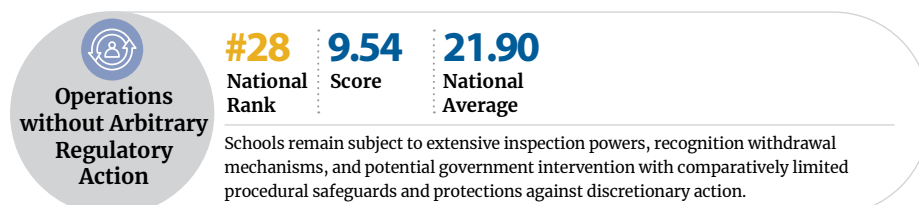
ACCOUNTABILITY & ENFORCEMENT

Annual inspections are mandatory, with additional inspections permissible at any time. Recognition may be withdrawn following inspection findings, and the government retains powers to take over school management under specified circumstances.

Strengths



Bottlenecks



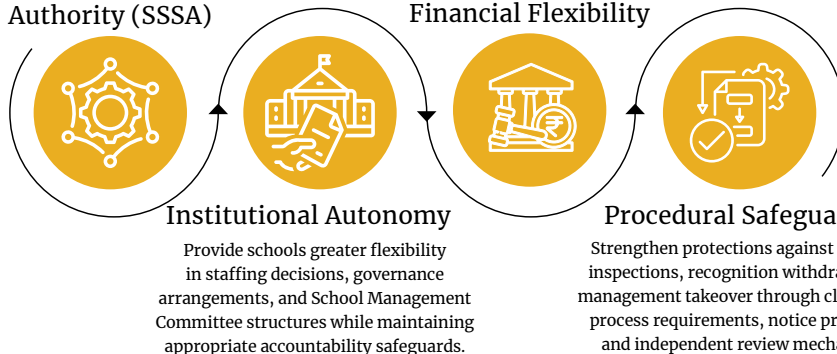
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Reduce regulatory constraints relating to fee approvals and financial decision-making to improve institutional sustainability and responsiveness.

Financial Flexibility

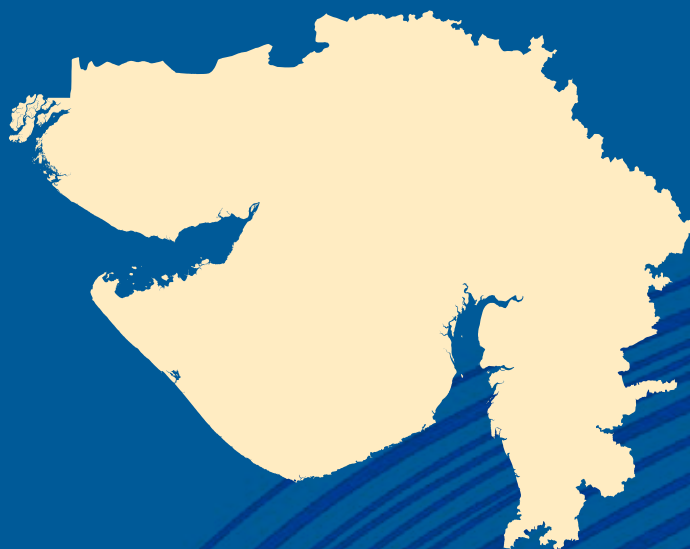


Policy Pathway

Goa demonstrates that strong performance in school lifecycle operations and regulatory accessibility alone is insufficient to create an enabling regulatory environment for schools. While schools benefit from relatively streamlined recognition processes and accessible regulatory information, the state's overall score of 16.23 out of 100 reflects substantial constraints relating to financial flexibility, institutional autonomy, and protections against discretionary regulatory action. Future reforms should focus on empowering schools with greater operational autonomy, strengthening procedural safeguards, and improving financial flexibility while preserving accountability and educational standards.

“The Government should change its mindset and promote and strengthen private schools by for bearing from interfering or causing unnecessary interference in their functioning. The Supreme Court has already permitted educational institutions to collect fees in a manner that generates sufficient surplus annually to expand infrastructure and provide better facilities. It is high time the Government also recognises the right of a person who has made huge investments in terms of money and time to raise a private educational institution without any support from the Government to derive reasonable profits.”

*– New Convent High School v. Union of India,
2026 SCC OnLine J&K 135 at para 41.*



Gujarat

EoOS Index 2026 – State Profile

SCORECARD



#23
National
Rank

Among all states assessed
under the EoOS Index



17.91
Overall
EoOS Score

Composite score out of 100



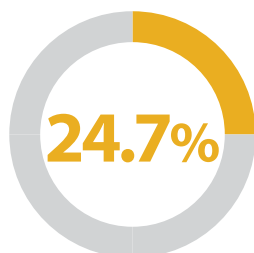
20.86
National
Average

All-India benchmark

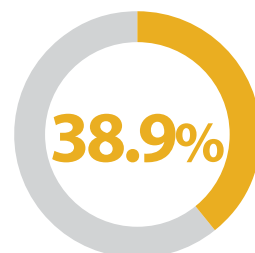


1,15,01,328
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Gujarat	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	31.23	37.36	#25
 Regulatory Compliance	29.76	33.32	#22
 Operations without Arbitrary Regulatory Action	25.44	21.90	#9
 Financial Sustainability & Resource Mobilisation	1.00	4.71	#22
 School Lifecycle Operations	7.50	7.13	#5
 Institutional Autonomy	12.50	20.72	#18

Developing Regulatory Environment

Ranked 23rd nationally and performs below the national average. While the state provides relatively stronger safeguards against arbitrary regulatory action and streamlined school lifecycle processes, weaker performance in regulatory clarity, compliance, financial flexibility, and institutional autonomy continues to constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools must obtain recognition through an application and inspection-based process. Recognition is granted to not-for-profit institutions and requires compliance with prescribed evaluation benchmarks, disclosure requirements, and operational standards



GOVERNANCE & STAFFING

Prior permission is required for upgradation of classes and addition of divisions. Most provisions relating to staffing, recruitment, service conditions, salaries, and medium of instruction are not prescribed.



FINANCIAL REGULATION

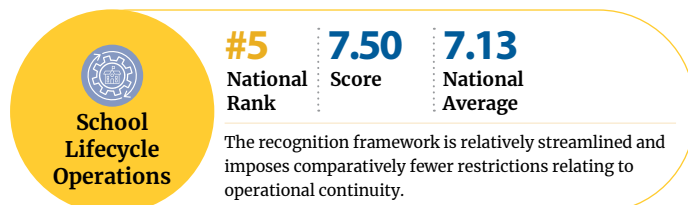
Fee regulation is administered through a Fee Regulatory Committee that approves fee structures for three-year periods. Schools are required to submit extensive financial documentation and comply with prescribed fee-determination criteria.



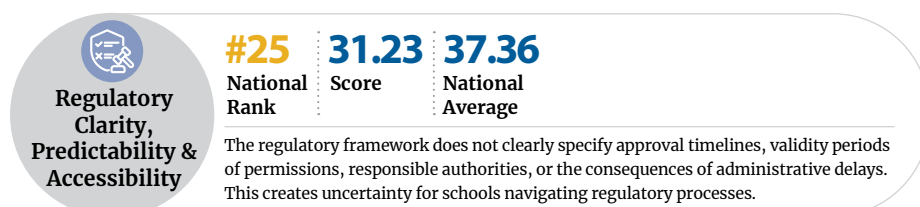
ACCOUNTABILITY & ENFORCEMENT

Inspections may be conducted by multiple authorities under broad powers. Recognition may be withdrawn for non-compliance with recognition norms, fee regulation requirements, or evaluation benchmarks.

Strengths



Bottlenecks



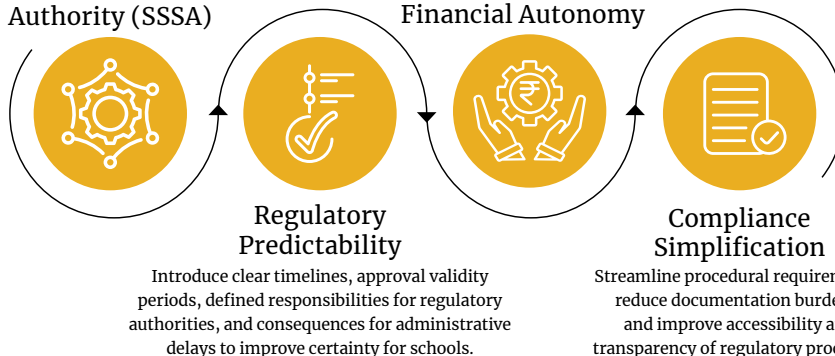
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Expand school participation in fee-regulatory processes, simplify fee-approval requirements, and reduce unnecessary restrictions on financial decision-making.

Financial Autonomy

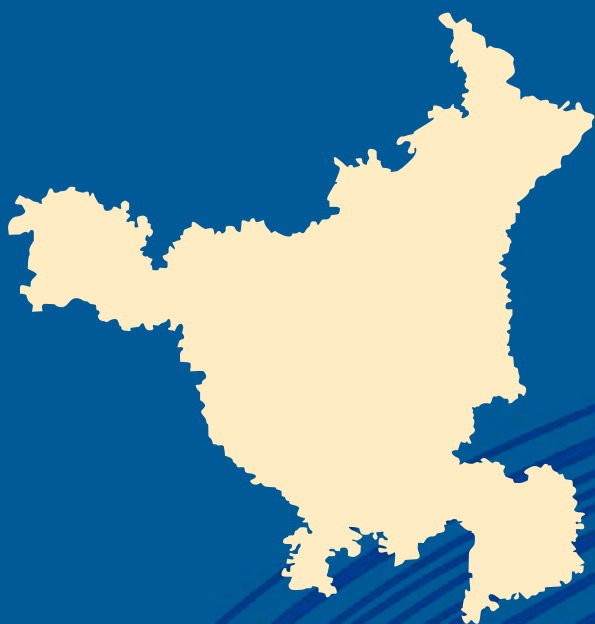


Policy Pathway

Gujarat demonstrates relatively strong procedural safeguards against arbitrary regulatory action and performs comparatively well in school lifecycle operations. However, these strengths are offset by weaker performance in regulatory clarity, compliance requirements, financial flexibility, and institutional autonomy. The state's overall score of 17.90 out of 100 suggests that schools continue to face considerable regulatory challenges despite the presence of certain procedural protections. Future reforms should focus on improving regulatory predictability, simplifying compliance requirements, expanding financial flexibility, and strengthening institutional autonomy. These changes would significantly improve the ease of operating schools while preserving accountability and quality assurance mechanisms.

“The mandate under Section 12 of the Act must be enforced with conviction and commitment. We have to ensure admission of at least twenty-five percent of class strength in unaided schools with children of weaker and disadvantaged groups. This is certainly a national mission. Effective implementation of the statutory policy will be transformative and, in this regard, each one of us, be it the institution or an individual, be it the Central or the State Governments, Advisory Councils or Commissions are duty bearers. The most important role is of the neighbourhood schools. In this mission, the judiciary also bears the burden to ensure that the process of admission is easily accessible, effective and efficient. Court must also ensure that judicial remedies against inaction or inefficiency are redressed effectively and expeditiously.”

*– Lucknow Public School v. State of U.P. 2026
INSC 422 at para 12.*



Haryana

EoOS Index 2026 – State Profile

SCORECARD



#2
National
Rank

Among all states assessed
under the EoOS Index



27.66
Overall
EoOS Score

Composite score out of 100



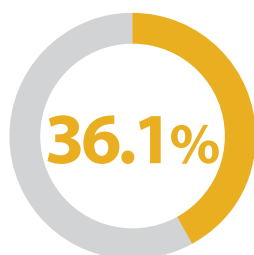
20.86
National
Average

All-India benchmark

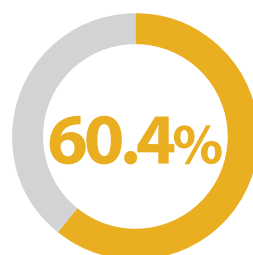


57,69,330
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Haryana	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	53.78	37.36	#1
 Regulatory Compliance	31.85	33.32	#19
 Operations without Arbitrary Regulatory Action	43.85	21.90	#2
 Financial Sustainability & Resource Mobilisation	6.06	4.71	#10
 School Lifecycle Operations	11.66	7.13	#1
 Institutional Autonomy	18.75	20.72	#15

**Top-Tier
Relative
Performer**

Ranked 2nd nationally and performs significantly above the national average. The state demonstrates exceptional performance in regulatory clarity, school lifecycle operations, and safeguards against arbitrary regulatory action. However, compliance burdens and limitations on institutional autonomy continue to constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission from the Director before establishment and must comply with detailed requirements relating to land, infrastructure, facilities, financial resources, & management arrangements. Permission remains valid for two academic years.



GOVERNANCE & STAFFING

School managements are responsible for staffing decisions, subject to prescribed salary norms, teacher qualifications, and approval requirements for institutional changes such as class upgradation.



FINANCIAL REGULATION

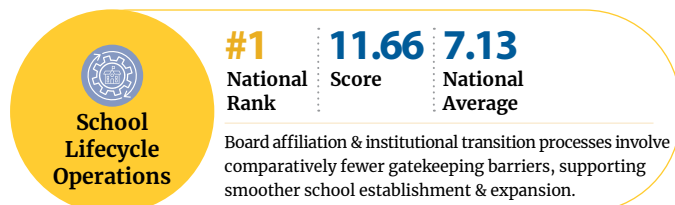
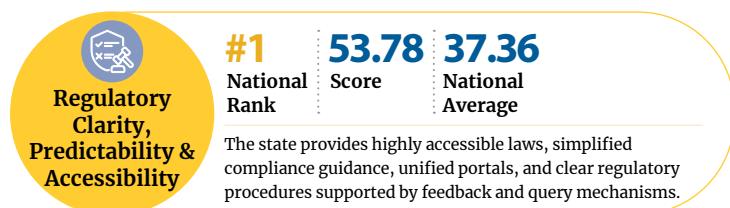
Fee regulation is administered through a divisional Fee and Fund Regulatory Committee. Schools must comply with prescribed fee structures, school fund requirements, and norms governing fee increases.



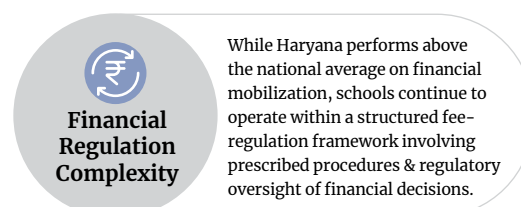
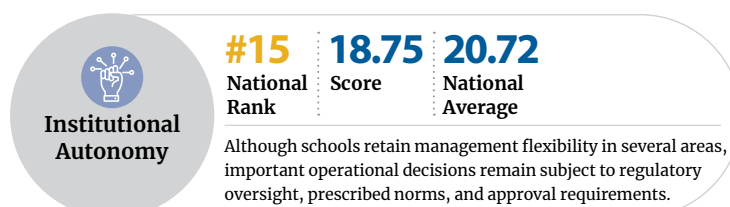
ACCOUNTABILITY & ENFORCEMENT

Annual and surprise inspections may be conducted by authorised officers. Schools are provided opportunities to rectify deficiencies before recognition withdrawal, while management takeover provisions exist for continued non-compliance.

Strengths



Bottlenecks



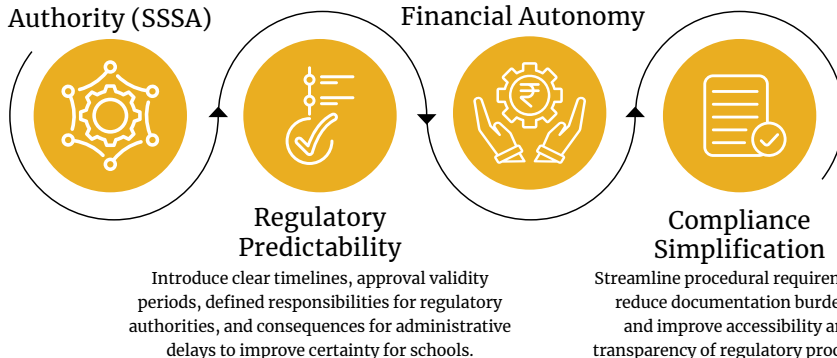
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Expand school participation in fee-regulatory processes, simplify fee-approval requirements, and reduce unnecessary restrictions on financial decision-making.

Financial Autonomy



Policy Pathway

Gujarat demonstrates relatively strong procedural safeguards against arbitrary regulatory action and performs comparatively well in school lifecycle operations. However, these strengths are offset by weaker performance in regulatory clarity, compliance requirements, financial flexibility, and institutional autonomy. The state's overall score of 17.90 out of 100 suggests that schools continue to face considerable regulatory challenges despite the presence of certain procedural protections. Future reforms should focus on improving regulatory predictability, simplifying compliance requirements, expanding financial flexibility, and strengthening institutional autonomy. These changes would significantly improve the ease of operating schools while preserving accountability and quality assurance mechanisms.

“The need of the hour is to strengthen education, particularly at the primary and secondary levels, rather than subsidising it with ad hoc measures. Providing education itself is not the objective, but providing comprehensive, high-quality education is.”

**- Sunil Kumar Yadav v. State of Jharkhand 2026
INSC 462 at para 25.**



Himachal Pradesh

EoOS Index 2026 – State Profile

SCORECARD



#12
National
Rank

Among all states assessed
under the EoOS Index



21.42
Overall
EoOS Score

Composite score out of 100



20.86
National
Average

All-India benchmark

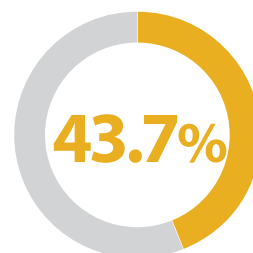


14,25,266
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Himachal Pradesh	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	48.07	37.36	#4
 Regulatory Compliance	28.54	33.32	#24
 Operations without Arbitrary Regulatory Action	17.31	21.90	#20
 Financial Sustainability & Resource Mobilisation	6.06	4.71	#10
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	21.87	20.72	#13

Above-Average Performer

Ranked 12th nationally and performs above the national average. The state demonstrates strong regulatory clarity and moderate flexibility in financial management and institutional operations. However, extensive compliance requirements and comparatively weaker safeguards against discretionary regulatory action continue to affect the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission and must comply with detailed requirements relating to infrastructure, need assessment, reserve funds, registration, and Right to Education Act norms. Recognition may be granted provisionally depending on the level of schooling



GOVERNANCE & STAFFING

Prior approval is required for school upgradation. Teacher recruitment, qualifications, and curriculum requirements are governed by prescribed standards, while staffing and salary structures remain linked to institutional resources and regulatory requirements.



FINANCIAL REGULATION

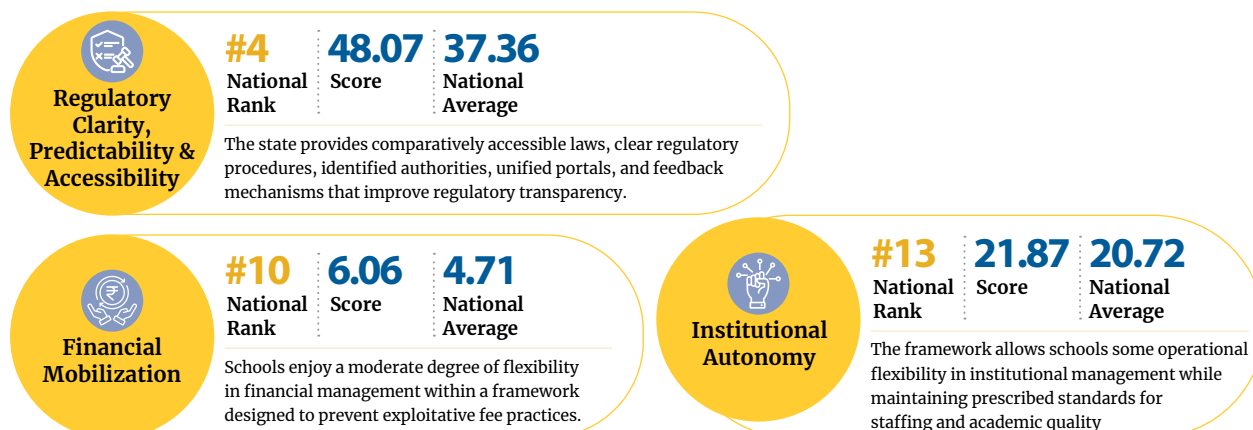
Fee structures must remain non-exploitative and aligned with departmental norms. Schools retain a degree of flexibility in managing resources, although financial decisions remain subject to regulatory oversight.



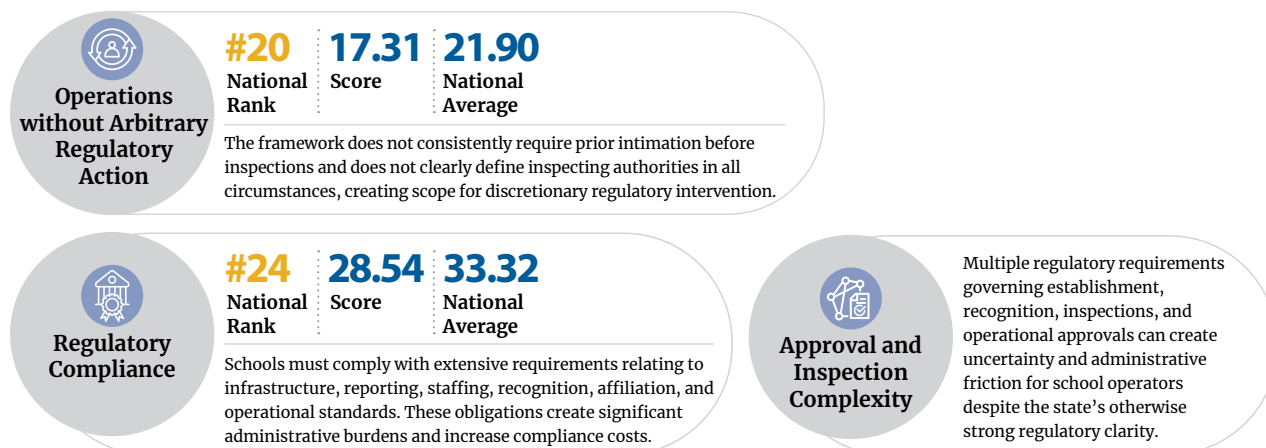
ACCOUNTABILITY & ENFORCEMENT

Multiple authorities may conduct inspections at any time. Recognition or permission may be withdrawn for non-compliance, misrepresentation, or violation of prescribed norms, with appeal mechanisms available in specified circumstances.

Strengths



Bottlenecks



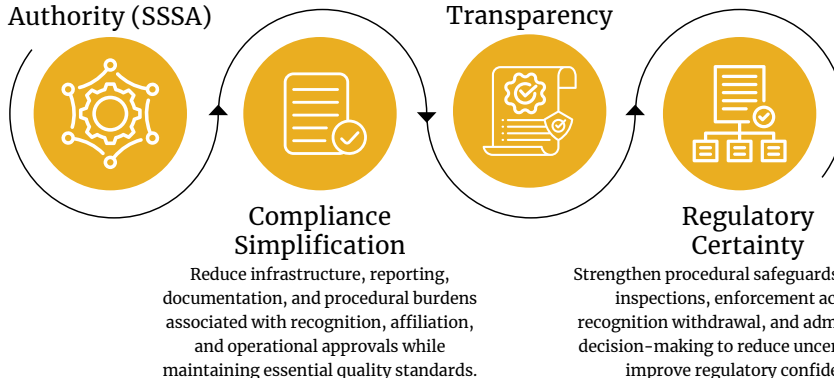
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Clearly define inspection authorities, inspection procedures, reporting requirements, and advance notification protocols to improve transparency and predictability.

Establish Independent State School Standards Authority (SSSA)

Inspection Transparency

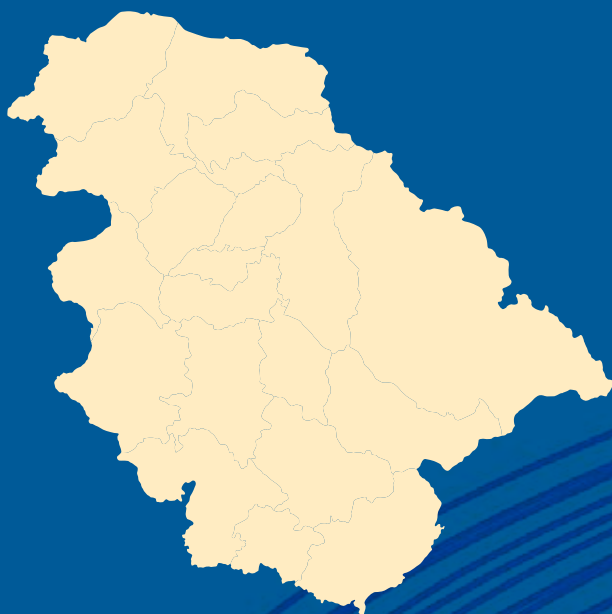


Policy Pathway

Himachal Pradesh demonstrates that strong regulatory clarity can coexist with substantial compliance burdens. Schools benefit from comparatively accessible laws, identified authorities, and predictable regulatory procedures, contributing to the state's strong performance in regulatory clarity. However, the state's overall score of 21.41 out of 100 indicates that meaningful regulatory constraints remain. Future reforms should focus on reducing administrative complexity, simplifying compliance requirements, and strengthening safeguards against discretionary regulatory action. Improving inspection transparency and streamlining approval processes would significantly enhance the ease of operating schools while preserving accountability and educational quality standards.

“It is no secret that the examination results at all levels of unaided private schools, notwithstanding the stringent regulations of the governmental authorities, are far superior to the results of the government-maintained schools. There is no compulsion on students to attend private schools. The rush for admission is occasioned by the standards maintained in such schools, and recognition of the fact that state-run schools do not provide the same standards of education.”

- Rashmi Education Trust Vidyaniketan School v. State of Karnataka 2023 LiveLaw (Kar)14.



Jammu & Kashmir

EoOS Index 2026 – State Profile

SCORECARD



#9
National
Rank

Among all states assessed
under the EoOS Index



22.98
Overall
EoOS Score

Composite score out of 100



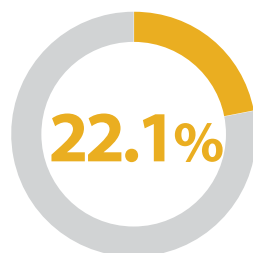
20.86
National
Average

All-India benchmark

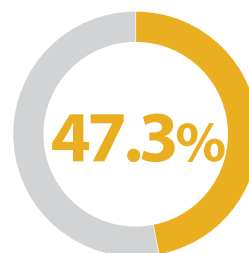


26,54,012
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Jammu & Kashmir	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	42.21	37.36	#9
 Regulatory Compliance	29.55	33.32	#23
 Operations without Arbitrary Regulatory Action	19.23	21.90	#16
 Financial Sustainability & Resource Mobilisation	10.60	4.71	#3
 School Lifecycle Operations	5.00	7.13	#28
 Institutional Autonomy	31.25	20.72	#5

Above-Average Performer

Ranked 9th nationally and performs above the national average. The regulatory framework demonstrates comparatively strong financial flexibility, institutional autonomy, and regulatory clarity. However, significant compliance burdens and restrictive school lifecycle processes continue to constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission to establish and must satisfy requirements relating to educational need, infrastructure, land availability, financial viability, and multiple No Objection Certificates from designated authorities before recognition is granted.



GOVERNANCE & STAFFING

Teacher qualifications must meet prescribed standards, while unaided schools retain flexibility in determining salary structures and certain employment conditions. Curriculum requirements are prescribed by the Jammu & Kashmir Board of School Education.



FINANCIAL REGULATION

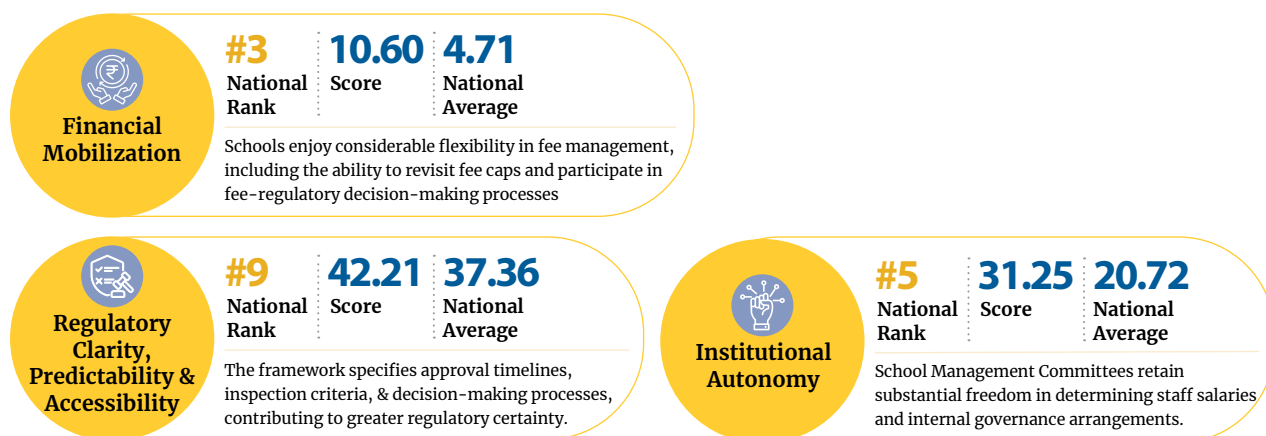
Fee regulation is overseen by a regulatory committee, but schools retain flexibility to revisit fee caps and independently determine the utilisation of institutional revenues, reserves, and savings.



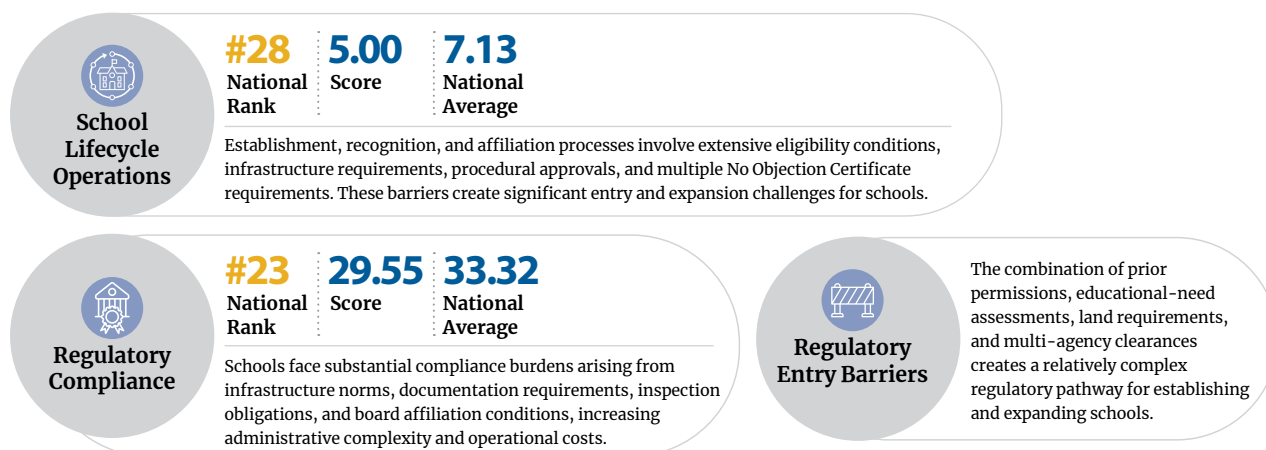
ACCOUNTABILITY & ENFORCEMENT

Schools are subject to periodic inspections conducted by authorised officers. Recognition may be withdrawn following due process, and schools may be required to cease operations following withdrawal of recognition.

Strengths



Bottlenecks



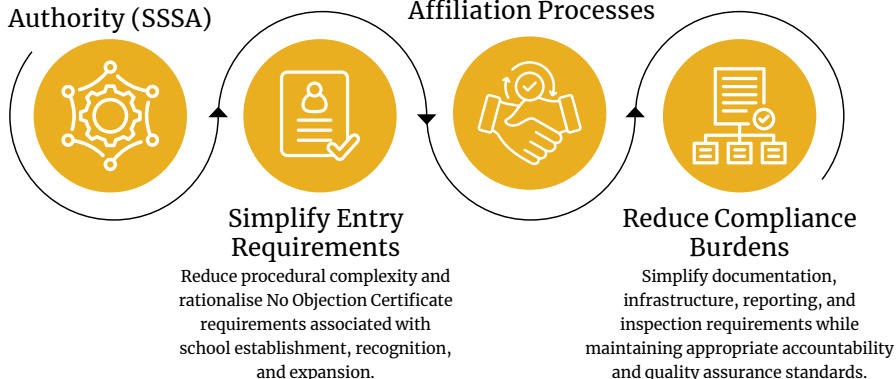
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Review eligibility conditions, approval layers, and gatekeeping requirements associated with board affiliation to facilitate smoother institutional growth.

Streamline Affiliation Processes



Policy Pathway

Jammu & Kashmir demonstrates that strong financial flexibility and institutional autonomy can coexist with a comparatively structured regulatory framework. The Union Territory performs strongly in financial mobilization, institutional autonomy, and regulatory clarity, providing schools with considerable flexibility in resource management and internal governance. However, its overall score of **22.97 out of 100** indicates that substantial regulatory constraints remain. Future reforms should focus on reducing compliance burdens, simplifying establishment and recognition processes, rationalising No Objection Certificate requirements, and streamlining affiliation procedures. Addressing these constraints would significantly improve the ease of operating schools while preserving the strengths of the existing framework.

“Paying the prescribed fee for school upgradation is not the real challenge. The bigger issue is the lack of clarity regarding which authority must be approached and how the process actually moves forward. With multiple authorities involved, schools often find themselves navigating influence and informal pressures, to get approvals cleared.”

– Tamil Nadu School Leader



Jharkhand

EoOS Index 2026 – State Profile

SCORECARD



#6
National
Rank

Among all states assessed
under the EoOS Index



24.59
Overall
EoOS Score

Composite score out of 100



20.86
National
Average

All-India benchmark

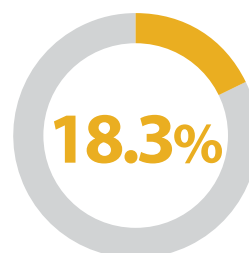


74,36,931
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Jharkhand	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	45.89	37.36	#6
 Regulatory Compliance	24.57	33.32	#29
 Operations without Arbitrary Regulatory Action	34.59	21.90	#4
 Financial Sustainability & Resource Mobilisation	4.54	4.71	#15
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	31.25	20.72	#5

**Top-Tier
Relative
Performer**

Ranked 6th nationally and performs well above the national average. The state demonstrates strong institutional autonomy, regulatory clarity, and safeguards against arbitrary regulatory action. However, substantial compliance burdens continue to constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required to establish a school. Recognition is granted through a self-declaration process and requires compliance with prescribed norms, operation on a not-for-profit basis, and management through a registered society or public trust.



GOVERNANCE & STAFFING

Teacher qualifications are prescribed by the NCTE, while schools are required to submit audited financial statements annually. Most provisions relating to staffing decisions, salary structures, curriculum, and medium of instruction are not prescribed.



FINANCIAL REGULATION

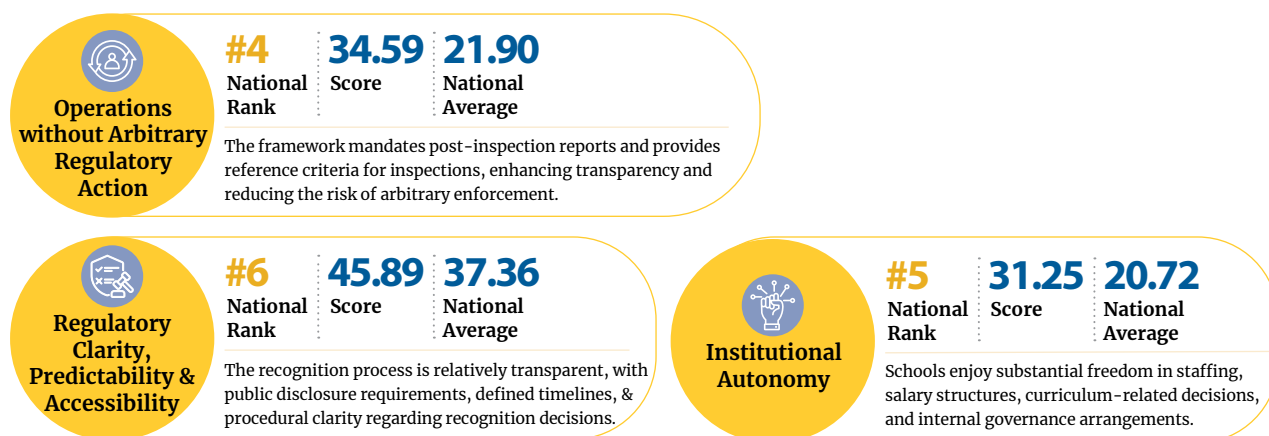
Fee regulation is administered through School Fees Committees and District Committees. Fee increases above prescribed thresholds require approval, while capitation fees are prohibited.



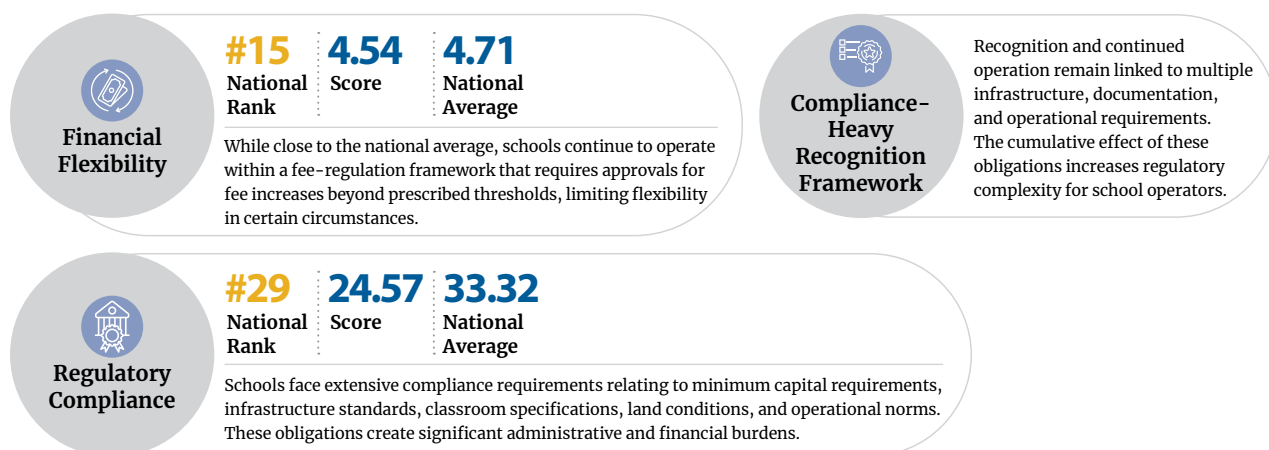
ACCOUNTABILITY & ENFORCEMENT

Schools are subject to inspections by multiple authorities. Recognition may be withdrawn only after notice, inspection, and approval by the State Government, with due-process protections built into the framework.

Strengths



Bottlenecks



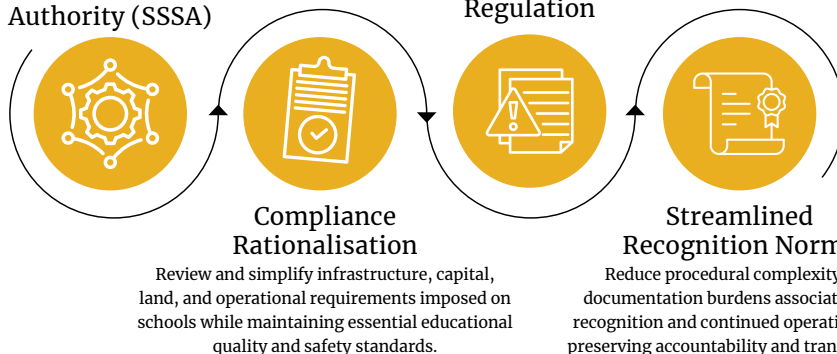
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Shift from blanket compliance requirements towards proportionate, risk-based regulatory oversight that focuses regulatory attention on areas of genuine concern.

Establish Independent State School Standards Authority (SSSA)

Risk-Based Regulation



Compliance Rationalisation

Review and simplify infrastructure, capital, land, and operational requirements imposed on schools while maintaining essential educational quality and safety standards.

Streamlined Recognition Norms

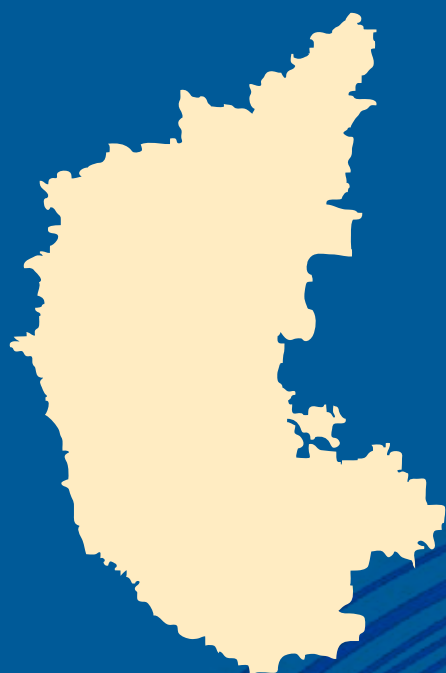
Reduce procedural complexity and documentation burdens associated with recognition and continued operation while preserving accountability and transparency.

Policy Pathway

Jharkhand demonstrates that strong institutional autonomy, regulatory transparency, and procedural safeguards can coexist within a regulatory framework that remains compliance-intensive. The state performs particularly well in protecting schools against arbitrary regulatory action and enabling school-level decision-making. However, its overall score of **24.58 out of 100** indicates that significant regulatory barriers remain despite its high national ranking. Future reforms should focus on reducing compliance burdens, simplifying recognition requirements, and moving towards more proportionate regulatory oversight. Such reforms would preserve accountability and transparency while significantly improving the ease of operating schools across the state.

“Even a small issue can lead to an inspection by the District Education Officer. In Madhya Pradesh, inspections often happen on very random grounds, so schools are never quite sure what to expect.”

– School Leader, Madhya Pradesh



Karnataka

EoOS Index 2026 – State Profile

SCORECARD



#28
National
Rank

Among all states assessed
under the EoOS Index



16.75
Overall
EoOS Score

Composite score out of 100



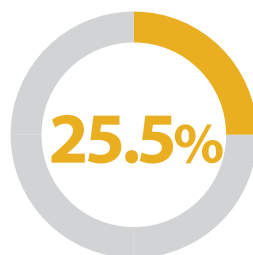
20.86
National
Average

All-India benchmark

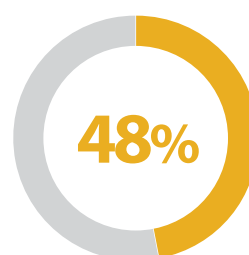


1,17,80,251
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Karnataka	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	32.27	37.36	#23
 Regulatory Compliance	33.33	33.32	#14
 Operations without Arbitrary Regulatory Action	9.56	21.90	#27
 Financial Sustainability & Resource Mobilisation	11.36	4.71	#2
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	7.25	20.72	#27

Reform Priority State

Ranked 28th nationally and performs below the national average. While the state demonstrates strong financial flexibility and moderate performance in school lifecycle operations, weak institutional autonomy and limited safeguards against discretionary regulatory action significantly constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission to establish and must demonstrate educational need, financial capacity, infrastructure adequacy, and compliance with prescribed land, space, and student welfare requirements. Recognition is linked to compliance with Right to Education Act norms and additional state-level requirements



GOVERNANCE & STAFFING

Prior approval is required for school upgradation. Teacher qualifications, salary standards, recruitment procedures, curriculum, and textbooks are prescribed by the competent authority. School Management Committees are governed by detailed statutory requirements.



FINANCIAL REGULATION

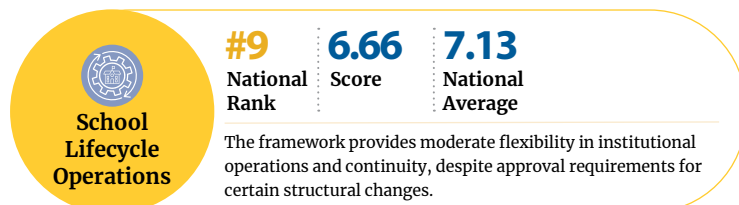
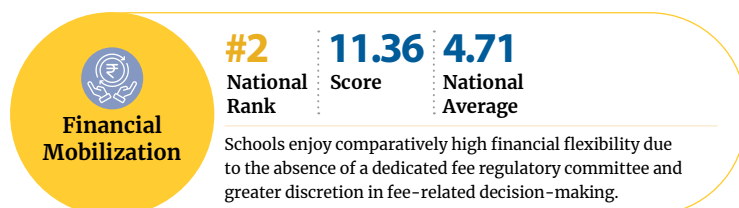
Fee regulation operates through prescribed fee categories and formula-based tuition fee caps linked to salary expenditure. No dedicated fee regulatory committee exists.



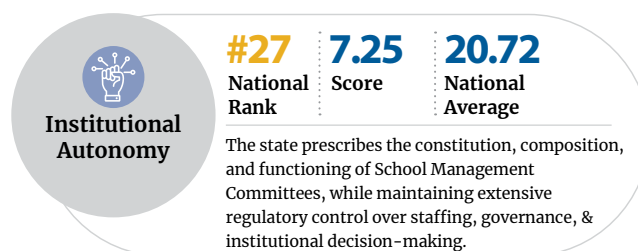
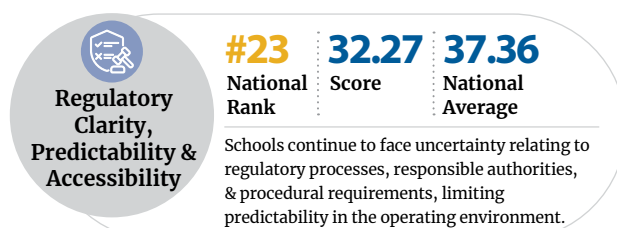
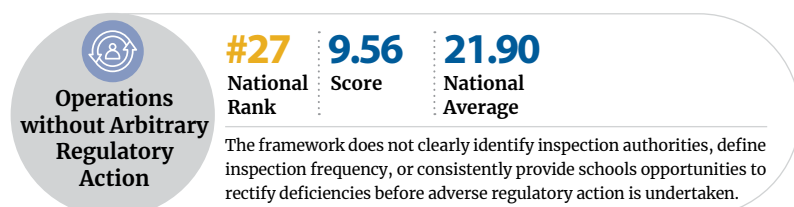
ACCOUNTABILITY & ENFORCEMENT

Inspections may be conducted by government authorities in cases of suspected non-compliance. Recognition may be withdrawn for violations, while the state retains powers relating to takeover of management and property under specified circumstances.

Strengths



Bottlenecks



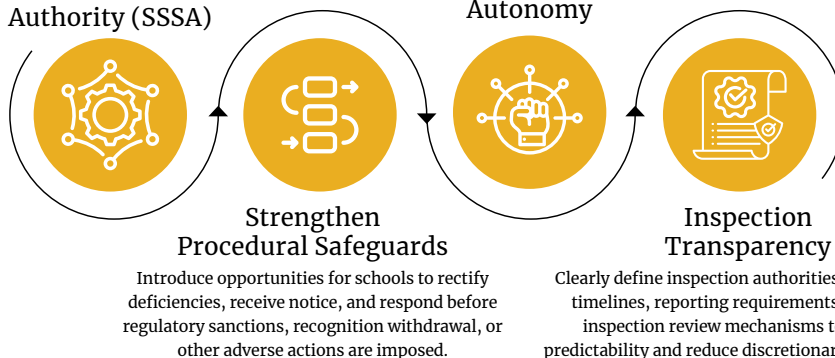
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Provide greater flexibility in governance structures, staffing decisions, and School Management Committee arrangements while maintaining appropriate accountability safeguards.

Expand Institutional Autonomy

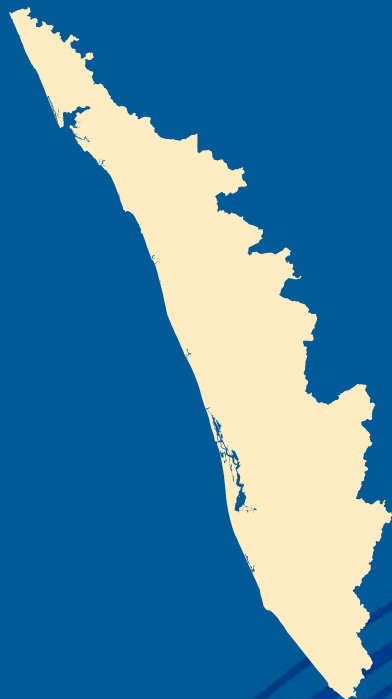


Policy Pathway

Karnataka demonstrates that financial flexibility alone is insufficient to create an enabling regulatory environment for schools. The state performs strongly in financial mobilization and provides moderate flexibility in school lifecycle operations. However, its overall score of **16.74 out of 100** reflects substantial constraints arising from limited institutional autonomy, weak procedural safeguards, and comparatively lower regulatory predictability. Future reforms should focus on strengthening due-process protections, expanding school-level decision-making authority, and improving transparency in inspection and enforcement processes. These reforms would significantly enhance the ease of operating schools while preserving accountability and educational quality standards.

“The subjective satisfaction of an unaided educational institution, regarding fixation of its fees, and maintenance of surplus, is to be accorded due respect and, absent any element of profiteering, is not amenable to review.”

– Ramjas School v. Directorate of Education, 2020
SCC OnLine Del 1776 at para 100.



Kerala

EoOS Index 2026 – State Profile

SCORECARD



#8
National
Rank

Among all states assessed
under the EoOS Index



24.12
Overall
EoOS Score

Composite score out of 100



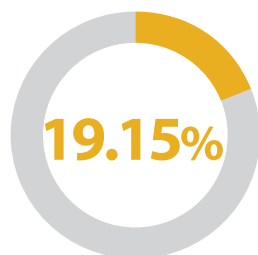
20.86
National
Average

All-India benchmark

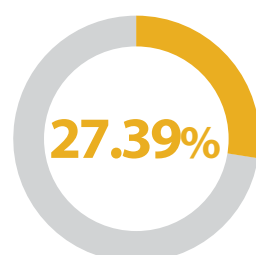


61,64,059
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Kerala	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	51.64	37.36	#2
 Regulatory Compliance	40.66	33.32	#6
 Operations without Arbitrary Regulatory Action	14.57	21.90	#21
 Financial Sustainability & Resource Mobilisation	3.03	4.71	#17
 School Lifecycle Operations	6.66	7.13	#8
 Institutional Autonomy	28.12	20.72	#8

**Top-Tier
Relative
Performer**

Ranked 8th nationally and performs above the national average. The state demonstrates exceptional regulatory clarity, relatively strong compliance performance, and above-average institutional autonomy. However, weaker safeguards against discretionary regulatory action and limited financial flexibility continue to constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission to establish or upgrade and must satisfy detailed criteria relating to educational need, infrastructure, ownership, financial viability, staffing, and compliance with Right to Education Act norms. Recognition may be granted provisionally where partial compliance exists.



GOVERNANCE & STAFFING

Teacher recruitment, qualifications, service conditions, curriculum, and medium of instruction are governed through detailed statutory requirements aligned with government norms. Schools must maintain audited accounts and comply with prescribed staff conduct rules.



FINANCIAL REGULATION

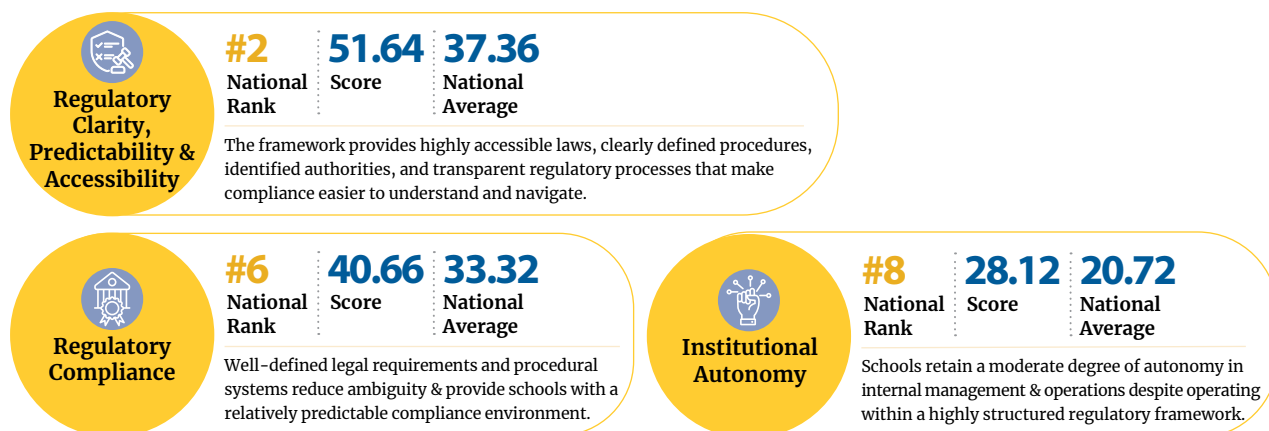
While no dedicated fee-regulation framework exists, schools remain subject to restrictions relating to commercialization, capitation fees, and prescribed operational standards. Reimbursement mechanisms operate through state-administered processes.



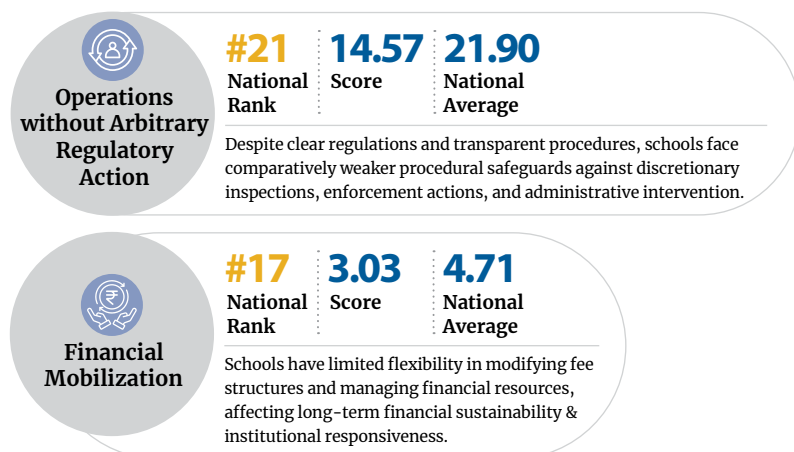
ACCOUNTABILITY & ENFORCEMENT

Schools are subject to regular and surprise inspections conducted by designated authorities. Inspection reports are publicly disclosed, and non-compliance may result in recognition withdrawal or closure following due process.

Strengths



Bottlenecks



Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)



Provide schools greater flexibility in fee management, resource allocation, and financial planning while maintaining appropriate transparency and accountability safeguards.

Expand Financial Flexibility



Strengthen Procedural Safeguards

Enhance protections against arbitrary inspections, enforcement actions, and administrative intervention through clearer due-process requirements and independent review mechanisms.



Risk-Based Regulatory Oversight

Reduce unnecessary administrative intervention and shift towards proportionate, risk-based regulatory oversight that focuses regulatory attention on areas of genuine concern.



Policy Pathway

Kerala demonstrates that regulatory clarity and compliance can be achieved through a highly structured legal framework. The state performs exceptionally well in providing accessible regulations, clearly defined procedures, and predictable compliance requirements, while also maintaining above-average levels of institutional autonomy. However, its overall score of **24.11 out of 100** indicates that important regulatory constraints remain despite its strong national ranking. Future reforms should focus on strengthening safeguards against discretionary enforcement, improving financial flexibility, and moving towards more risk-based regulatory oversight. Such reforms would build upon Kerala's strong regulatory foundations while further enhancing the ease of operating schools without compromising accountability or educational quality.

“What is relevant is that the institution is entitled to fix its own fee structure, which may include reasonable revenue surplus for the purpose of development of education and expansion of the institution, as long as it does not entail in profiteering and commercialisation.”

– Indian School v. State of Rajasthan, (2021) 10 SCC 517 at para 34.



Madhya Pradesh

EoOS Index 2026 – State Profile

SCORECARD



#15
National
Rank

Among all states assessed
under the EoOS Index



20.59
Overall
EoOS Score

Composite score out of 100



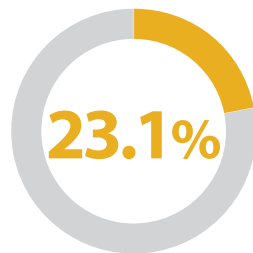
20.86
National
Average

All-India benchmark

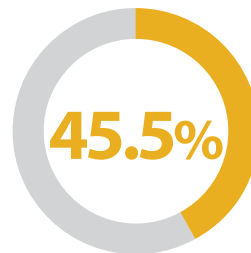


1,51,72,607
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Madhya Pradesh	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	25.52	37.36	#27
 Regulatory Compliance	18.41	33.32	#30
 Operations without Arbitrary Regulatory Action	25.37	21.90	#10
 Financial Sustainability & Resource Mobilisation	6.06	4.71	#10
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	37.50	20.72	#2

Mixed Performer

Ranked 15th nationally and performs close to the national average. The state combines one of the highest levels of institutional autonomy in the country with significant compliance burdens and weak regulatory clarity, creating a regulatory environment that provides operational freedom but remains administratively complex.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required to establish a school. Recognition is granted to institutions operating through registered societies or trusts and requires compliance with prescribed norms relating to infrastructure, financial stability, safety standards, student strength, and operational requirements.



GOVERNANCE & STAFFING

Schools must comply with prescribed teacher qualifications and salary standards. Curriculum and textbooks are determined by the State Government and relevant boards, while schools retain substantial flexibility in internal management arrangements.



FINANCIAL REGULATION

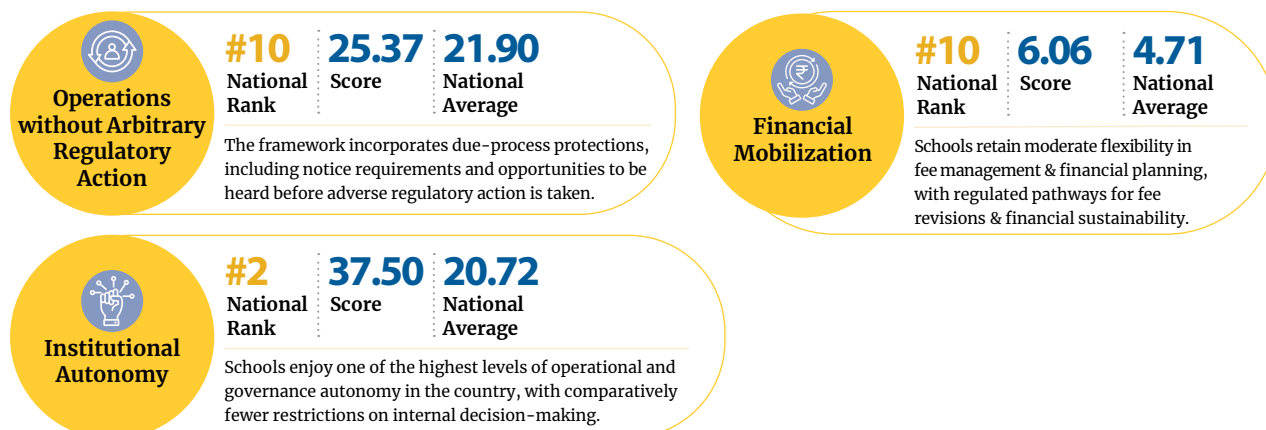
Fee increases of up to 10 percent are permitted, while higher revisions require approval through regulatory committees. Schools must submit fee proposals and comply with prescribed disclosure requirements.



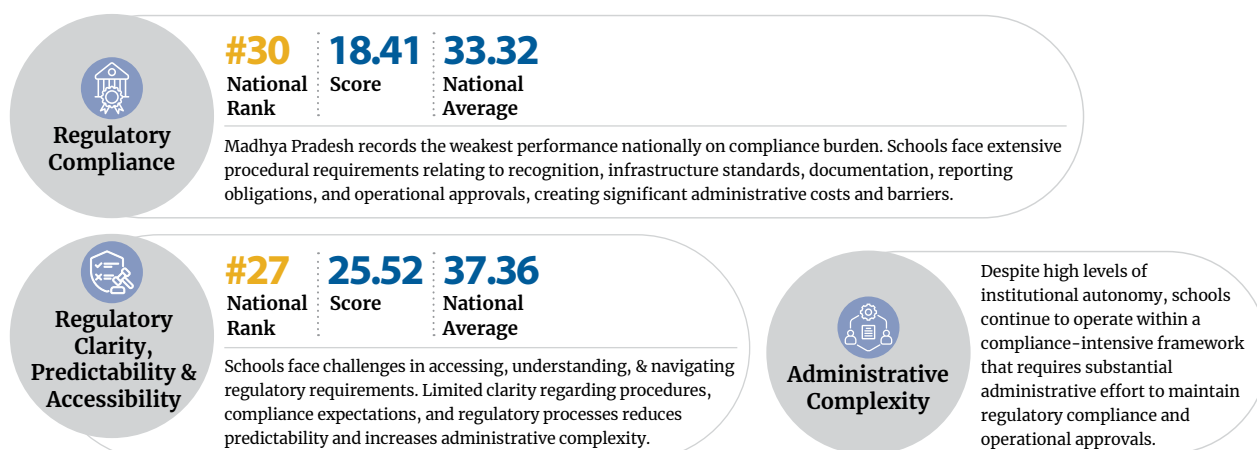
ACCOUNTABILITY & ENFORCEMENT

Recognition may be withdrawn only after notice and an opportunity to be heard. The state also retains powers to temporarily take over school management under specified circumstances.

Strengths



Bottlenecks



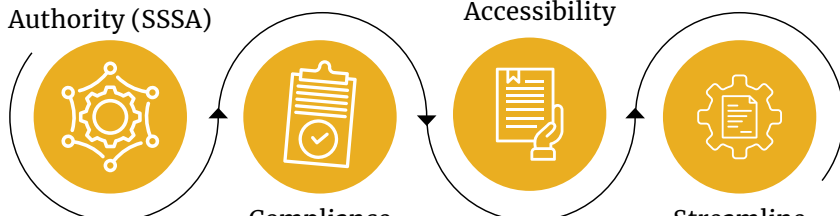
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Enhance transparency, accessibility, and communication of regulatory requirements, procedures, timelines, and compliance obligations through consolidated regulatory guidance and digital platforms.

Establish Independent State School Standards Authority (SSSA)

Improve Regulatory Accessibility



Compliance Rationalisation

Streamline Administrative Processes

Simplify recognition, reporting, documentation, infrastructure, and operational compliance requirements to reduce administrative burdens on schools while maintaining essential quality and safety standards.

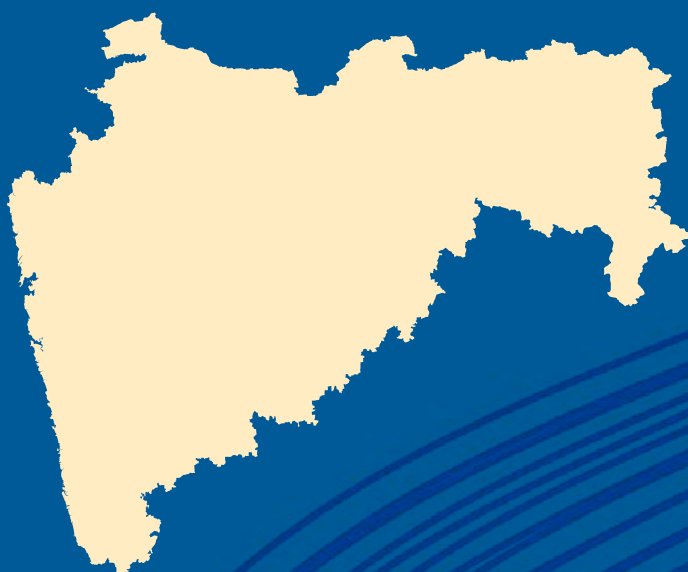
Reduce paperwork, duplication, and procedural complexity associated with approvals and regulatory interactions while preserving accountability and educational quality standards

Policy Pathway

Madhya Pradesh demonstrates that strong institutional autonomy can coexist with heavy compliance burdens. The state ranks among the strongest performers nationally on institutional autonomy and performs above average in financial mobilization and safeguards against arbitrary regulatory action. However, its overall score of **20.59 out of 100** reflects the significant impact of regulatory complexity, compliance burdens, and limited regulatory accessibility. Future reforms should focus on simplifying compliance requirements, improving regulatory transparency, and reducing administrative friction. Doing so would allow schools to better utilise the substantial operational freedom already available within the state's regulatory framework while creating a more enabling environment for educational provision.

“If parents do not pay fees on time, schools have almost no support or remedy. Government authorities usually do not intervene in such matters, and in most cases, the only option left for schools is to approach the courts.”

– Punjab School leader



Maharashtra

EoOS Index 2026 – State Profile

SCORECARD



#7
National
Rank

Among all states assessed
under the EoOS Index



24.17
Overall
EoOS Score

Composite score out of 100



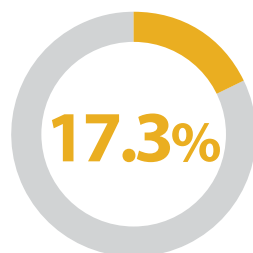
20.86
National
Average

All-India benchmark

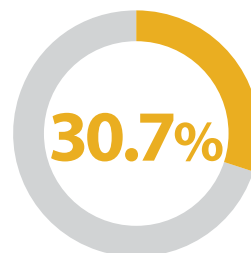


2,12,72,611
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Maharashtra	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	38.44	37.36	#14
 Regulatory Compliance	25.96	33.32	#28
 Operations without Arbitrary Regulatory Action	55.56	21.90	#1
 Financial Sustainability & Resource Mobilisation	7.57	4.71	#8
 School Lifecycle Operations	5.00	7.13	#28
 Institutional Autonomy	12.50	20.72	#18

**Top-Tier
Relative
Performer**

Ranked 7th nationally and performs above the national average. The state is distinguished by the strongest procedural safeguards against arbitrary regulatory action in the country. However, extensive compliance requirements, restrictive school lifecycle processes, and limited institutional autonomy continue to constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission to establish and must satisfy requirements relating to land, infrastructure, endowment funds, financial capacity, and educational need. Recognition follows a self-declaration and inspection-based process administered primarily at the district level.



GOVERNANCE & STAFFING

Teacher recruitment is governed by prescribed procedures including public advertisements, eligibility requirements, reservation norms, and prescribed service conditions. Curriculum and textbooks are determined by the competent authority.



FINANCIAL REGULATION

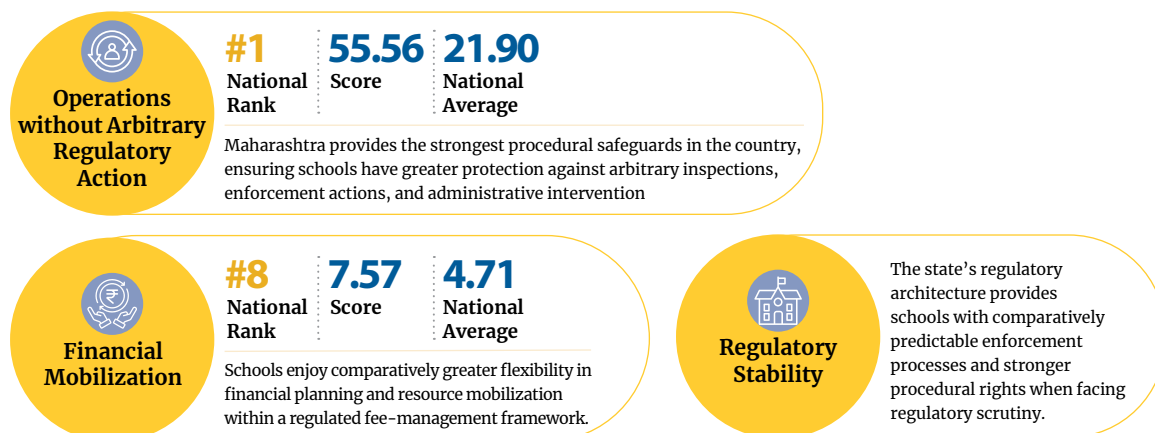
Fee regulation is administered through District Fee Regulatory Committees. Fee revisions require approval and may also depend on parental consent thresholds. Capitation fees are prohibited and subject to penalties.



ACCOUNTABILITY & ENFORCEMENT

Schools are subject to inspections by multiple authorities. Recognition, permissions, and affiliations may be withdrawn for non-compliance, while provisions also exist for management takeover and school closure under specified circumstances.

Strengths



Bottlenecks



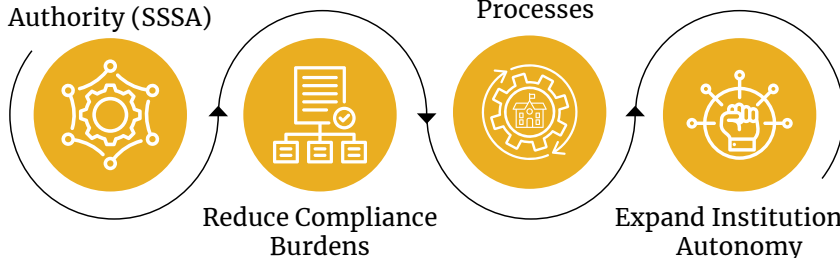
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Streamline procedures governing establishment, recognition, expansion, affiliation, and closure of schools to reduce barriers to institutional growth and innovation.

Ease Lifecycle Processes



Reduce Compliance Burdens

Simplify approval, documentation, reporting, and operational compliance requirements while maintaining essential accountability and quality standards.

Expand Institutional Autonomy

Provide schools greater flexibility in governance, staffing, and operational decision-making while preserving appropriate transparency and accountability safeguards.

Policy Pathway

Maharashtra demonstrates that strong procedural safeguards can substantially improve regulatory certainty for schools. The state ranks first nationally in protections against arbitrary regulatory action, providing schools with greater transparency, due-process protections, and predictability when interacting with regulatory authorities. However, its overall score of **24.17 out of 100** indicates that significant regulatory barriers remain despite this exceptional strength. Extensive compliance requirements, restrictive lifecycle processes, and limited institutional autonomy continue to create friction for school operators. Future reforms should focus on simplifying compliance obligations, easing establishment and expansion processes, and providing schools greater operational flexibility. These reforms would complement Maharashtra's strong safeguards framework and significantly improve the overall ease of operating schools.

“The primary obligation to provide education lies with the State, and it is their responsibility that every child has access to education. Participation of private unaided schools has been permitted out of necessity, since the State is unable to perform its function adequately.”

– Mahavir Sr. Model School v. Directorate of Education,
(2023) 2 HCC (Del) 147 at para 33.



Manipur

EoOS Index 2026 – State Profile

SCORECARD



#14
National
Rank

Among all states assessed
under the EoOS Index



20.61
Overall
EoOS Score

Composite score out of 100



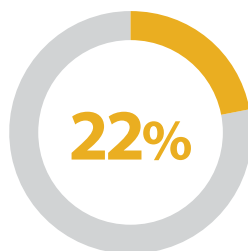
20.86
National
Average

All-India benchmark

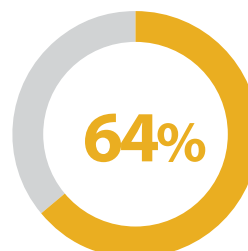


6,73,118
Student
Enrolment

Total school-going
population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Manipur	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	36.61	37.36	#16
 Regulatory Compliance	32.11	33.32	#17
 Operations without Arbitrary Regulatory Action	35.73	21.90	#3
 Financial Sustainability & Resource Mobilisation	0.00	4.71	#23
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	12.50	20.72	#18

Mixed Performer

Ranked 14th nationally and performs close to the national average. The state combines strong procedural safeguards and relatively predictable regulatory processes with weak financial flexibility and limited institutional autonomy, creating a stable but restrictive operating environment for schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior registration before establishment and must demonstrate educational need, infrastructure adequacy, financial viability, and compliance with prescribed norms. Recognition is granted following inspection and compliance verification.



GOVERNANCE & STAFFING

The state prescribes teacher strength, service conditions, salary structures, and approval requirements for employee dismissal. Teacher qualifications are determined by the competent academic authority.



FINANCIAL REGULATION

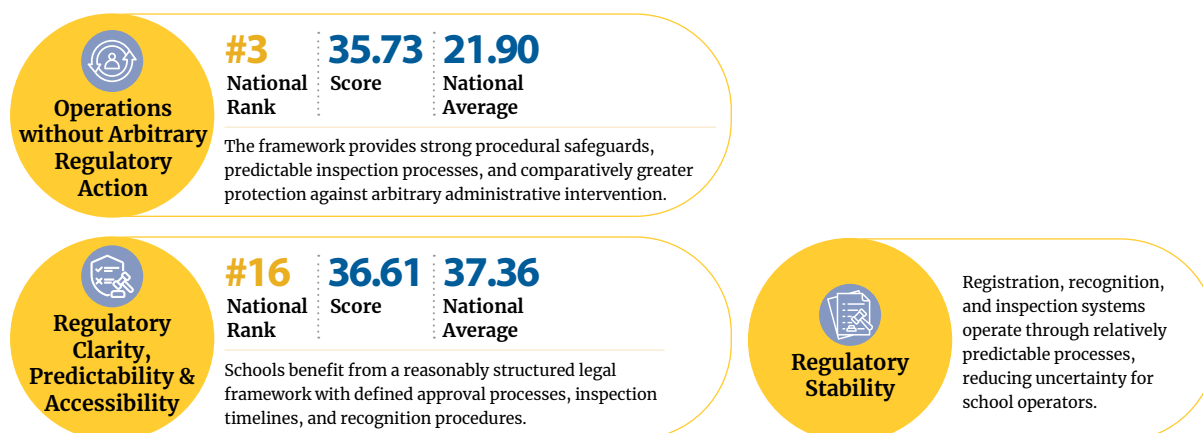
Schools are required to maintain designated school funds, and revenues must be utilised only for prescribed educational purposes. Regulatory flexibility relating to fee management and resource mobilisation remains limited.



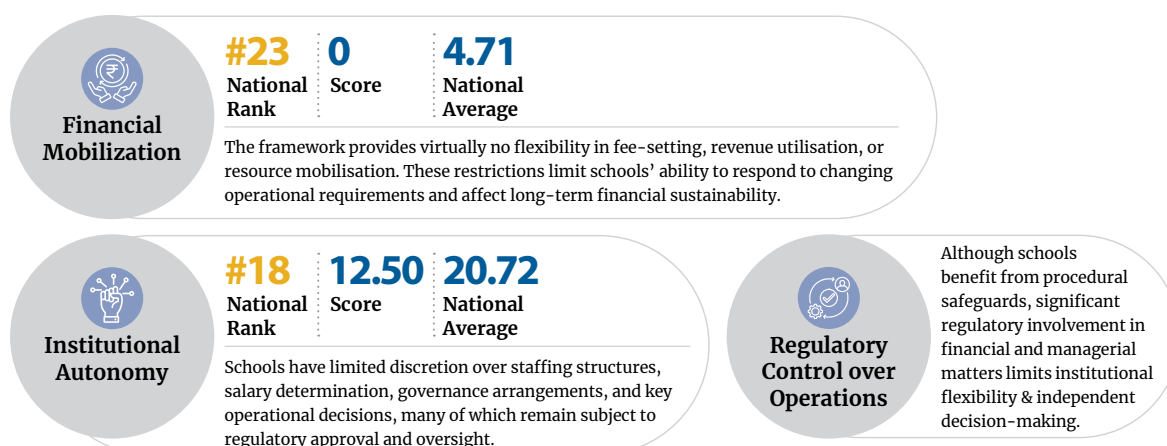
ACCOUNTABILITY & ENFORCEMENT

Annual inspections are mandatory and conducted by authorised officers. Recognition may be withdrawn for non-compliance, while provisions also exist for takeover of management and property under specified circumstances.

Strengths



Bottlenecks



Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Maintain strong protections against arbitrary regulatory action while improving flexibility in operational and managerial matters

Preserve and Enhance Procedural Safeguards



Policy Pathway

Manipur demonstrates that strong procedural safeguards and predictable regulatory enforcement can create a relatively stable operating environment for schools. The state performs particularly well in protecting schools against arbitrary regulatory action and maintains reasonably structured approval, recognition, and inspection processes. However, its overall score of **20.60 out of 100** highlights the continuing impact of limited financial flexibility and constrained institutional autonomy. Future reforms should focus on empowering schools with greater financial and managerial freedom while preserving the state's strong safeguards against arbitrary regulatory intervention. Such reforms would improve institutional sustainability and strengthen the overall ease of operating schools across the state.

“Every year, we are asked to pay money to the government for maintaining the education portal. Charges like these keep increasing the burden on schools and make the whole process more confusing for us.”

– Rajasthan School Leader



Meghalaya

EoOS Index 2026 – State Profile

SCORECARD



#18
National
Rank

Among all states assessed
under the EoOS Index



19.33
Overall
EoOS Score

Composite score out of 100



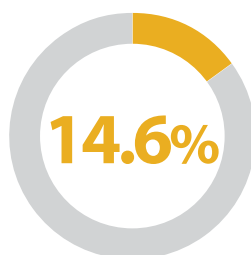
20.86
National
Average

All-India benchmark

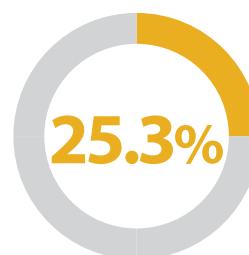


10,61,320
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

	Domain	Meghalaya	National Average
	Regulatory Clarity, Predictability & Accessibility	34.73	37.36
	Regulatory Compliance	44.04	33.32
	Operations without Arbitrary Regulatory Action	8.87	21.90
	Financial Sustainability & Resource Mobilisation	6.06	4.71
	School Lifecycle Operations	6.66	7.13
	Institutional Autonomy	15.62	20.72

Rank
#17
#2
#29
#10
#9
#17

Mixed Performer

Ranked 18th nationally and performs slightly below the national average. The state combines one of the country's most compliance-friendly regulatory environments with weak safeguards against arbitrary regulatory action and moderate constraints on institutional autonomy.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior Opening Permission before establishment and must satisfy requirements relating to educational need, enrolment levels, land availability, reserve funds, and operation through a registered society or trust.



GOVERNANCE & STAFFING

Teacher salaries and service conditions are substantially governed through government orders. Prior approval is required before dismissal of staff, while teacher qualifications and curriculum requirements are prescribed by the relevant authorities.



FINANCIAL REGULATION

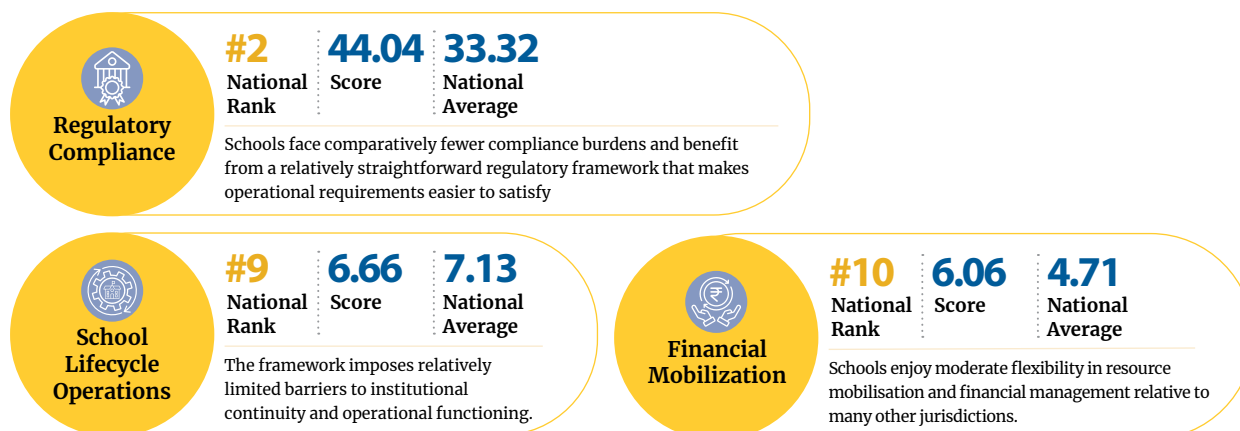
Schools must submit fee structures for approval and utilise revenues solely for prescribed educational purposes. Financial management remains subject to regulatory oversight.



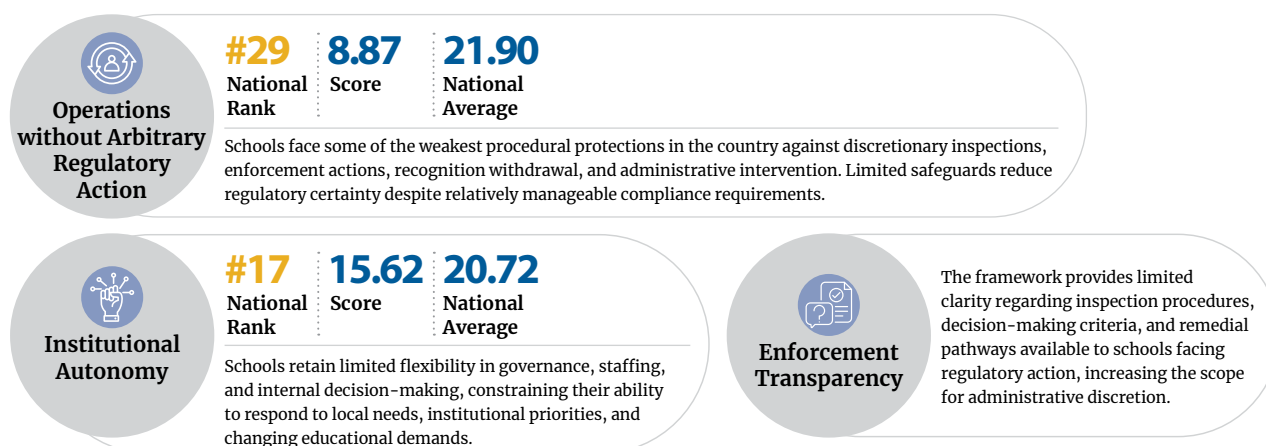
ACCOUNTABILITY & ENFORCEMENT

The Director may direct schools to rectify deficiencies, while recognition may be withdrawn for non-compliance or poor academic performance. The state also retains powers relating to takeover of management and property.

Strengths



Bottlenecks



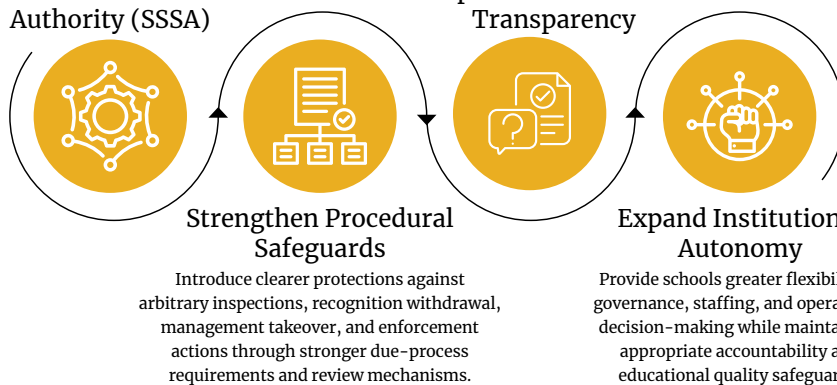
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Clearly define inspection procedures, decision-making criteria, reporting requirements, and regulatory remedies available to schools to improve predictability and confidence in the regulatory system

Improve Enforcement Transparency



Policy Pathway

Meghalaya demonstrates that a low-compliance regulatory environment does not automatically translate into a highly enabling operating environment. The state performs exceptionally well in reducing compliance burdens and maintains moderate performance in financial mobilization and school lifecycle operations. However, its overall score of **19.33 out of 100** reflects significant challenges relating to procedural safeguards, enforcement transparency, and institutional autonomy. Future reforms should focus on strengthening protections against discretionary regulatory action, improving transparency in inspection and enforcement processes, and expanding school-level decision-making authority. These reforms would preserve Meghalaya's strong performance in compliance simplification while creating a more predictable and enabling environment for schools.

“There needs to be a collaborative effort between private unaided schools and the regulatory authorities to maintain a balance between the right to charge fees and the need for regulatory control to ensure the quality and affordability of education. Private unaided schools must maintain transparency and accountability in their financial operations, while regulatory authorities must ensure transparency and accountability in their regulatory actions. They must ensure that the surplus generated is utilised for the improvement and development of the school and their students.”

*– Mahavir Sr. Model School v. Directorate of Education,
(2023) 2 HCC (Del) 147 at para 33.*



Mizoram

EoOS Index 2026 – State Profile

SCORECARD



#25
National
Rank

Among all states assessed
under the EoOS Index



16.90
Overall
EoOS Score

Composite score out of 100



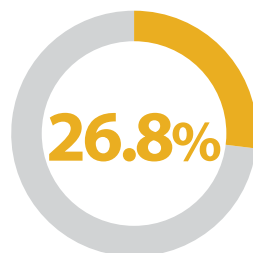
20.86
National
Average

All-India benchmark

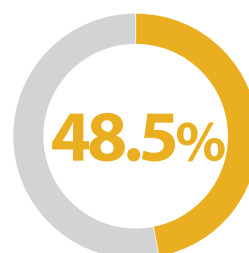


2,79,882
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Mizoram	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	33.83	37.36	#19
 Regulatory Compliance	27.75	33.32	#26
 Operations without Arbitrary Regulatory Action	17.70	21.90	#19
 Financial Sustainability & Resource Mobilisation	6.06	4.71	#10
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	9.37	20.72	#26

Developing Regulatory Environment

Ranked 25th nationally and performs below the national average, with moderate financial flexibility but significant challenges relating to compliance burden, institutional autonomy, and procedural safeguards.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission to establish and must comply with detailed requirements relating to infrastructure, land, educational need, financial resources, staffing, and governance arrangements. Recognition is granted subject to compliance with both state-level and RTE norms.



GOVERNANCE & STAFFING

Teacher recruitment, service conditions, salaries, qualifications, and disciplinary actions are governed through detailed statutory provisions. Prior approval is required for dismissal of staff, and management decisions remain subject to significant regulatory oversight.



FINANCIAL REGULATION

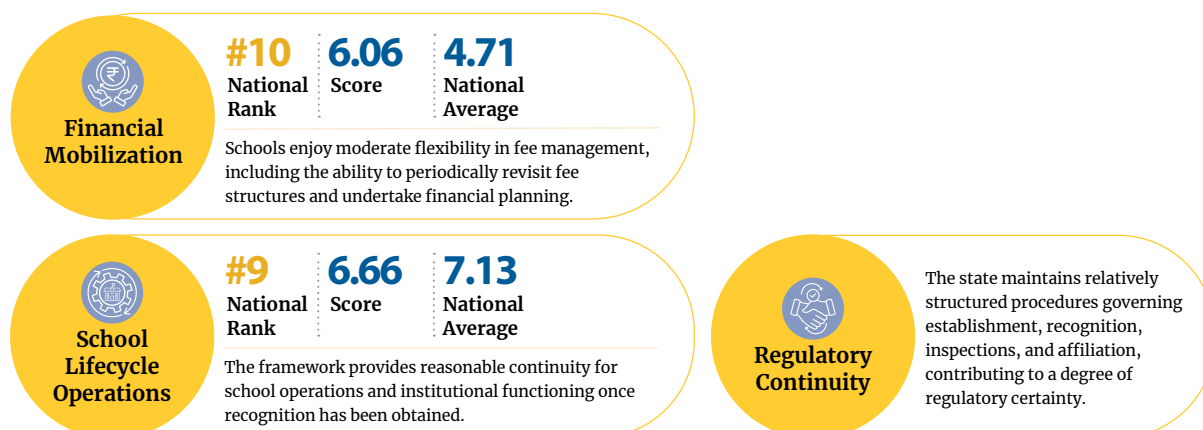
Schools must submit fee statements and utilise revenues for prescribed educational purposes. School Management Committees are permitted to revisit fee caps periodically, providing limited flexibility in financial planning.



ACCOUNTABILITY & ENFORCEMENT

The framework provides for regular and surprise inspections, maintenance of inspection records, structured inspection procedures, and recognition withdrawal in cases of non-compliance. The state also retains powers to take over school management under specified circumstances.

Strengths



Bottlenecks



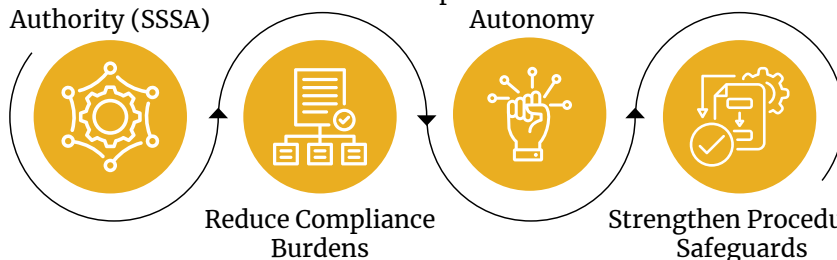
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Provide schools greater discretion over governance structures, staffing decisions, and operational management while preserving appropriate accountability safeguards.

Expand Institutional Autonomy



Reduce Compliance Burdens

Simplify documentation, reporting, staffing, infrastructure, and operational requirements imposed on schools while maintaining essential quality and safety standards

Strengthen Procedural Safeguards

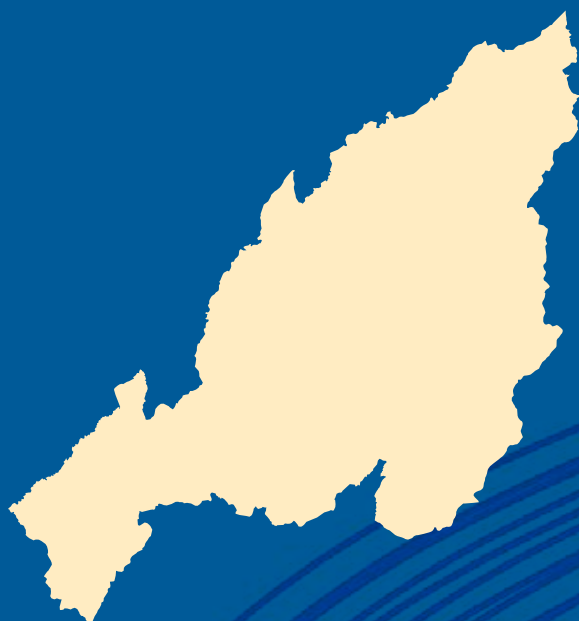
Enhance protections against discretionary regulatory action through clearer inspection procedures, due-process requirements, enforcement standards, and independent review mechanisms.

Policy Pathway

Mizoram's regulatory framework provides schools with moderate financial flexibility and relatively stable operational continuity once recognition has been secured. However, its overall score of **16.89 out of 100** reflects substantial constraints arising from compliance burdens, limited institutional autonomy, and comparatively weaker procedural safeguards. Given the significant role played by private schools in educating nearly half of the state's students, future reforms should focus on reducing regulatory complexity, simplifying compliance obligations, and empowering schools with greater decision-making authority. Strengthening procedural safeguards while expanding operational flexibility would significantly improve the ease of operating schools without compromising educational quality or accountability.

“Unaided schools, it must be borne in mind, survive on the fees that they receive from parents. It would be facile to expect quality education to be imparted by unaided schools if one has to be tightfisted when it comes to the fees that they can legitimately charge from parents.”

– Bluebells School International Kailash v. Directorate of Education, (2024) 4 HCC (Del) 694 at para 48.



Nagaland

EoOS Index 2026 – State Profile

SCORECARD



#16
National
Rank

Among all states assessed
under the EoOS Index



20.05
Overall
EoOS Score

Composite score out of 100



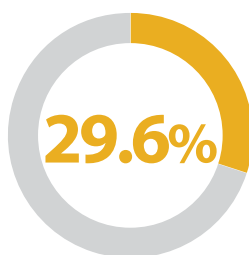
20.86
National
Average

All-India benchmark

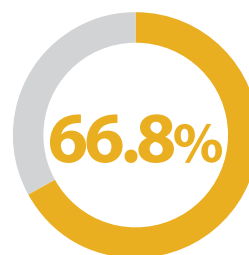


4,14,421
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Nagaland	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	30.43	37.36	#26
 Regulatory Compliance	36.50	33.32	#7
 Operations without Arbitrary Regulatory Action	8.34	21.90	#30
 Financial Sustainability & Resource Mobilisation	0.00	4.71	#23
 School Lifecycle Operations	7.50	7.13	#5
 Institutional Autonomy	37.50	20.72	#2

Mixed Performer

Ranked 16th nationally and performs close to the national average. The state combines exceptional institutional autonomy and relatively streamlined school lifecycle processes with weak regulatory transparency, limited financial flexibility, and some of the weakest safeguards against arbitrary regulatory action in the country.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission from the Nagaland Board of School Education before establishment or upgradation. Approval is contingent upon compliance with requirements relating to infrastructure, land availability, educational need, financial resources, and institutional capacity.



GOVERNANCE & STAFFING

Schools enjoy significant flexibility in internal administration and staffing decisions, although curriculum requirements, academic calendars, staffing patterns, and qualification standards are prescribed by the Board.



FINANCIAL REGULATION

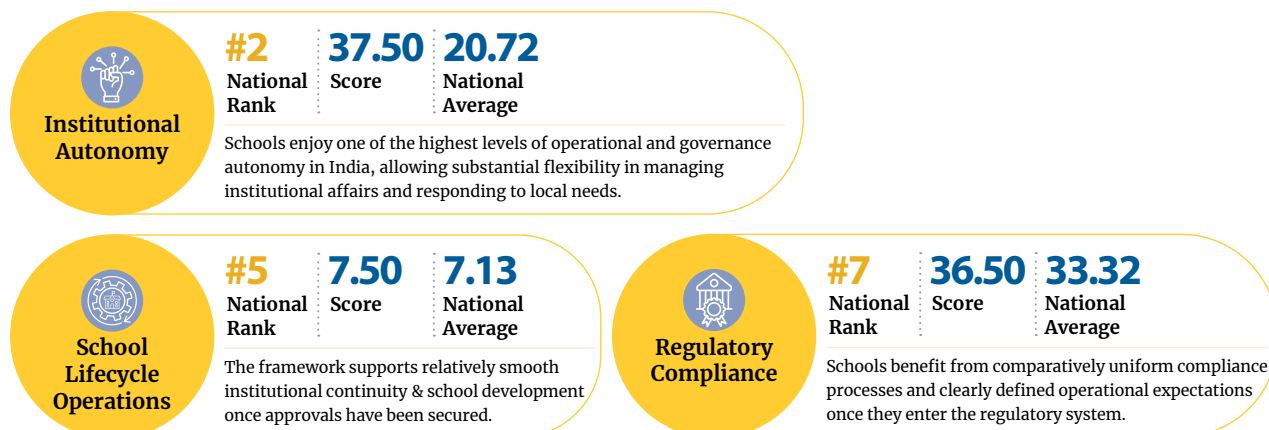
Fee revisions require consultation with parents, while capitation fees and mid-session fee increases are prohibited. The framework provides limited flexibility in financial planning, fee management, and resource mobilisation.



ACCOUNTABILITY & ENFORCEMENT

Schools are subject to regular and surprise inspections conducted by education authorities and the Board. Recognition may be withdrawn for non-compliance, academic underperformance, or administrative irregularities.

Strengths



Bottlenecks



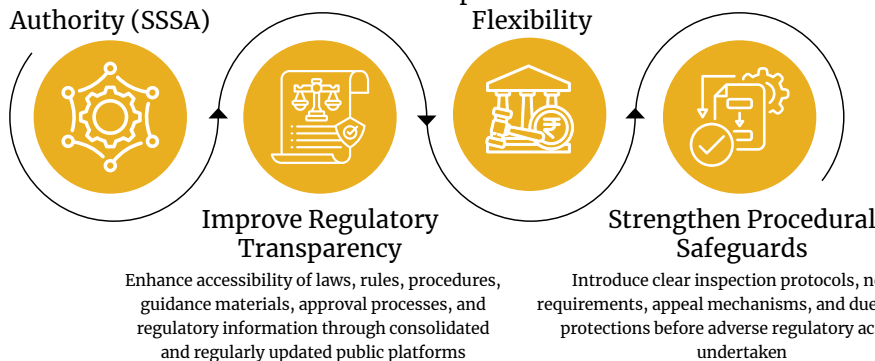
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Provide schools greater autonomy in fee management, resource utilisation, and financial planning while maintaining appropriate accountability and transparency safeguards.

Expand Financial Flexibility



Improve Regulatory Transparency
Enhance accessibility of laws, rules, procedures, guidance materials, approval processes, and regulatory information through consolidated and regularly updated public platforms

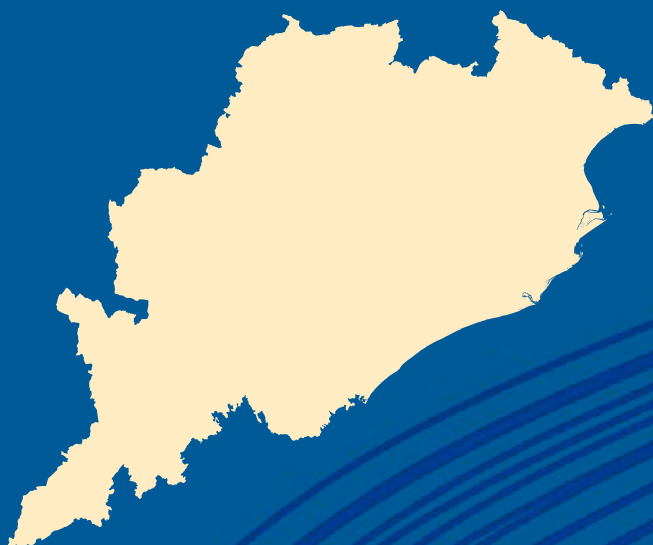
Strengthen Procedural Safeguards
Introduce clear inspection protocols, notice requirements, appeal mechanisms, and due-process protections before adverse regulatory action is undertaken

Policy Pathway

Nagaland demonstrates that strong institutional autonomy can coexist with regulatory uncertainty. The state ranks among the national leaders in institutional autonomy and performs well in school lifecycle operations, allowing schools considerable flexibility in managing internal affairs and maintaining operational continuity. However, its overall score of **20.04 out of 100** reflects significant constraints arising from weak procedural safeguards, limited financial flexibility, and comparatively low regulatory transparency. Given that more than two-thirds of students in Nagaland attend private schools, future reforms should focus on improving transparency, strengthening protections against arbitrary regulatory action, and expanding financial flexibility. These reforms would complement the state's existing strengths and create a more predictable and enabling environment for school operators.

“Obtaining a fire safety certificate has become one of the biggest hurdles in securing school recognition. The new online application system treats every application as a completely fresh case, with no reference to previously issued certificates. Even schools that have been functioning for over 30 years are often required to dismantle and reconstruct existing infrastructure merely to comply with renewed certification requirements.”

– Tripura School Leader



Odisha

EoOS Index 2026 – State Profile

SCORECARD



#13
National
Rank

Among all states assessed
under the EoOS Index



21.15
Overall
EoOS Score

Composite score out of 100



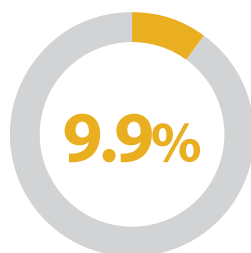
20.86
National
Average

All-India benchmark

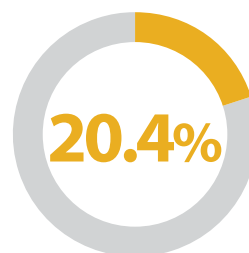


76,44,052
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Odisha	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	38.82	37.36	#12
 Regulatory Compliance	33.33	33.32	#14
 Operations without Arbitrary Regulatory Action	22.91	21.90	#12
 Financial Sustainability & Resource Mobilisation	0.00	4.71	#23
 School Lifecycle Operations	5.83	7.13	#26
 Institutional Autonomy	26.00	20.72	#10

Above-Average Performer

Ranked 13th nationally and performs slightly above the national average. The state combines moderate regulatory certainty, above-average institutional autonomy, and reasonable procedural safeguards, but continues to face significant constraints in financial flexibility and school lifecycle operations.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission to establish and must satisfy conditions relating to infrastructure, financial capacity, educational need, registration under a society or trust, and compliance with Right to Education Act norms. Temporary recognition may be granted in cases of partial compliance.



GOVERNANCE & STAFFING

Teacher recruitment, qualifications, staffing norms, and institutional development processes are governed by state-prescribed criteria. Upgradation of schools follows procedures broadly similar to establishment requirements.



FINANCIAL REGULATION

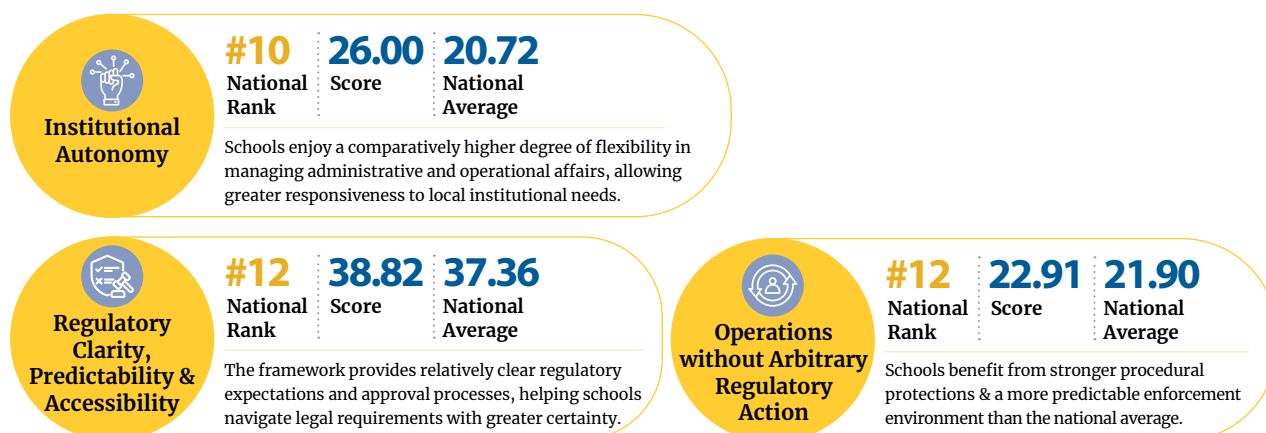
Schools must disclose fee structures during recognition and are prohibited from collecting capitation fees. However, the framework provides limited mechanisms supporting fee flexibility, resource mobilisation, or long-term financial sustainability.



ACCOUNTABILITY & ENFORCEMENT

Recognition may be withdrawn for non-compliance, poor academic performance, or financial irregularities following due process. Schools must maintain separate bank accounts for RTE reimbursements and provide prior notice before closure.

Strengths



Bottlenecks



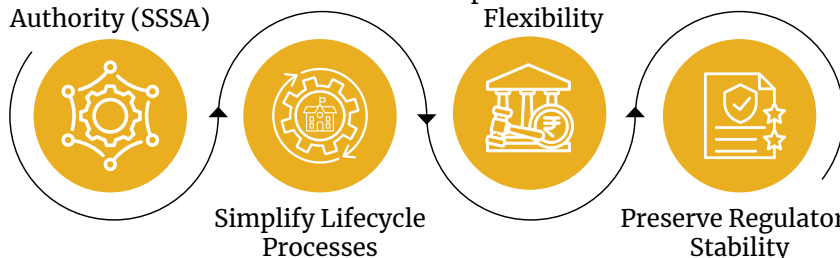
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Introduce mechanisms that enable schools to revise fees, mobilise resources, undertake long-term financial planning, and invest in institutional development while maintaining accountability safeguards.

Establish Independent State School Standards Authority (SSSA)

Expand Financial Flexibility



Simplify Lifecycle Processes
Reduce procedural barriers associated with recognition, expansion, renewal, upgradation, and institutional restructuring to support school growth and responsiveness.

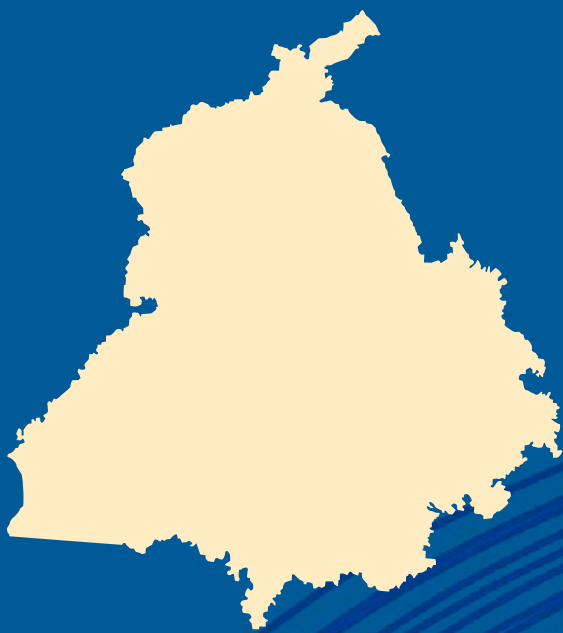
Preserve Regulatory Stability
Maintain existing strengths in procedural certainty, compliance management, and protection against arbitrary action while improving operational flexibility and sustainability.

Policy Pathway

Odisha provides schools with a relatively stable and predictable regulatory environment, combining above-average institutional autonomy with moderate levels of regulatory clarity, compliance ease, and protection against arbitrary regulatory action. However, its overall score of **21.15 out of 100** highlights continuing constraints on school sustainability and growth. The state's weakest performance lies in financial mobilization, where schools have limited flexibility to manage resources and plan for long-term development. Additionally, procedural barriers associated with recognition, expansion, and institutional restructuring continue to affect operational agility. Future reforms should focus on strengthening financial autonomy and simplifying lifecycle-related processes while preserving the state's existing strengths in regulatory stability and procedural fairness.

“It is one thing to say that the State may regulate the fee structure of private unaided schools to ensure that the school management does not indulge in profiteering and commercialisation, but in the guise of exercise of that power, it cannot transcend the line of regulation and impinge upon the autonomy of the school to fix and collect “just” and “permissible” school fees from its students. It is certainly not an essential commodity governed by the legislation such as the Essential Commodities Act, 1955 empowering the State to fix tariff or price thereof.”

*– Indian School v. State of Rajasthan,
(2021) 10 SCC 517 at para 118.*



Punjab

EoOS Index 2026 – State Profile

SCORECARD



#10
National
Rank

Among all states assessed
under the EoOS Index



22.79
Overall
EoOS Score

Composite score out of 100



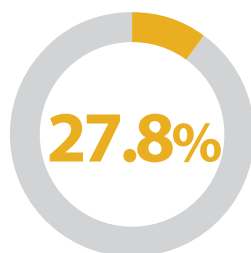
20.86
National
Average

All-India benchmark

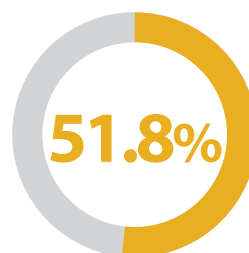


59,08,507
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

More than half of Punjab's students are enrolled in private schools, underscoring the importance of a regulatory framework that supports educational choice while ensuring accountability and quality.

Domain Performance

Domain	Punjab	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	37.89	37.36	#15
 Regulatory Compliance	34.29	33.32	#10
 Operations without Arbitrary Regulatory Action	24.83	21.90	#11
 Financial Sustainability & Resource Mobilisation	3.03	4.71	#17
 School Lifecycle Operations	11.66	7.13	#1
 Institutional Autonomy	25.00	20.72	#11

Strong Performer

Punjab ranks among the top ten states nationally on the Ease of Operating Schools Index and performs above the national average across five of six domains. The state's strongest performance is in School Lifecycle Operations, where it ranks 1st nationally, reflecting a comparatively streamlined environment for school establishment, recognition, affiliation, and continuation.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Punjab follows a relatively liberal entry framework for private schools. Prior government permission is not required for establishment. Recognition is granted through a self-declaration process subject to compliance with prescribed infrastructure standards, governance norms, pupil-teacher ratios, and RTE requirements.



GOVERNANCE & STAFFING

Teacher qualifications, curriculum standards, and service conditions are governed by statutory provisions and board requirements. Certain employment actions, including dismissal or reduction in rank of staff, require approval from the competent authority.



FINANCIAL REGULATION

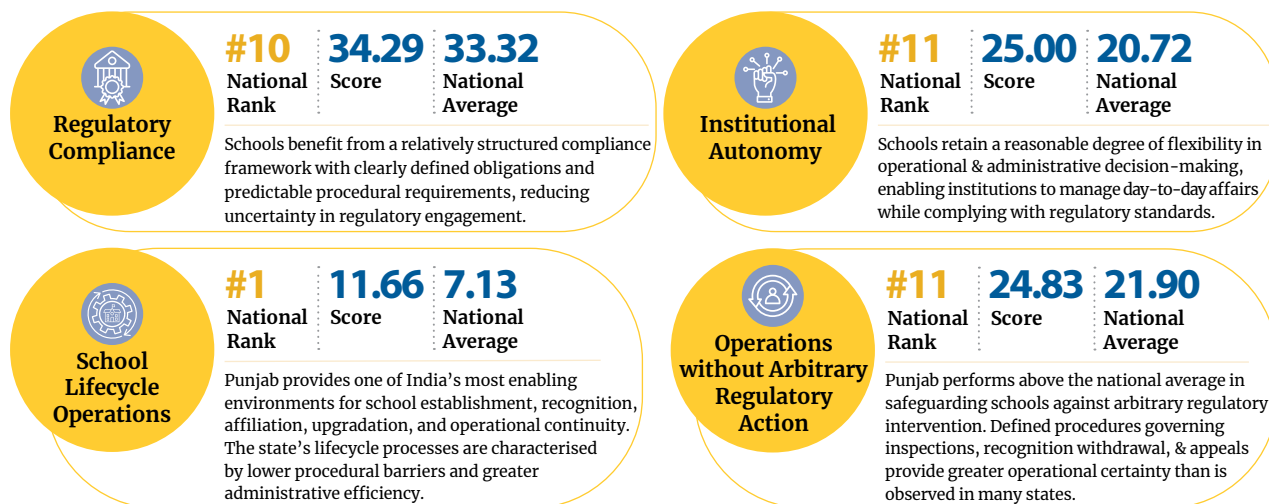
Schools retain the authority to determine fee structures subject to regulatory oversight and an annual fee increase cap. Capitation fees are prohibited, and violations may result in penalties, including withdrawal of recognition. RTE reimbursements are processed through prescribed financial & documentation procedures.



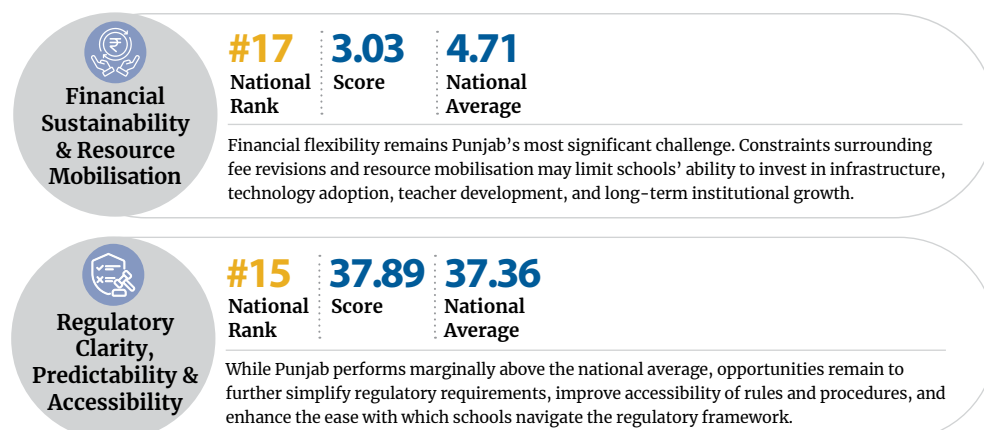
ACCOUNTABILITY & ENFORCEMENT

Periodic inspections are conducted through designated committees, & recognition may be withdrawn following due process involving notice, inspection, and opportunity for representation. Schools may appeal adverse decisions before the State Commission for Protection of Child Rights.

Strengths



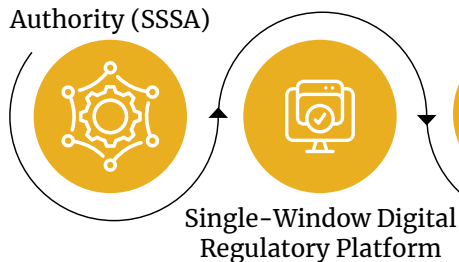
Bottlenecks



Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

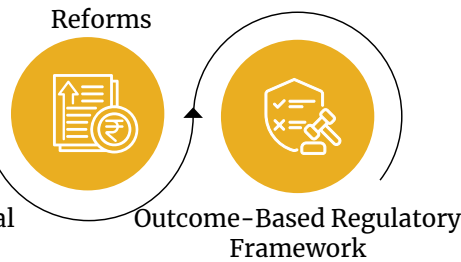
Establish Independent State School Standards Authority (SSSA)



Integrate recognition, affiliation, compliance filings, inspections, and grievance redressal into a unified digital platform to reduce administrative burden and improve regulatory transparency.

Review fee regulation mechanisms and expand avenues for legitimate resource mobilisation to enable schools to make long-term investments in quality enhancement, infrastructure, and innovation while maintaining accountability safeguards.

Financial Enablement Reforms



Gradually shift from input-heavy compliance requirements toward outcome-focused regulation that emphasises student learning, safety, transparency, and institutional performance rather than procedural compliance alone

Policy Pathway

Punjab combines strong school lifecycle processes, relatively predictable compliance systems, and safeguards against arbitrary regulatory intervention, making it one of the more conducive regulatory environments for private schools in India. The state's top national ranking in School Lifecycle Operations demonstrates the benefits of reducing procedural barriers while maintaining regulatory oversight.

Going forward, Punjab's reform agenda should focus on strengthening financial sustainability, modernising regulatory delivery mechanisms, and institutionalising independent regulatory oversight through an autonomous State School Standards Authority. Such reforms would complement the state's existing strengths and help create a more balanced ecosystem that promotes accountability, innovation, and educational growth.

By improving financial enablement and regulatory modernisation, Punjab is well positioned to evolve from a strong-performing state into a national leader in school governance reform and ease of operating schools.

“It would be good to see if regulations become supportive because ultimately, the government and the private schools are working for the benefit of the students. If the education becomes child-centric and we look at the benefit of the students, I think we can also improve the learning outcomes.”

- New Delhi, School Operator



Rajasthan

EoOS Index 2026 – State Profile

SCORECARD



#21
National
Rank

Among all states assessed
under the EoOS Index



18.46
Overall
EoOS Score

Composite score out of 100



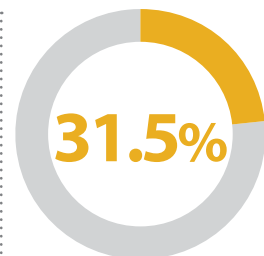
20.86
National
Average

All-India benchmark

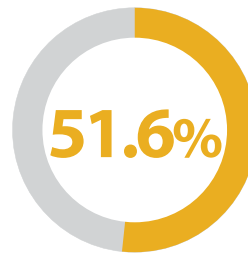


1,63,64,187
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Rajasthan	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	33.26	37.36	#21
 Regulatory Compliance	28.54	33.32	#24
 Operations without Arbitrary Regulatory Action	21.89	21.90	#14
 Financial Sustainability & Resource Mobilisation	7.06	4.71	#9
 School Lifecycle Operations	7.50	7.13	#5
 Institutional Autonomy	12.50	20.72	#18

Developing Regulatory Environment

Ranked 21st nationally and performs below the national average, combining relatively strong financial flexibility and school lifecycle operations with challenges in compliance, regulatory clarity, and institutional autonomy.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required to establish a school. Recognition is granted through separate mechanisms for elementary and higher-level institutions and requires compliance with infrastructure, governance, financial, staffing, and RTE-related norms.



GOVERNANCE & STAFFING

Teacher recruitment must follow merit-based procedures through public advertisements and prescribed selection processes. Dismissal of employees requires prior approval of the Director, while qualifications and curriculum are prescribed by the State Government and relevant boards



FINANCIAL REGULATION

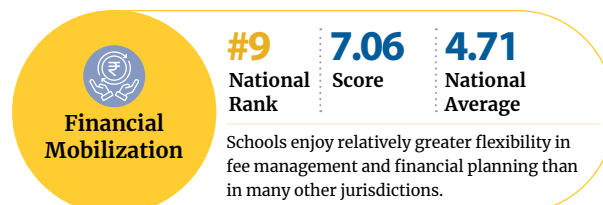
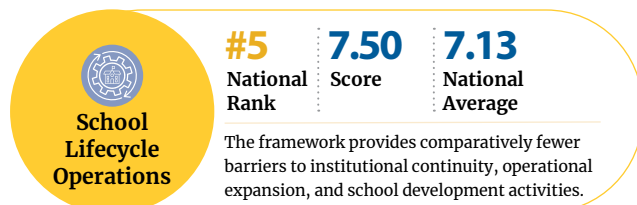
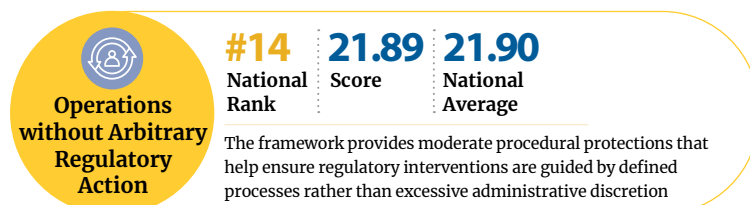
Fee regulation is administered through School Level Fee Committees and Divisional Fee Regulatory Committees. Schools may provisionally increase fees by up to 10 percent pending approval, while capitation fees are prohibited.



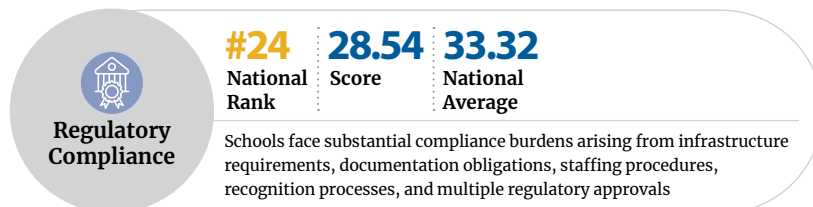
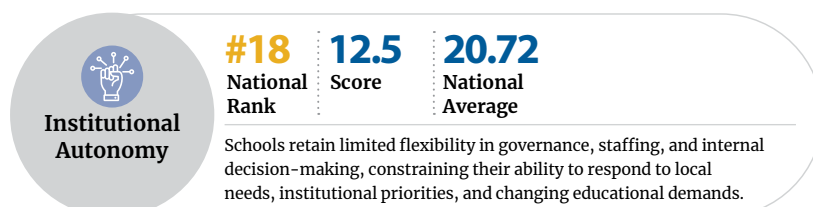
ACCOUNTABILITY & ENFORCEMENT

Schools are inspected by Board-appointed committees, and recognition may be suspended or withdrawn for non-compliance, fraud, or mismanagement. The state also retains powers relating to management takeover and school closure approvals.

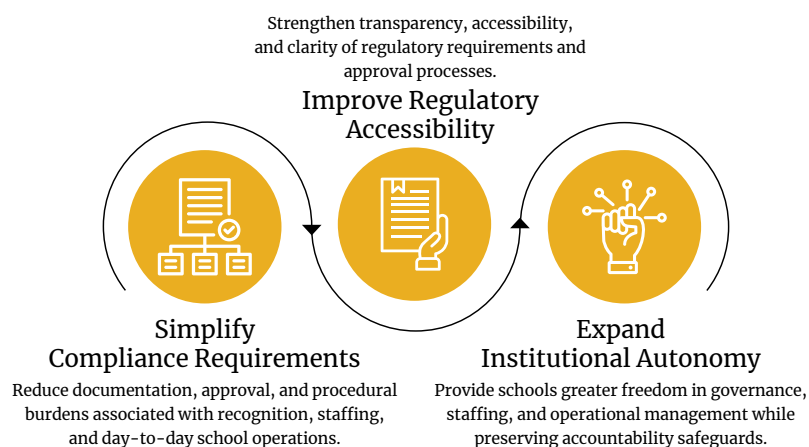
Strengths



Bottlenecks



Reform Priorities

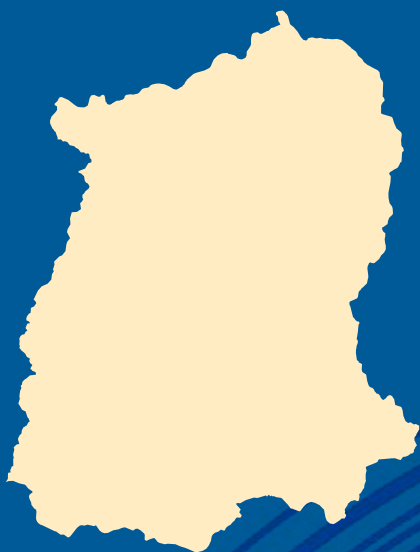


Policy Pathway

Rajasthan demonstrates relatively strong performance in financial flexibility and school lifecycle operations, providing schools with a stable foundation for institutional continuity and sustainability. However, extensive compliance requirements, regulatory complexity, and limited institutional autonomy continue to constrain ease of operation. Future reforms should focus on simplifying compliance processes and expanding managerial flexibility, enabling schools to better utilise the advantages already present in the state's regulatory framework.

“Law is well-settled that maximum autonomy should be given in the administration of private unaided institutions as presence of Government interference in the Administration of such Institutions will undermine their independence.”

*– Manju Sipayya v. Directorate of Education
2019 SCC OnLine Del 10867 at para a25.*



Sikkim

EoOS Index 2026 – State Profile

SCORECARD



#30
National
Rank

Among all states assessed
under the EoOS Index



13.98
Overall
EoOS Score

Composite score out of 100



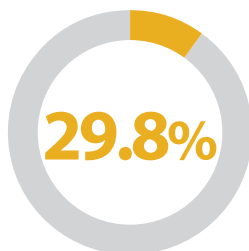
20.86
National
Average

All-India benchmark

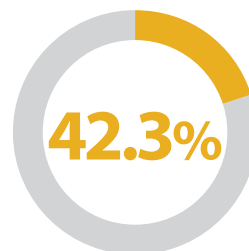


1,17,576
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Sikkim	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	19.97	37.36	#30
 Regulatory Compliance	34.29	33.32	#10
 Operations without Arbitrary Regulatory Action	10.43	21.90	#26
 Financial Sustainability & Resource Mobilisation	0.00	4.71	#23
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	12.50	20.72	#18

Reform Priority State

Ranked 30th nationally and records the lowest overall performance in the Ease of Operating Schools Index. While the state performs reasonably well in regulatory compliance and school lifecycle operations, significant weaknesses in regulatory clarity, financial flexibility, and procedural safeguards substantially constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required to establish a school. Recognition is granted through a self-declaration process and requires compliance with infrastructure, pupil-teacher ratio, governance, and Right to Education Act-related norms, followed by inspection and verification.



GOVERNANCE & STAFFING

Teacher qualifications are prescribed by the academic authority, while curriculum and medium of instruction are determined by the Board or competent authority. The framework imposes relatively limited direct regulation on staffing and salary decisions.



FINANCIAL REGULATION

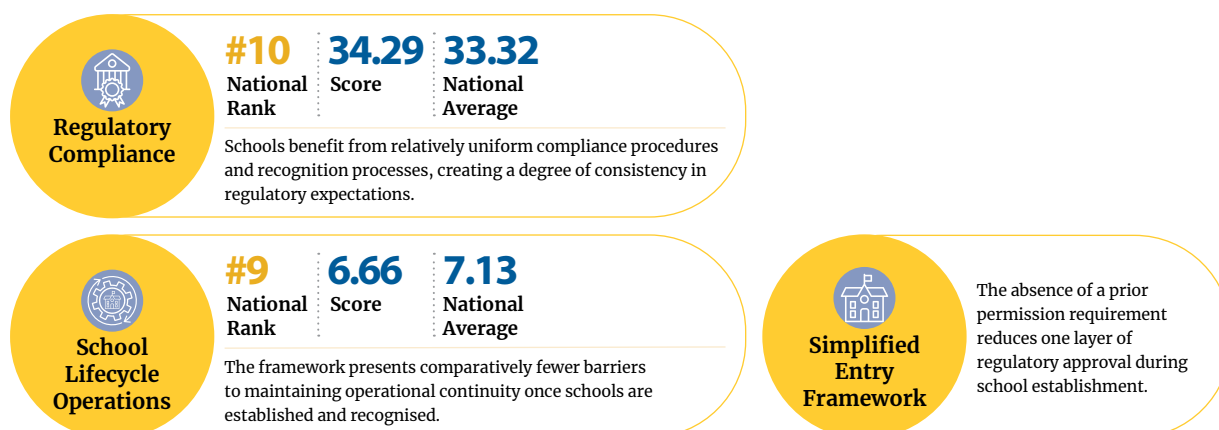
Apart from the prohibition of capitation fees, the framework contains very limited provisions relating to fee regulation, financial sustainability, or resource mobilisation mechanisms.



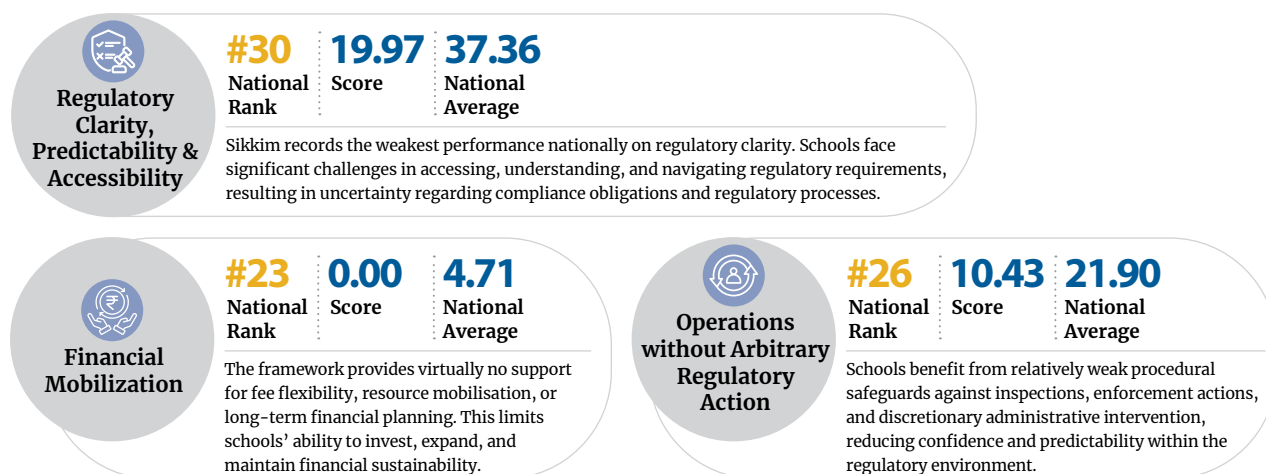
ACCOUNTABILITY & ENFORCEMENT

Schools remain subject to inspections by authorised officers. Recognition may be withdrawn following notice and inspection if prescribed norms are not met, potentially resulting in closure of the institution.

Strengths



Bottlenecks



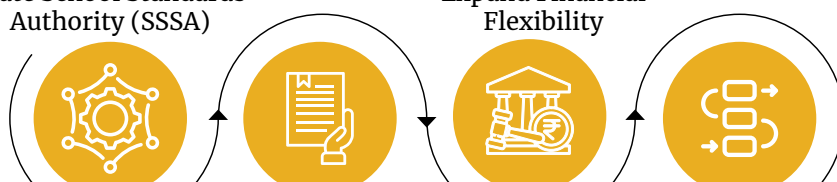
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Introduce mechanisms that allow schools greater flexibility in fee management, resource mobilisation, financial planning, and institutional investment while maintaining accountability safeguards

Expand Financial Flexibility



Improve Regulatory Accessibility

Make laws, procedures, compliance requirements, approval processes, and regulatory guidance more transparent, accessible, and easier for school operators to understand and navigate

Strengthen Procedural Safeguards

Establish clearer inspection procedures, enforcement standards, appeal mechanisms, and protections against arbitrary regulatory action to improve confidence and regulatory certainty.

Policy Pathway

Sikkim's regulatory framework provides some stability in compliance procedures and institutional continuity, as reflected in its above-average performance on regulatory compliance and moderate performance in school lifecycle operations. However, its overall score of **13.97 out of 100**—the lowest in the country—highlights deep structural weaknesses in the broader regulatory environment. Schools face significant challenges in accessing regulatory information, navigating compliance requirements, mobilising financial resources, and operating with confidence in enforcement processes. Given the substantial role played by private schools in educating over two-fifths of students, future reforms should focus on improving regulatory transparency, strengthening financial flexibility, and enhancing procedural safeguards. Addressing these foundational constraints would significantly improve the ease of operating schools while maintaining accountability and educational standards.

“The broad principle is that an educational institution must be left to its own devices in the matter of fixation of fee though profiteering or the imposition of capitation fee is to be ruled out and that some amount towards surplus funds available to an institution must be permitted and visualised, but it has also been laid down by inference that if the broad principles with regard to fixation of fee are adopted, an educational institution cannot be called upon to explain the receipts and the expenses as before a Chartered Accountant. ”

– *Cochin University of Science & Technology v. Thomas P. John*, (2008) 8 SCC 82 at para 16.



Tamil Nadu

EoOS Index 2026 – State Profile

SCORECARD



#27
National
Rank

Among all states assessed
under the EoOS Index



16.86
Overall
EoOS Score

Composite score out of 100



20.86
National
Average

All-India benchmark

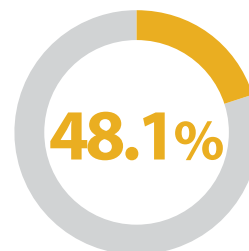


1,25,18,167
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Tamil Nadu	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	22.81	37.36	#29
 Regulatory Compliance	31.79	33.32	#20
 Operations without Arbitrary Regulatory Action	29.42	21.90	#8
 Financial Sustainability & Resource Mobilisation	4.03	4.71	#16
 School Lifecycle Operations	5.83	7.13	#26
 Institutional Autonomy	7.25	20.72	#27

Developing Regulatory Environment

Ranked 27th nationally and performs below the national average. While the state provides comparatively strong safeguards against arbitrary regulatory action, weaknesses in regulatory clarity, institutional autonomy, and school lifecycle operations significantly constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Schools require prior permission before establishment and must comply with requirements relating to infrastructure, No Objection Certificates, capital resources, and prescribed operational conditions. Recognition is granted following compliance verification and inspection.



GOVERNANCE & STAFFING

Private schools retain autonomy in recruitment decisions, subject to prescribed qualification and salary norms. Curriculum is prescribed by the State Board, while medium of instruction requires approval from the competent authority.



FINANCIAL REGULATION

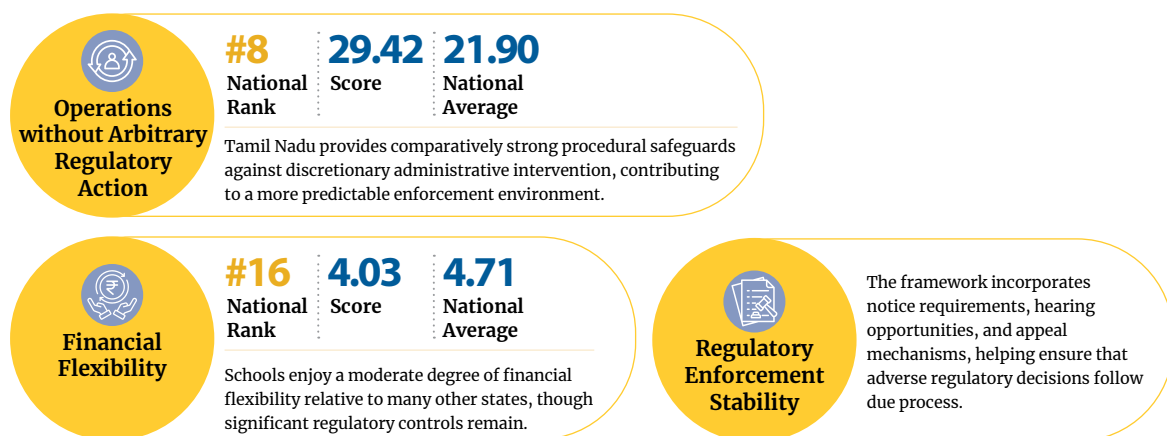
Fee regulation is administered through a Fee Regulatory Committee, which determines permissible fee structures. Excess fee collection is prohibited and subject to regulatory action.



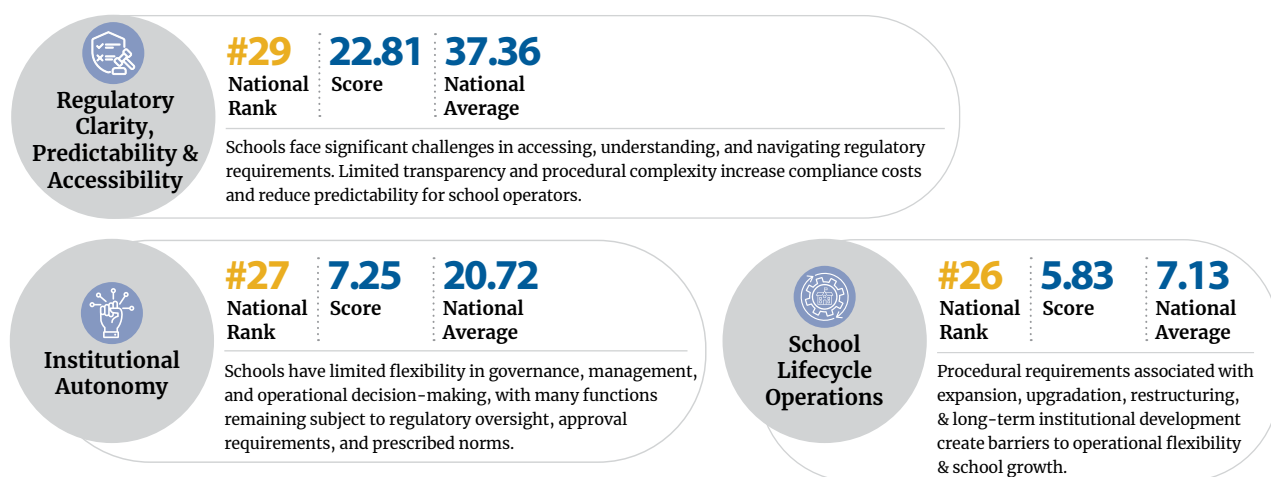
ACCOUNTABILITY & ENFORCEMENT

Schools are subject to inspections by competent authorities and Parent-Teacher Associations. Recognition may be withdrawn following notice and an opportunity to be heard, and schools have access to appeal mechanisms against certain regulatory decisions.

Strengths



Bottlenecks



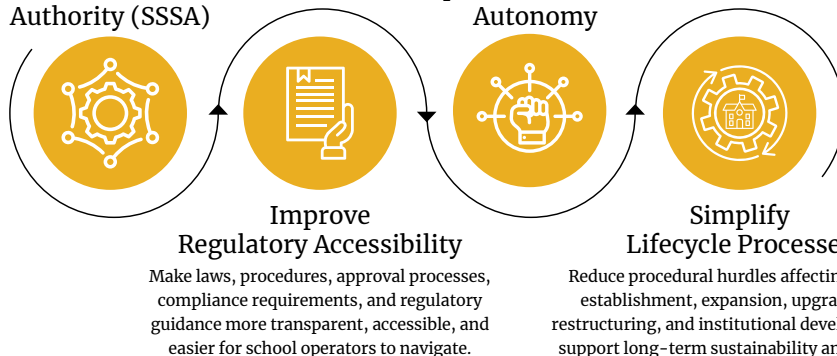
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Provide schools greater flexibility in governance, management, staffing, and operational decision-making while maintaining appropriate accountability safeguards.

Establish Independent State School Standards Authority (SSSA)

Expand Institutional Autonomy



Improve Regulatory Accessibility
Make laws, procedures, approval processes, compliance requirements, and regulatory guidance more transparent, accessible, and easier for school operators to navigate.

Simplify Lifecycle Processes
Reduce procedural hurdles affecting school establishment, expansion, upgradation, restructuring, and institutional development to support long-term sustainability and growth.

Policy Pathway

Tamil Nadu demonstrates that strong procedural safeguards can coexist with a relatively restrictive regulatory framework. The state ranks among the top performers nationally in protection against arbitrary regulatory action, providing schools with greater due-process protections, appeal mechanisms, and predictability in enforcement. However, its overall score of **16.85 out of 100** highlights deeper structural challenges within the regulatory environment. Schools continue to face significant difficulties arising from weak regulatory accessibility, limited institutional autonomy, and procedural barriers affecting institutional development. Given that private schools educate nearly half of all students in the state, future reforms should focus on simplifying regulatory processes, improving transparency, and expanding school-level decision-making authority. These reforms would allow schools to better leverage the stability already present within Tamil Nadu's regulatory framework while creating a more enabling environment for innovation, sustainability, and educational choice.

“That a private, un-aided, recognised school is not expected to follow a system of accounting different from what is required of a ‘not-for-profit institution’ under the Income-tax Act, 1961 and the ICAI Guidance Note dated 21.07.2005 [GN(A) 21], which note specifically prescribes how schools are to maintain their accounts. The DoE is not empowered to demand that a school should maintain a different, parallel set of accounts in accordance with the DoE’s diktat and to assess the funds available with a school on that basis.”

- Delhi Public School Vasant Kunj v. Government of Delhi 2026 DHC 4590 para 144.4



Telangana

EoOS Index 2026 – State Profile

SCORECARD



#1
National
Rank

Among all states assessed
under the EoOS Index



29.69
Overall
EoOS Score

Composite score out of 100



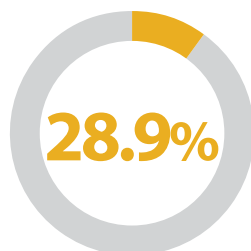
20.86
National
Average

All-India benchmark

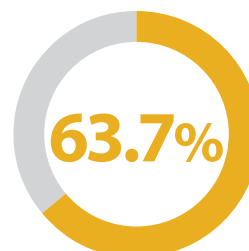


74,57,851
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Telangana has one of the largest private school ecosystems in India, with nearly two-thirds of all students enrolled in private schools. The state's regulatory environment therefore plays a critical role in shaping educational access, quality, and innovation.

Domain Performance

Domain	Telangana	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	47.88	37.36	#5
 Regulatory Compliance	48.70	33.32	#1
 Operations without Arbitrary Regulatory Action	18.99	21.90	#17
 Financial Sustainability & Resource Mobilisation	3.03	4.71	#17
 School Lifecycle Operations	11.66	7.13	#1
 Institutional Autonomy	47.87	20.72	#1

Leading Performer

Ranked 1st nationally on the Ease of Operating Schools Index and significantly outperforms the national average across most regulatory domains. The state leads the country in Regulatory Compliance, School Lifecycle Operations, and Institutional Autonomy, reflecting a regulatory environment characterised by procedural efficiency, operational flexibility, and relatively low administrative burden.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Prior government permission is required to establish a private school, based on educational need, financial capacity, endowment requirements, and compliance with prescribed conditions. Recognition is granted subject to fulfilment of statutory norms and remains valid for ten years, with annual compliance obligations.



GOVERNANCE & STAFFING

Teacher recruitment, service conditions, and disciplinary procedures are governed by prescribed regulatory requirements. Schools must comply with statutory safeguards relating to employee management, while curriculum and textbooks are generally prescribed by the government unless affiliated with another recognised board.



FINANCIAL REGULATION

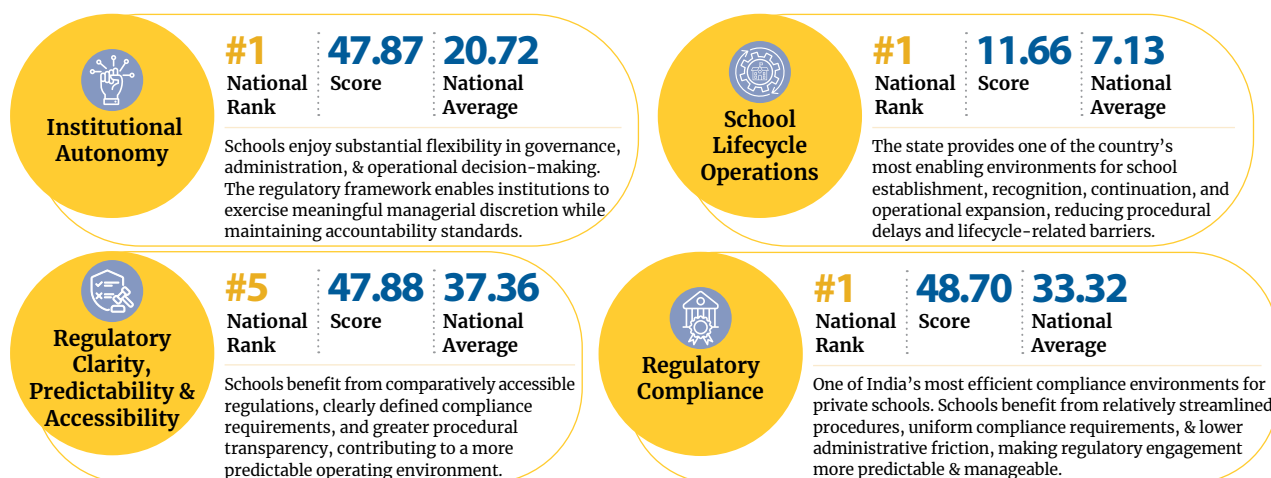
Fee regulation restricts collection beyond prescribed limits and prohibits capitation fees. Schools are required to allocate resources towards salaries, staff welfare, and educational purposes in accordance with regulatory requirements. RTE reimbursements are linked to verification of enrolment, attendance, and learning outcomes



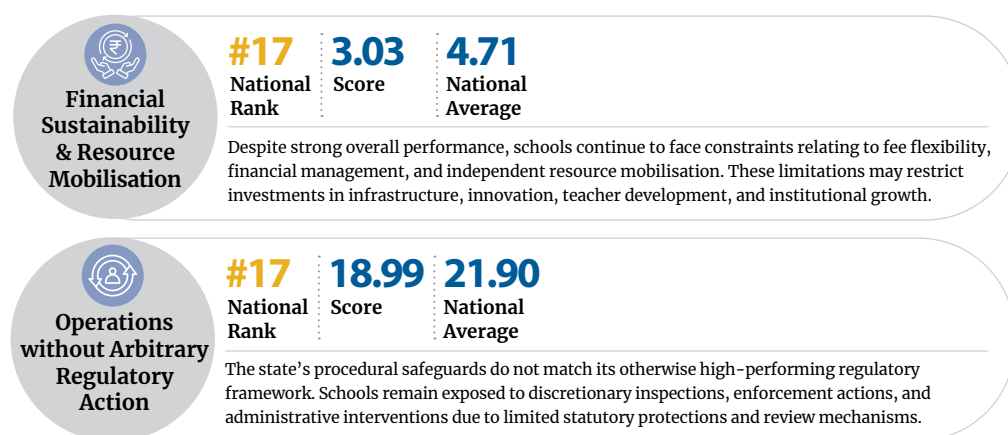
ACCOUNTABILITY & ENFORCEMENT

Recognition may be withdrawn for non-compliance with prescribed norms. The state also retains powers relating to management takeover, property requisition, inspections, and school closure approvals. Procedural safeguards governing the exercise of these powers remain comparatively limited.

Strengths



Bottlenecks



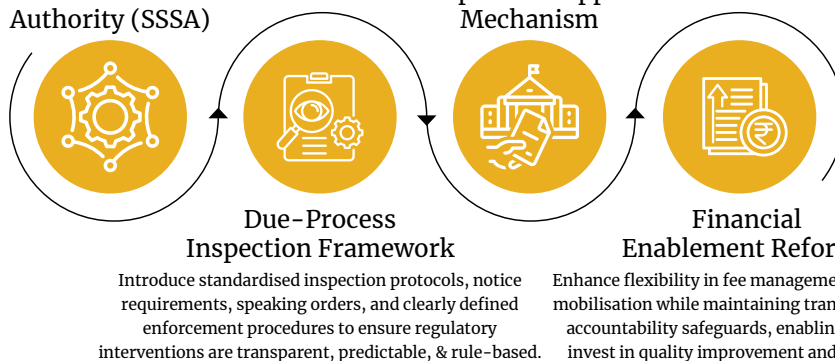
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Establish impartial appellate forums to review recognition denials, enforcement actions, affiliation disputes, and other significant regulatory decisions.

Independent Appeals Mechanism



Due-Process Inspection Framework

Introduce standardised inspection protocols, notice requirements, speaking orders, and clearly defined enforcement procedures to ensure regulatory interventions are transparent, predictable, & rule-based.

Financial Enablement Reforms

Enhance flexibility in fee management & resource mobilisation while maintaining transparency and accountability safeguards, enabling schools to invest in quality improvement and expansion.

Policy Pathway

Telangana has emerged as India's leading regulatory environment for private schools, distinguished by exceptional performance in regulatory compliance, institutional autonomy, and school lifecycle operations. The state's framework demonstrates that operational flexibility and regulatory accountability can coexist within a high-performing education ecosystem.

The next generation of reforms should focus on strengthening safeguards against arbitrary regulatory action and improving financial enablement while institutionalising regulatory excellence through an independent State School Standards Authority. Such reforms would not only address the state's remaining weaknesses but also position Telangana as a national model for modern, transparent, and innovation-oriented school governance.

By combining its existing strengths with stronger procedural protections and independent regulation, Telangana can further consolidate its position as the benchmark state for enabling educational entrepreneurship while safeguarding public accountability.

“In West Bengal data collection from the state government is very streamlined. It is done through the Bangla Shiksha website which is mostly used for registration and approval activities.”

– School Leader, West Bengal



Tripura

EoOS Index 2026 – State Profile

SCORECARD



#19
National
Rank

Among all states assessed
under the EoOS Index



19.19
Overall
EoOS Score

Composite score out of 100



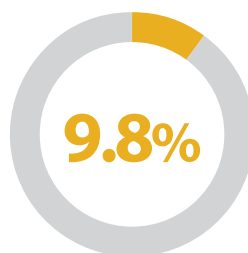
20.86
National
Average

All-India benchmark

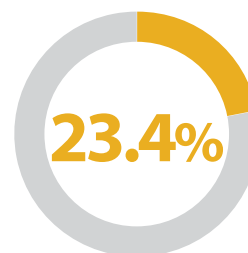


6,90,084
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Tripura	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	39.92	37.36	#11
 Regulatory Compliance	33.72	33.32	#13
 Operations without Arbitrary Regulatory Action	22.31	21.90	#13
 Financial Sustainability & Resource Mobilisation	0.00	4.71	#23
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	12.50	20.72	#18

Mixed Performer

Ranked 19th nationally and performs slightly below the national average. The state provides relatively clear regulatory processes, manageable compliance requirements, and moderate safeguards against arbitrary regulatory action. However, severe limitations in financial flexibility & constrained institutional autonomy continue to restrict the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required to establish a school. Recognition is granted through the RTE self-declaration framework and requires compliance with infrastructure, governance, pupil-teacher ratio, and not-for-profit requirements.



GOVERNANCE & STAFFING

The framework imposes relatively limited direct regulation on recruitment, salaries, curriculum, and medium of instruction. However, schools remain subject to general staff conduct requirements and recognition conditions.



FINANCIAL REGULATION

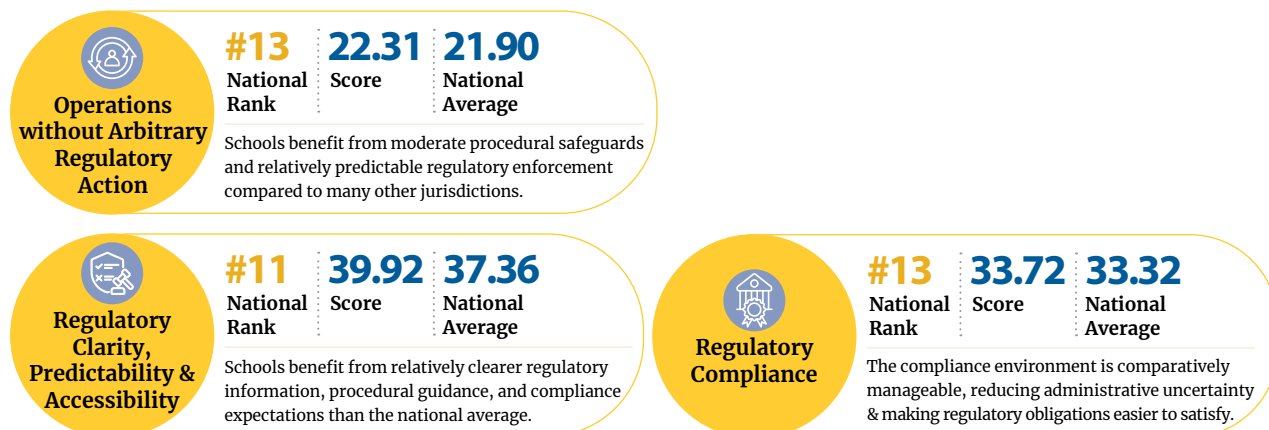
The state does not prescribe a detailed fee-regulation framework. Reimbursement procedures under the RTE framework are administered by the government through designated bank accounts.



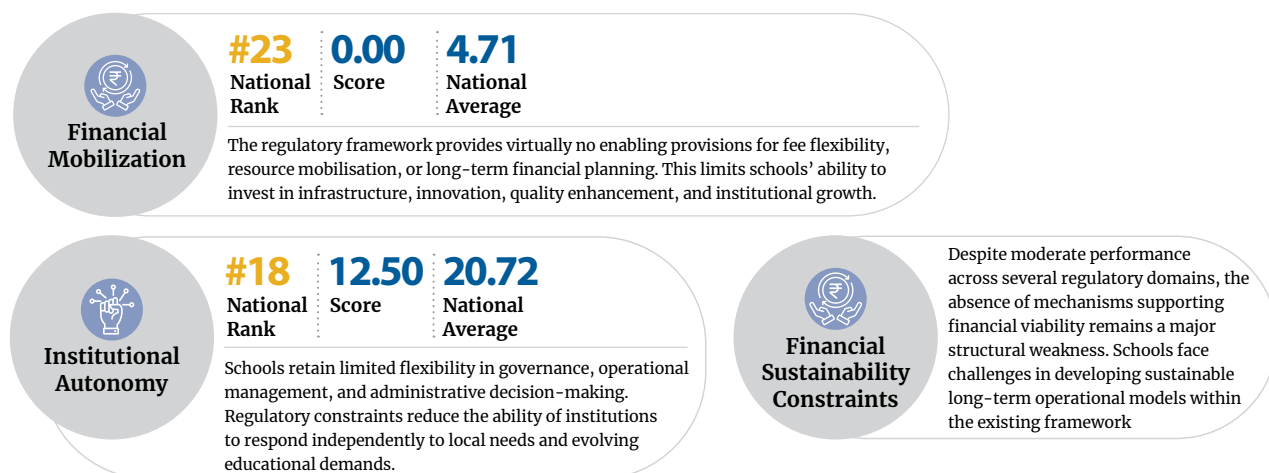
ACCOUNTABILITY & ENFORCEMENT

Schools are subject to inspections by the District Education Officer & other authorised authorities. Recognition may be withdrawn following due process, including notice and an opportunity to be heard, and schools may be required to cease functioning upon persistent non-compliance.

Strengths



Bottlenecks



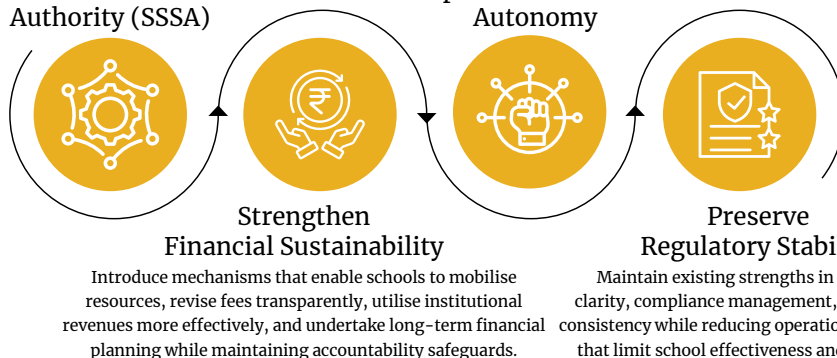
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Provide schools greater flexibility in governance, management, staffing, and operational decision-making, enabling institutions to respond more effectively to local educational needs and challenges.

Expand Institutional Autonomy



Strengthen Financial Sustainability
Introduce mechanisms that enable schools to mobilise resources, revise fees transparently, utilise institutional revenues more effectively, and undertake long-term financial planning while maintaining accountability safeguards.

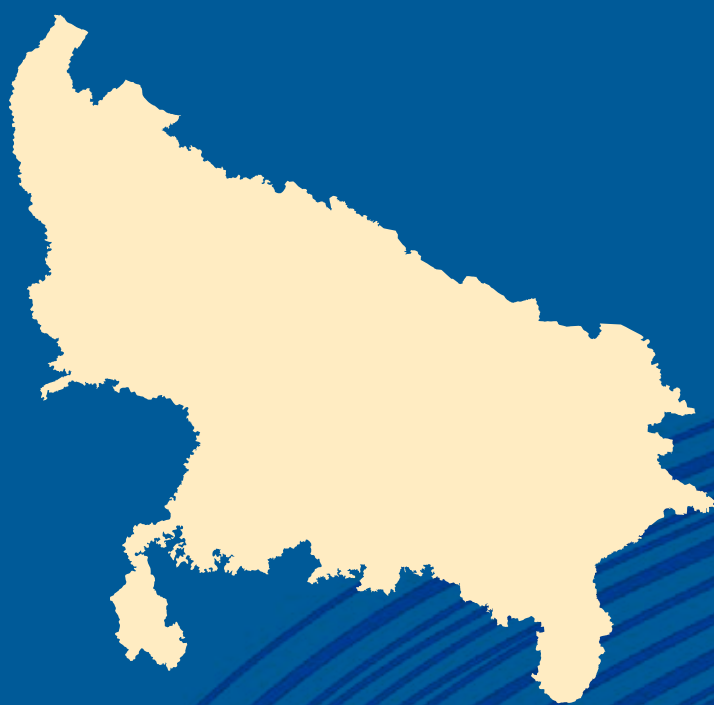
Preserve Regulatory Stability
Maintain existing strengths in regulatory clarity, compliance management, & procedural consistency while reducing operational constraints that limit school effectiveness and innovation.

Policy Pathway

Tripura presents a relatively stable regulatory environment compared to many states with similar overall scores. The state performs above the national average in regulatory clarity, compliance, and procedural safeguards, providing schools with a degree of predictability in navigating the regulatory system. However, these strengths are offset by significant weaknesses in financial flexibility and institutional autonomy. With private schools accounting for less than one-tenth of institutions but educating nearly one-quarter of students, ensuring the long-term sustainability of the sector will require greater emphasis on empowering schools to manage resources and make operational decisions independently. Future reforms should focus on strengthening financial viability, expanding managerial autonomy, and preserving the procedural stability already embedded within the state's regulatory architecture. Such measures would improve ease of operation while maintaining accountability and educational standards.

“The mere availability of the surplus funds in the hands of the school cannot, in and of itself, lead to the conclusion that the school has indulged in profiteering or commercialisation of education. A school may hold a certain quantum of surplus funds, and may put those funds to justifiable use for the betterment, improvement and development of the school, without that amounting to profiteering or commercialising.”

*– Mahavir Sr. Model School v. Directorate of Education,
(2023) 2 HCC (Del) 147 at para 29 to 31*



Uttar Pradesh

EoOS Index 2026 – State Profile

SCORECARD



#22
National
Rank

Among all states assessed
under the EoOS Index



17.93
Overall
EoOS Score

Composite score out of 100



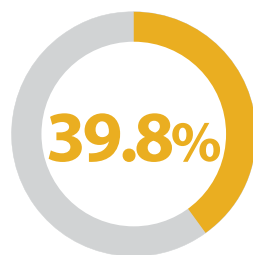
20.86
National
Average

All-India benchmark

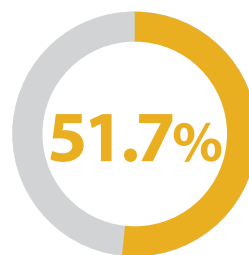


4,27,89,347
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Uttar Pradesh	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	30.06	37.36	#18
 Regulatory Compliance	26.55	33.32	#27
 Operations without Arbitrary Regulatory Action	18.69	21.90	#18
 Financial Sustainability & Resource Mobilisation	9.09	4.71	#4
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	12.50	20.72	#18

Developing Regulatory Environment

Ranked 22nd nationally and performs below the national average. While Uttar Pradesh is among the country's strongest performers in financial mobilization and provides moderate flexibility in school lifecycle operations, these advantages are offset by heavy compliance burdens, limited institutional autonomy, and challenges in regulatory accessibility and predictability.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required to establish a school. Recognition is granted through a self-declaration framework requiring compliance with prescribed norms and operation on a not-for-profit basis. Schools must continue to satisfy infrastructure, governance, and educational standards prescribed under applicable regulations.



GOVERNANCE & STAFFING

Teacher recruitment follows prescribed procedures involving public advertisements and regulatory oversight. Prior approval is required for dismissal or suspension of staff, while curriculum, teacher qualifications, and medium of instruction are determined by competent authorities.



FINANCIAL REGULATION

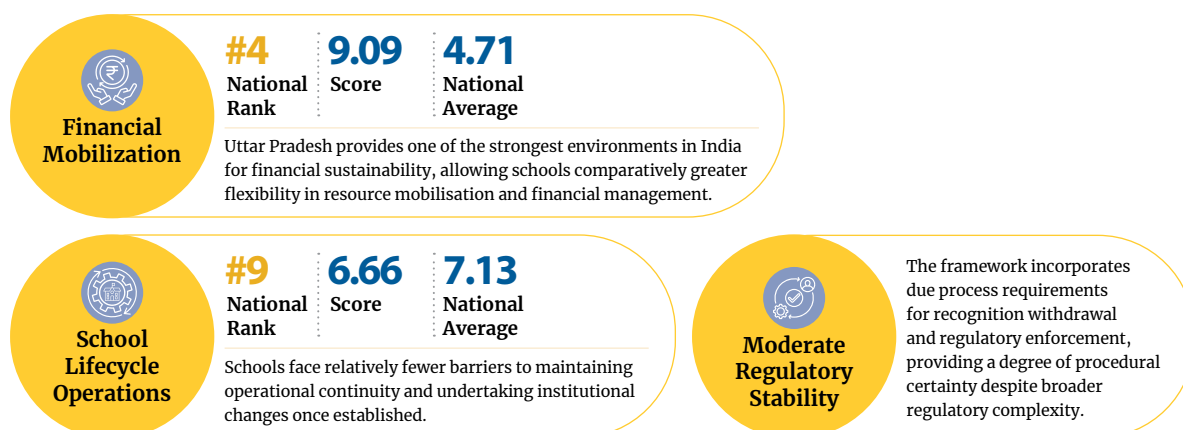
The framework provides comparatively greater financial flexibility than most states. Fee regulation incorporates prescribed fee components and annual increase mechanisms linked to salary expenditure and inflation, with oversight exercised through District Fee Regulatory Committees.



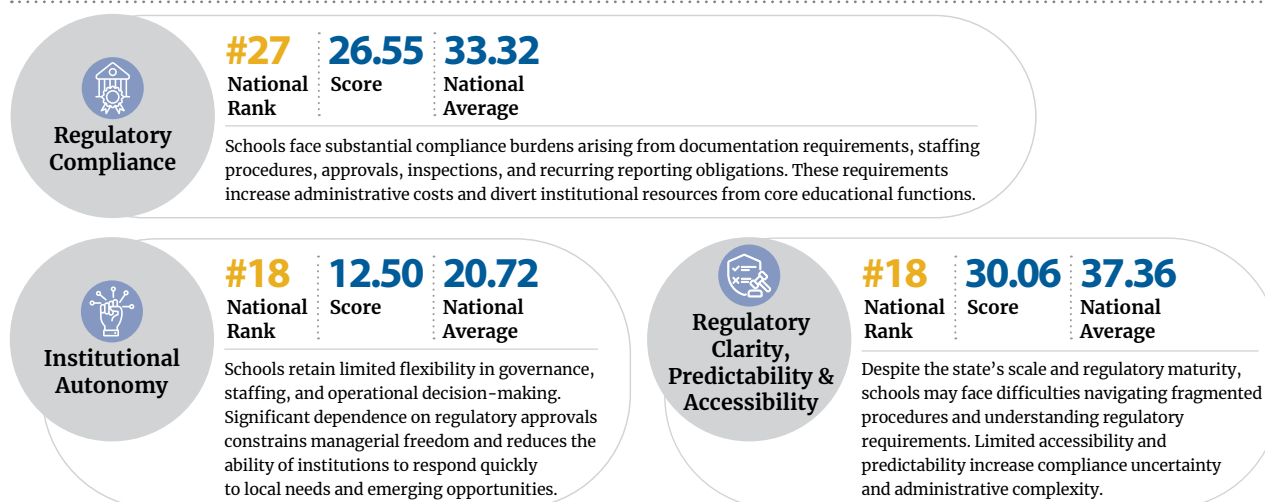
ACCOUNTABILITY & ENFORCEMENT

Schools remain subject to inspections by the Director and other education authorities. Recognition may be withdrawn following due process, while statutory provisions also permit government intervention or takeover of management under specified circumstances.

Strengths



Bottlenecks



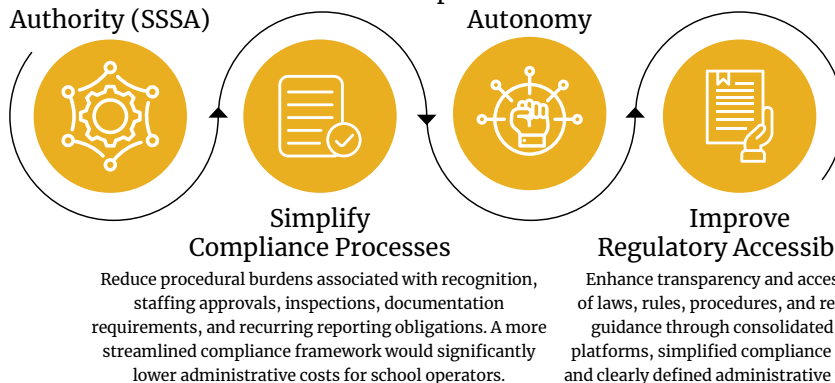
Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Provide schools greater flexibility in governance, staffing, management, and operational decision-making while maintaining appropriate accountability and quality safeguards.

Expand Institutional Autonomy



Policy Pathway

Uttar Pradesh occupies a unique position within India's school education landscape, serving the largest school-going population in the country and educating more than half of its students through private schools. The state's regulatory framework demonstrates notable strength in financial mobilization, providing schools with greater scope for financial sustainability and resource planning than is available in most jurisdictions. However, these advantages are substantially diluted by high compliance burdens, limited institutional autonomy, and challenges in navigating regulatory processes. As one of India's largest and most influential education ecosystems, even incremental improvements in regulatory efficiency could have transformative effects on millions of students and thousands of schools. Future reforms should focus on simplifying compliance requirements, improving regulatory accessibility, and empowering schools with greater operational autonomy while preserving accountability safeguards. Such changes would significantly enhance the ease of operating schools and strengthen the long-term sustainability of educational provision across the state.

“Without issuing any show cause notice to the schools in relation to the disallowances that were proposed to be made by the DoE; and/or Without making available to the schools the recommendations for fee fixation made by the chartered accountants appointed by the DoE, which have been relied upon by the DoE; and/or Without affording an opportunity of hearing to the schools before the Director of Education are clearly in violation of the settled principles of natural justice for any quasi-judicial or administrative action, and therefore deserve to be set- aside.”

**- Delhi Public School Vasant Kunj v. Government of Delhi
2026 DHC 4590 para 110.**



Uttarakhand

EoOS Index 2026 – State Profile

SCORECARD



#20
National
Rank

Among all states assessed
under the EoOS Index



18.51
Overall
EoOS Score

Composite score out of 100



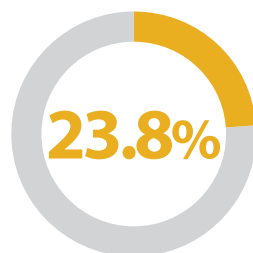
20.86
National
Average

All-India benchmark

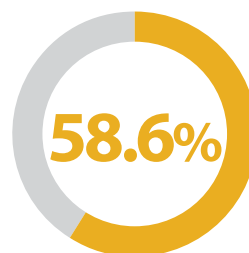


24,26,815
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	Uttarakhand	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	33.07	37.36	#22
 Regulatory Compliance	33.90	33.32	#12
 Operations without Arbitrary Regulatory Action	12.41	21.90	#23
 Financial Sustainability & Resource Mobilisation	0.00	4.71	#23
 School Lifecycle Operations	6.66	7.13	#9
 Institutional Autonomy	25.00	20.72	#11

Developing Regulatory Environment

Ranked 20th nationally and performs below the national average. While the state demonstrates relatively manageable compliance requirements, moderate institutional autonomy, and reasonable operational continuity, weaknesses in financial flexibility, regulatory accessibility, and safeguards against arbitrary action constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

Recognition is granted through a self-declaration framework and requires compliance with infrastructure, governance, financial security, and UDISE reporting requirements. Recognition is generally valid for five years, with provisional recognition available in specified circumstances.



GOVERNANCE & STAFFING

Teacher qualifications are prescribed by the state, dismissal of staff requires prior approval, and curriculum is determined by the Board or SCERT. Upgradation of classes requires approval from the State Government, while schools retain moderate flexibility in day-to-day institutional management.



FINANCIAL REGULATION

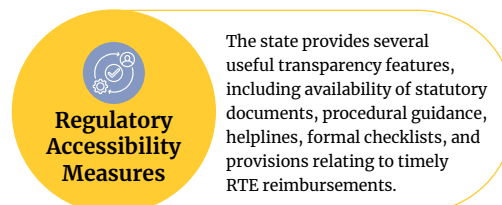
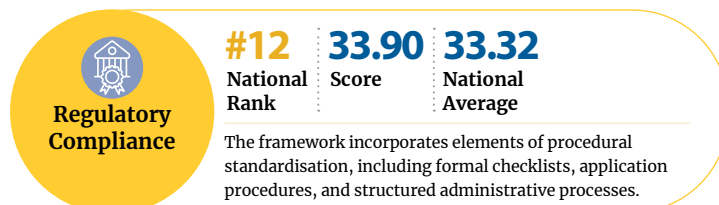
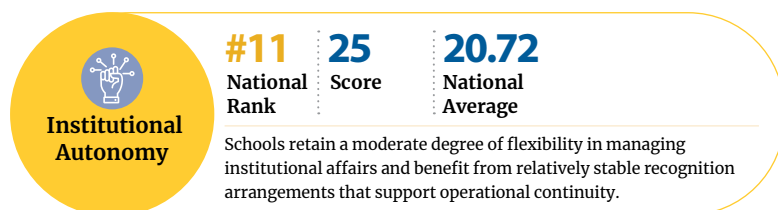
Schools are required to submit fee structures to the District Education Officer, utilise institutional funds for educational purposes, and comply with restrictions on capitation fees. RTE reimbursements are administered through designated bank accounts.



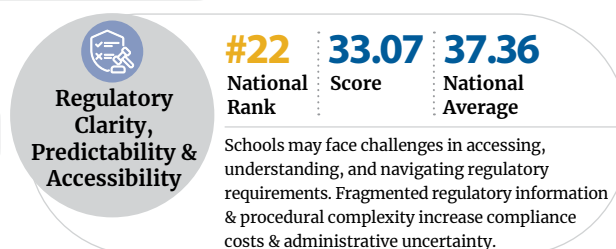
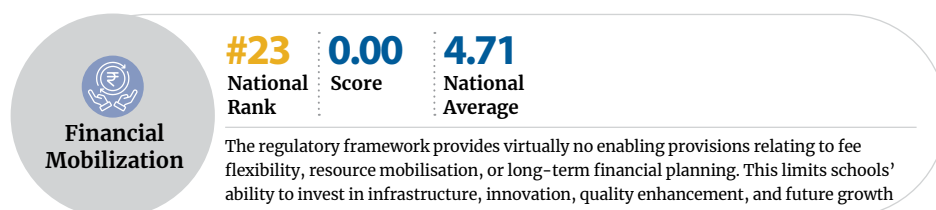
ACCOUNTABILITY & ENFORCEMENT

Schools are inspected by the Director of Education and District Education Officers. Recognition may be withdrawn following due process, while appeal mechanisms and management takeover provisions exist under specified circumstances.

Strengths



Bottlenecks



Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Establish clearer inspection standards, enforcement protocols, appeal mechanisms, and protections against arbitrary regulatory action to improve regulatory certainty and fairness.

Improve Procedural Safeguards



Strengthen Financial Sustainability
Introduce mechanisms that allow schools greater flexibility in fee management, resource mobilisation, utilisation of institutional revenues, and long-term financial planning while maintaining accountability safeguards.

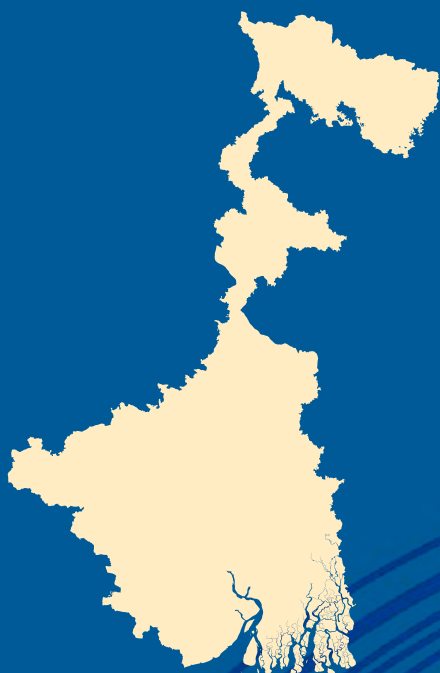
Enhance Regulatory Accessibility
Simplify and improve access to laws, procedures, approval processes, and compliance requirements through consolidated guidance, digital systems, and clearer communication mechanisms.

Policy Pathway

Uttarakhand presents a regulatory environment with several foundational strengths but significant structural gaps. The state performs above the national average in institutional autonomy and regulatory compliance, suggesting that schools generally operate within a reasonably consistent compliance framework and retain some operational flexibility. It also performs relatively well in school lifecycle operations, reducing barriers to institutional continuity. However, these advantages are undermined by the complete absence of enabling provisions for financial mobilization and comparatively weak protections against discretionary regulatory action. Given that private schools educate nearly six out of every ten students in the state, strengthening the long-term sustainability of the sector is critical for maintaining educational access and choice. Future reforms should focus on enabling financial viability, improving regulatory transparency, and strengthening procedural safeguards while preserving the state's existing strengths in compliance management and institutional flexibility. Such measures would create a more balanced and enabling regulatory environment for schools across Uttarakhand.

“The matter relating to the fixation of a fee is a part of the administration of an educational institution and it would impose a heavy onus on such an institution to be called upon to justify the levy of a fee with mathematical precision.”

– *Cochin University of Science & Technology v. Thomas P. John*, (2008) 8 SCC 82 at para 11.



West Bengal

EoOS Index 2026 – State Profile

SCORECARD



#24
National
Rank

Among all states assessed
under the EoOS Index



17.24
Overall
EoOS Score

Composite score out of 100



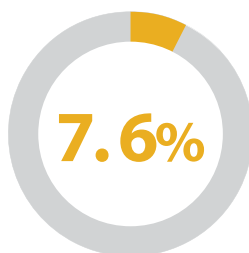
20.86
National
Average

All-India benchmark

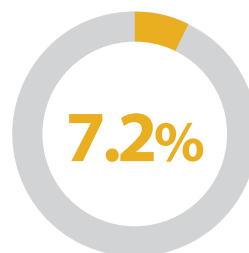


1,70,81,511
Student
Enrolment

Total school-going population



**Private
School
Share**
Share
of all
schools



**Private
School
Enrolment
Share**
Share of all
students

Domain Performance

Domain	West Bengal	National Average	Rank
 Regulatory Clarity, Predictability & Accessibility	31.98	37.36	#24
 Regulatory Compliance	32.13	33.32	#16
 Operations without Arbitrary Regulatory Action	10.93	21.90	#25
 Financial Sustainability & Resource Mobilisation	1.51	4.71	#21
 School Lifecycle Operations	5.00	7.13	#28
 Institutional Autonomy	21.87	20.72	#13

Developing Regulatory Environment

Ranked 24th nationally and performs below the national average. While the state provides moderate institutional autonomy and a reasonably structured compliance framework, weaknesses in financial flexibility, procedural safeguards, regulatory predictability, and school lifecycle operations significantly constrain the overall ease of operating schools.

Regulatory DNA



ESTABLISHMENT & RECOGNITION

No prior permission is required for establishment. Recognition follows the RTE self-declaration framework and requires compliance with infrastructure, governance, environmental, and operational requirements. Fee structures require government approval and schools must continue to satisfy prescribed recognition norms



GOVERNANCE & STAFFING

Schools are required to maintain an approved Scheme of Management covering service conditions, governance arrangements, and fee structures. Teacher recruitment, qualifications, salaries, curriculum, and textbooks are governed through state-prescribed norms.



FINANCIAL REGULATION

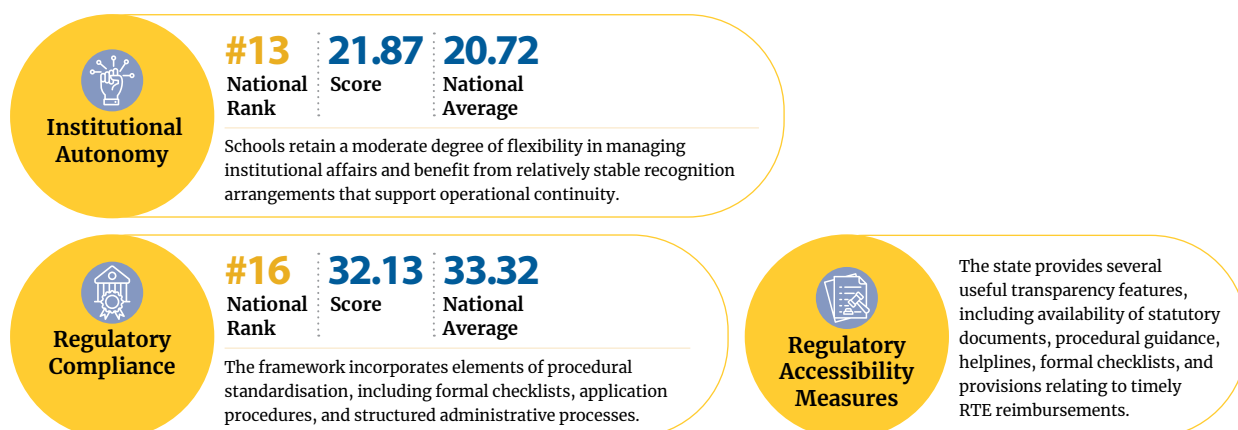
Fee revisions require prior approval from the government. The framework includes restrictions on fund utilisation and multiple approval layers governing fee changes. RTE reimbursement mechanisms are administered by the government through prescribed procedures and timelines.



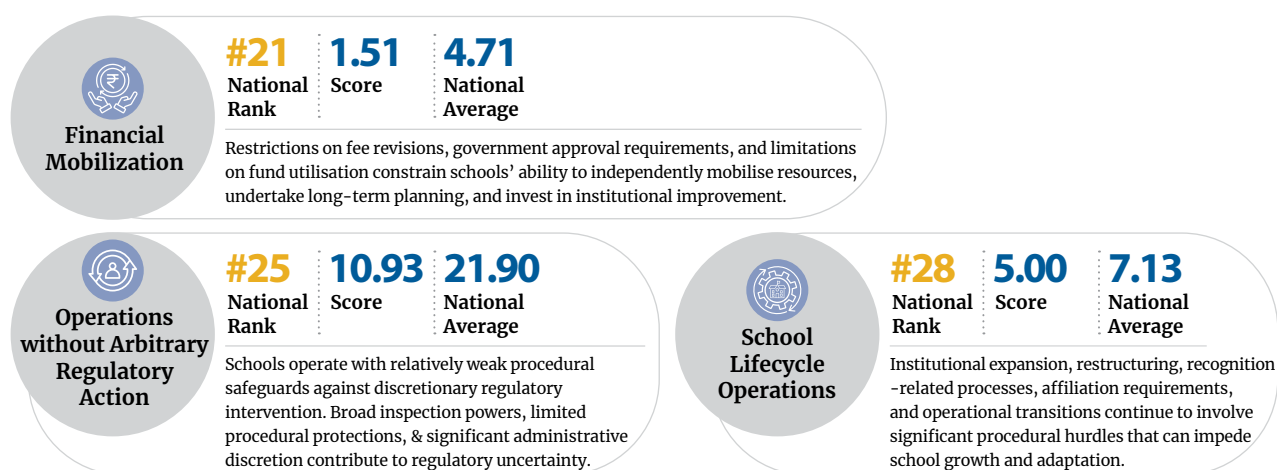
ACCOUNTABILITY & ENFORCEMENT

Schools may be subject to surprise inspections and district-level inspection mechanisms. Recognition may be withdrawn for non-compliance, with significant discretionary authority vested in district education authorities regarding enforcement and compliance oversight.

Strengths



Bottlenecks



Reform Priorities

Establish an independent SSSA, as envisaged under the NEP 2020, to separate regulation from service delivery, improve transparency, strengthen accountability, and create a more objective and predictable regulatory framework for all schools.

Establish Independent State School Standards Authority (SSSA)

Establish clearer inspection standards, enforcement protocols, appeal mechanisms, and protections against arbitrary regulatory action to improve regulatory certainty and fairness.

Improve Procedural Safeguards



Policy Pathway

Uttar Pradesh occupies a unique position within India's school education landscape, serving the largest school-going population in the country and educating more than half of its students through private schools. The state's regulatory framework demonstrates notable strength in financial mobilization, providing schools with greater scope for financial sustainability and resource planning than is available in most jurisdictions. However, these advantages are substantially diluted by high compliance burdens, limited institutional autonomy, and challenges in navigating regulatory processes. As one of India's largest and most influential education ecosystems, even incremental improvements in regulatory efficiency could have transformative effects on millions of students and thousands of schools. Future reforms should focus on simplifying compliance requirements, improving regulatory accessibility, and empowering schools with greater operational autonomy while preserving accountability safeguards. Such changes would significantly enhance the ease of operating schools and strengthen the long-term sustainability of educational provision across the state.

“No law imposes strict mandates on the government to reimburse our RTE related expenditure. This creates financial losses for us.”

– School Leader, Andhra Pradesh

Bibliography

Primary Sources

Acts

1. Andhra Pradesh Education (Amendment) Act, 1987
2. Andhra Pradesh Education Act, 1982
3. Andhra Pradesh Educational Institutions (Regulation of Admissions and Prohibition of Capitation Fee) Act, 1983
4. Andhra Pradesh School Education (Community Participation) Act, 1998
5. Arunachal Pradesh Education Act, 2010
6. Arunachal Pradesh Private Educational Institutions (Regulatory Commission) Act, 2017
7. Assam Secondary Education Act, 1961
8. Bihar Education Code, 1961
9. Bihar High Schools (Control and Regulation of Administration) Act, 1960
10. Bihar Non-Government Elementary Schools (Taking Over Of Control) Act, 1976
11. Bihar Non-Government Secondary School (Taking over Management and Control) (Amendment) Act. 2011.
12. Bihar Private Schools (Fee Regulation) Act, 2019
13. Bihar School Examination Board Act, 2019
14. Chhattisgarh Non-Government Schools Fees Regulation Act, 2020
15. Constituent Assembly Debates
16. Delhi School Education Act, 1973
17. Gujarat Self financed Schools (Regulation of Fees) Act, 2017
18. Haryana Board of School Education Act, 1969
19. Himachal Pradesh Board of School Education Act, 1968
20. Jammu and Kashmir School Education (Amendment) Act, 2013
21. Jammu and Kashmir School Education Act, 2002
22. Jharkhand Academic Council Act, 2002
23. Jharkhand Education Tribunal (Amendment) Act, 2017
24. Karnataka Education Act 1995
25. Karnataka Education Act, 1983
26. Karnataka Educational Institutions (Prohibition of Capitation Fee) Act, 1984
27. Karnataka Private Educational Institutions (Discipline and Control) Act, 1978
28. Karnataka Societies Registration Act, 1960
29. Kerala Education Act, 1958
30. Madhya Pradesh Niji Vidyalaya (Fees Tatha Sambandhit Vishayon Ka Viniyaman) Adhiniyam, 2017
31. Madhya Pradesh Prathamik, Middle School Tatha Madhyamik Shiksha (Pathya Pustakon Sambandhi Vyavastha) Adhiniyam, 1973
32. Maharashtra Educational Institutions (Management) Act, 1976
33. Maharashtra Educational Institutions (Prohibition of Capitation Fee) Act, 1987
34. Maharashtra Educational Institutions (Regulation of Fee) Act, 2011
35. Maharashtra Educational Institutions (Transfer of Management) Act, 1971
36. Maharashtra Employees of Private Schools (Conditions of Service) Regulation Act, 1977
37. Maharashtra Secondary and Higher Secondary Education Boards Act, 1965
38. Maharashtra Self-Financed Schools (Establishment and Regulation) Act, 2012
39. Manipur Higher Secondary Education Act, 1992
40. Manipur Private School (Registration And Regulation) Act, 2017
41. Manipur School Education Act, 1979
42. Manipur Societies Registration Act, 1989
43. Meghalaya Board of Primary School Education Act, 1988
44. Meghalaya Board of School Education Act, 1973
45. Meghalaya Removal of Restrictions on User and Enjoyment of Land Act, 1981
46. Meghalaya Societies Registration Act, 1983
47. Meghalaya State Education Act, 1981
48. Mizoram Education Act, 2003
49. National Education Policy 2020
50. Orissa Education Act, 1969
51. Punjab Privately Managed Recognised Schools (Security of Service) Act, 1979
52. Punjab Regulation of fee of Un-aided Educational Institutions Act, 2016

53. Punjab School Education Board Act, 1969
54. Rajasthan Non-Government Educational Institutions Act, 1989
55. Rajasthan Schools (Regulation of Fee) Act, 2016
56. Sikkim Board of School Education Act, 1978
57. Tamil Nadu Educational Institutions (Temporary Control of Property) Act, 1949
58. Tamil Nadu Private Schools (Regulation) Act, 2018
59. Tamil Nadu Schools (Regulation of Collection of Fee) Act, 2009
60. Tamil Nadu Uniform System of School Education Act, 2010
61. Telangana (Compulsory Teaching and Learning of Telugu in Schools) Act, 2018
62. Telangana Education Act, 1982
63. Telangana Educational Institutions (Regulation of Admission and Prohibition of Capitation Fee) Act, 1983
64. Telangana Intermediate Education Act, 1971
65. Telangana School Education Management (Community Participation) Act, 1998
66. The Assam Non-Governmental Educational Institutions (Regulation and Management) Act, 2006
67. The Assam Non-Governmental Educational Institutions (Regulation and Management) (Amendment) Act, 2018
68. The Assam Non-Governmental Educational Institutions (Regulation of Fees) Act, 2018
69. The Chhattisgarh Primary Education Act, 1961
70. The Constitution of India, 1950
71. The Constitution (Forty-Second Amendment) Act, 1976
72. The Constitution (Eighty-Sixth Amendment) Act, 2002
73. The Constitution (Ninety-third Amendment) Act, 2005
74. The Constitution (Hundred and Third Amendment) Act, 2019
75. The Goa, Daman and Diu School Education Act, 1984
76. The Gujarat Educational Institutions (Regulation) Act, 1984
77. The Himachal Pradesh Private Educational Institutions (Regulations) Act, 1997
78. The Intermediate Education Act, 1921
79. The M.P. Madhyamik Shiksha Adhiniyam, 1965
80. The Right of Children to Free and Compulsory Education Act, 2009
81. The Society Registration Act, 1860
82. The Tripura Board of Secondary Education Act, 1973
83. The U.P. Junior High Schools (Payment of Salaries of Teachers and other Employees) Act, 1978
84. The Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000
85. The Uttar Pradesh High Schools And Intermediate Colleges (Payment Of Salaries Of Teachers And Other Employees) Act, 1971
86. The Uttar Pradesh State Open School Board Act, 2008
87. Tripura Educational Institutions (Taking Over of Managements) Act, 1973
88. Uttar Pradesh Admission to Educational Institutions Reservation for Scheduled Castes, Scheduled Tribes and other Backward Classes Act, 2006
89. Uttar Pradesh Self Financed Independent Schools (Fee Regulation) Act, 2018
90. Uttaranchal School Education Act, 2006
91. West Bengal Council of Higher Secondary Education Act, 1975
92. West Bengal School Service Commission Act, 1997
93. West Bengal Schools (Control of Expenditure) Act, 2005

Rules

1. Andhra Pradesh Educational Institutions (Establishment, Recognition, Administration and Control of Schools Under Private Managements) Rules, 1993
2. Andhra Pradesh Educational Institutions (Establishment, Recognition, Administration and Control of Schools Under Private Managements) Rules, 2000
3. Andhra Pradesh Registered Schools (Establishment, Recognition and Registration) Rules, 1987
4. Andhra Pradesh Right of Children to Free and Compulsory Education Rules, 2010
5. Andhra Pradesh School Education Regulatory and Monitoring Commission Rules, 2020

6. Arunachal Pradesh Right of children to Free and Compulsory Education Rules, 2010
7. Assam Right of Children to Free and Compulsory Education. Rules, 2011
8. Bihar State Free and Compulsory Education of Children Rules, 2011
9. Chhattisgarh Right of Children to Free and Compulsory Education Rules, 2010
10. Delhi Right of Children to Free and Compulsory Education Rules, 2011
11. Delhi School Education Rules, 1973
12. Goa Education Rules, 1986
13. Goa Right of Children to Free and Compulsory Education Rules, 2012
14. Goa, Daman and Diu School Education Rules, 1986
15. Goa, Daman and Diu Secondary and Higher Secondary Education Rules, 1975
16. Gujarat Elementary Education Rules, 2010
17. Haryana School Education Rules, 2003
18. Haryana State Right of Children to Free and Compulsory Education Rules, 2010
19. Himachal Pradesh Private Educational Institution (Regulation) Rules, 2003
20. Himachal Pradesh Rules Governing Recognition of Schools, 1986
21. Jammu and Kashmir School Education Rules, 2010
22. Jharkhand Right of Children to Free and Compulsory Education Rules, 2011
23. Karnataka Educational Institutions (Taking over of Management, Requisition and Acquisition) Rules, 2005
24. Karnataka Educational Institutions (Ancillary Services in Recognised Educational Institutions) Rules, 2000
25. Karnataka Educational Institutions (Certain Terms And Conditions of Service Of Employees In Private Unaided Primary And Secondary And Pre-university Educational Institutions) Rules, 2005
26. Karnataka Educational Institutions (Classification and Registration) Rules, 1997
27. Karnataka Educational Institutions (Control of Private Educational Institutions) Rules, 1999
28. Karnataka Educational Institutions (Recognition of Primary And Secondary Schools) Rules, 1999
29. Karnataka Educational Institutions (Regulation of Certain Fees And Donations) Rules, 1999
30. Karnataka Right of Children to Free and Compulsory Education Rules, 2012
31. Kerala Education Rules, 1959
32. Kerala Right of Children to Free and Compulsory Education Rules, 2010
33. Madhya Pradesh Recognition of Secondary and Higher Secondary School Rules, 2017
34. Maharashtra Educational Institutions (Regulation of Fee) Rules, 2016
35. Maharashtra Right of Children to Free and Compulsory Education Rules, 2011
36. Maharashtra Self-Financed Schools (Establishment and Regulation) Rules, 2020
37. Meghalaya Right to Children to Free and Compulsory Education Rules, 2011
38. Mizoram Education (Establishment and Management of Private Middle Schools) Rules, 2006
39. Mizoram Education (Inspection of Recognised Schools) Rules, 2008
40. Mizoram Recognised Private Schools (Regulation) Rules, 2006
41. Mizoram Right of Children to Free and Compulsory Education Rules, 2011
42. Nagaland Board of Secondary Education, General Rules, 2019
43. Nagaland Right of Children to Free and Compulsory Education Rules, 2010
44. Orissa Education (Establishment, Recognition And Management Of Private Junior Colleges Higher Secondary Schools) Rules, 1991
45. Orissa Right of Children to Free and Compulsory Education Rules, 2010
46. Orissa Rules for the Preparation and Publication of State Text-Books for Primary Schools, 1963
47. Punjab Right of children to Free and compulsory Education Rules, 2011
48. Rajasthan Non-Government Educational Institutions (Recognition, Grant-In-Aid and Service Conditions Etc.) Rules, 1993
49. Rajasthan Right of Children to Free and Compulsory Education Rules, 2011
50. Recognition of Secondary and Higher Secondary School Rules, 2012 (Meghalaya)

51. Right of Children to Free and Compulsory Education Rules (Tripura) 2011
52. Right of Children to Free and Compulsory Education Rules, 2010 (Sikkim)
53. Right of children to Free and compulsory Education Rules, 2011 (Madhya Pradesh)
54. Right of children to Free and compulsory Education Rules, 2011 (Manipur)
55. Right of Children to Free and Compulsory Education Rules, 2012 (Gujarat)
56. Right of Children to Free and Compulsory Education, Himachal Pradesh Rules, 2011
57. Tamil Nadu Private Schools (Regulation) Rules, 2023
58. Tamil Nadu Right of Children to Free and Compulsory Education Rules, 2011
59. The Bihar Primary and Middle Education Rules, 1961
60. The Karnataka Educational Institutions (Classification, Regulation and Prescription of Curricula Etc.,) Rules, 1995
61. The Right of Children to Free and Compulsory Education Model Rules, 2010
62. Tripura Board of Secondary Education Act, 1973
63. Uttar Pradesh High Schools and Intermediate Colleges (Payment of Salaries of Teachers and Other Employees) Rules, 1993
64. Uttarakhand Right of Children to Free and Compulsory Education Rules, 2011
65. West Bengal Board of Secondary Education (Appointment, Confirmation, Conduct and Discipline of Teachers and Non-Teaching Staff) Rules, 2018
66. West Bengal Management of Recognized Non-Government Institutions (Aided and Unaided) Rules, 1969
67. West Bengal Primary School Teachers Recruitment Rules, 2016
68. West Bengal Right of Children to Free and Compulsory Education Rules, 2012
69. West Bengal School Service Commission (Selection for Appointment to the Posts of Teachers for classes IX and X in Secondary and Higher Secondary Schools) Rules, 2016
70. West Bengal Schools Up-gradation Rules, 2007

Regulations and Other Sources

1. Bihar School Examination Board Affiliation Bye-laws, 2011
2. Board of School Education Haryana Affiliation Regulations
3. Code of Regulations for Play Schools, 2015 (Tamil Nadu)
4. Gujarat Secondary Education Regulations, 1974
5. Himachal Pradesh Board of School Education Affiliation Regulations/Bye-laws, 1992
6. Jammu and Kashmir State Board of School Education Regulations, 1992
7. Maharashtra Secondary and Higher Secondary Education Boards Regulations, 1977
8. Mizoram Board of School Education (Conditions for Affiliation of Institutions) Regulations, 2012
9. Orissa Higher Secondary Education (amendment) Regulations, 1983
10. Punjab School Education Board Regulations for affiliation of Institutions, 1988
11. Rajasthan Secondary Education Regulations, 1957
12. Tamil Nadu Private Schools (Regulation) Rules, 2023
13. West Bengal Board of Secondary Education (Recognition of Unaided Institution) Bye-laws, 2007

Judgments

1. Avinash Mehrotra v. Union of India, (2009) 6 SCC 398
2. Christian Medical College Vellore v. Union Of India AIR ONLINE 2020 SC 505
3. Dinesh Biwaji Ashtikar v. State of Maharashtra 2026 SCC OnLine SC 56
4. Dr Jaya Thakur v. Government of India 2026 INSC 97
5. Environmental & Consumer Protection Foundation v. Delhi Administration 2012 (10) SCC 197
5. Forum for Promotion of Quality Education v. Governor of Delhi 2014 SCC OnLine Del 6650
6. Islamic Academy of Education v. State of Karnataka (2003) 6 SCC 697
7. Lucknow Public School v. State of U.P. 2026 INSC 422

8. Manju Sipayya v. Directorate of Education 2019 SCC OnLine Del 10867
9. Modern School v. Union of India, (2004) 5 SCC 583
10. Mohini Jain v. State of Karnataka (1992) 3 SCC 666
11. New Convent High School v. Union of India 2026 SCC OnLine J&K 135
12. P.A. Inamdar v. State of Maharashtra (2005) 6 SCC 537
13. Pramati Educational & Cultural v. Union of India AIR 2014 SC 2114
14. Rashmi Education Trust Vidyaniketan School v. State of Karnataka 2023 LiveLaw (Kar)14
15. Society of Unaided Private Schools of Rajasthan v. Union of India, (2012) 6 SCC 1
16. State of Bombay v. R.M.D. Chamarbaugwala (1957) SCR 874
17. Sunil Kumar Yadav v. State of Jharkhand 2026 INSC 462
18. T.M.A. Pai Foundation v. State of Karnataka (2002) 8 SCC 481

Secondary Sources

Books

1. Andrew Wilkins, *Modernising School Governance: Corporate Planning and Expert Handling in State Education* (Routledge 2016).
2. I.P. Massey, *Administrative Law* (10th edn., Eastern Book Company, 2022).
3. Kusha Anand and Marie Lall, *Delhi's Education Revolution: Teachers, Agency and Inclusion* (UCL Press, 2022)
4. Prachi Srivastava, "Low-fee private schooling: Issues and evidence" in P.Srivastava (ed.), *Low-fee private schooling: Aggravating equity or mediating disadvantage?* 7-36 (Oxford, Symposium Books, 2013).
5. Rajashri Chakrabarti and Paul E. Peterson (eds.), *School Choice International: Exploring Public-Private Partnerships* (MIT Press, Cambridge MA, 2008)
6. Stephen Codrington, *Optimal School Governance: A Handbook for School Boards and Heads Who Value Effective Governance* (Optimal School, 2008).
7. V. N. Shukla, *Constitution of India* (13th edn., Eastern Book Company, 2017).

Reports

1. Animesh Kumar, "Nagaland State Regulatory Profile: A Look at the Education Sector" (Centre for Civil Society, New Delhi, 2025), available at: <https://ccs.in/state-regulatory-profile-nagaland>
2. Central Square Foundation, "State of the Sector Report on Private Schools in India" 41 (2020), available at: <https://www.centralsquarefoundation.org/State-of-the-Sector-Report-on-Private-Schools-in-India.pdf>.
3. Centre for Civil Society, "Ease of Operating Budget Private Schools in India", available at: https://ccs.in/sites/default/files/2022-11/key_findings_ease_of_operating_budget_private_schools_compressed.pdf
4. Centre for Civil Society, *Schooled by the State: People's Dive into Education Financing in India* (Centre for Civil Society 2023).
5. Ministry of Education, Government of India. (2025). UDISE+ 2024-25 Report. Department of School Education and Literacy, available at: <https://udiseplus.gov.in>
6. National Statistical Office, Ministry of Statistics and Programme Implementation, Government of India, "Youth in India", 79 (New Delhi, 2022), available at: https://www.mospi.gov.in/sites/default/files/publication_reports/Youth_in_India_2022/Youth_in_India_2022.pdf.
7. OECD, *Education Policy Outlook 2015: Making Reforms Happen*, OECD Publishing, Paris, 2015
8. OECD, *School Leadership for Learning*, 2013
9. Prashant Narang & Tarini Sudhakar, "Ease of operations for budget private schools in India", (UNESCO, UNESDOC Digital Library, 2022), available at: <https://unesdoc.unesco.org/ark:/48223/pf0000383514>
10. Shaivy Maheshwari, "Bihar State Regulatory Profile: A Look at the Education Sector 2026" (Centre for Civil Society, New Delhi, 2026), available at: <https://ccs.in/state-regulatory-profile-bihar>

Journal Articles/Working Papers

1. Abhinandan Kulal et.al. "Evaluating the Promise and Pitfalls of India's National Education Policy 2020: Insights from the Perspectives of Students, Teachers, and Experts" 14 (4) Sage Open (2024), available at: <https://doi.org/10.1177/21582440241279367>
2. Animesh Kumar, "Evolution of Right to Education in India" 2 (1) Law and Society: A New Challenge 27 (2015).
3. Animesh Kumar, "Right to Education in India: The Role of Judiciary", 4 (2) Indian Journal of Social and Legal Studies 39 (2015).
4. Anuradha De, Manabi Majumdar, Meera Samson & Claire Noronha, "Private Schools and Universal Elementary Education" in R Govinda (ed.), India Education Report, 131 (Oxford, 2002).
5. Ashokkumar Thanganadar et.al., "Analyzing the impact of the new educational policy 2020: A comprehensive review of India's educational reforms", 108 Evaluation and Program Planning 2025, available at: <https://doi.org/10.1016/j.evalprogplan.2024.102515>
6. Aurelia Colombi Ciacchi & Dietmar von der Pfordten, "Exploring the relationship between law and governance: a proposal", 11 (2) The Theory and Practice of Legislation 151-167 (2023); available at: <https://doi.org/10.1080/20508840.2023.2215657>
7. Della Raju, "Private Schooling in India: What Really Matters", 10 (2) International Journal of Research and Analytical Reviews 149 (2023), available at: <https://ijrar.org/papers/IJRAR23B4169.pdf>
8. Dr. Randhir Kumar, "The Impact of Government Policies on Education in Bihar", 7 (3) International Journal of Research and Analytical Reviews (2020).
9. Geeta Gandhi Kingdon, "The private schooling phenomenon in India: A review", 56 (10) The Journal of Development Studies 1795-1817 (2020), available at: <https://doi.org/10.1080/00220388.2020.1715943> (last visited on: 20.03.2026).
10. Geeta Gandhi Kingdon, "The progress of school education in India", 23 (2) Oxford Review of Economic Policy 168-195 (2007), available at: <https://doi.org/10.1093/oxrep/grm015>
11. Joanna Harna, "Low-cost private schooling in India: Is it pro poor and equitable?" 31 (4) International Journal of Educational Development, 350-356 (2011), available at: <https://doi.org/10.1016/J.IJEDUDEV.2011.01.003>
12. Jyoti Rana, "Unequal Schooling in India: Multilayered Hierarchies of Access", LX (34) Economic and Political Weekly 23 (2025). See, Constitution of India, art. 45.
13. Marine de Talancé, "Private and Public Education: Do Parents Care About School Quality?" Annals of Economics and Statistics, No. 137 117-44 (2020) available at: <https://doi.org/10.15609/annaeconstat2009.137.0117>
14. Mayuri Gupta, "NEP from the Prism of Primary Education" News Times 22 Aug.-06 Sept. 2020.
15. Navyanandana Singh, "Measuring Governance: Why, How, and What Happens Next for Indian States?" Rajiv Gandhi Institute For Contemporary Studies 25.06.2025; available at: <https://www.rgics.org/governance/measuring-governance-why-how-and-what-happens-next-for-indian-states/>
16. Renu Singh & Colin Bangay, "Low fee private schooling in India - More questions than answers? Observations from the Young Lives longitudinal research in Andhra Pradesh", 39 International Journal of Educational Development 132-140 (2014), available at: <https://doi.org/10.1016/j.ijedudev.2014.08.004>
17. Shaivy Maheshwari, Anish Kumar, et.al., For-Profit Schooling in India: Law, Limits, and Loopholes, Working Paper No. 345, Centre for Civil Society (2026), available at: <https://ccs.in/sites/default/files/2026-05/For-Profit%20Schooling%20in%20India-%20Law%2C%20Limits%2C%20and%20Loopholes%20.pdf>
18. Shivangi Vashishta "Critically examining the consequences of phasing out of Rule 134A of Haryana school education rules in the light of the Right to Education Act, 2009", 3 (1) Jus Corpus Law Journal 628 (2022).
19. Tamo Chattopadhyay & Maya Roy, "Low-Fee Private Schools in India: The Emerging Fault Lines", Working Paper 233 National Center for the Study of Privatization in Education

Teachers College, Columbia University, available at: <https://ncspe.tc.columbia.edu/working-papers/files/WP233.pdf>

Other Online Sources

1. Aaditya Tiwari, “Measuring Education Performance in India and Suggestions for Improvement” India Foundation, Articles and Commentaries 02.09.2024; available at: <https://indiafoundation.in/articles-and-commentaries/measuring-education-performance-in-india-and-suggestions-for-improvement/>
2. Arun C Mehta, “Public vs. Private: Understanding the Shifting Landscape of Indian Education (2024)” available at: <https://educationforallinindia.com/public-vs-private-understanding-the-shifting-landscape-of-indian-education-2024/>
3. Arun C Mehta, “School Education in India: Where Do We Stand? Analysis based on UDISE Plus 2023-24 Data” available at: <https://educationforallinindia.com/wp-content/uploads/2025/02/School-Education-in-India-where-do-we-stand-2023-24.pdf>
4. Edu Masters, “Indian Education System: An Overview”, available at: <https://www.edumasters.in/blog/indian-education-system.html>
5. Garima Singh, “Bad Governance and Education in Bihar”, Institute of Peace and Conflict Studies, available at: https://www.ipcs.org/comm_select.php?articleNo=907
6. Geeta Gandhi Kingdon, “Discussion Paper Series: The Private Schooling Phenomenon in India: A Review”, available at: <https://ssrn.com/abstract=2940602>
7. John Stuart Mill, On Liberty, 219 (The Project Gutenberg, 2011), available at: <https://gutenberg.org/files/34901/34901-h/34901-h.htm>
8. Mayuri Gupta, “Right to Education is non-negotiable. It Shouldn’t depend on Centre-State relations”, The Indian Express, June 19, 2025, available at: <https://indianexpress.com/article/opinion/columns/right-to-education-central-funds-tamil-nadu-supreme-court-10075531/>
9. Md. Ashikuzzaman, “The Fundamental Purpose of Education in Society”, LIS Education Network Library & Information Science Academic Blog, available at: <https://www.lisedunetwork.com/the-fundamental-purpose-of-education-in-society/>
10. Ministry of Education, “Providing education to all children” available at: <https://www.pib.gov.in/PressReleasePage.aspx?PRID=1784244®=48&lang=2>
11. Ministry of Education, Providing Education to All Children, available at: <https://www.pib.gov.in/PressReleasePage.aspx?PRID=1784244®=48&lang=2>
12. Ministry of Human Resource Development, “Education in Tenth Plan” available at: <https://www.pib.gov.in/newsite/erecontent.aspx?relid=21996®=48&lang=2>
13. Ministry of Human Resource Development, Education in the Tenth Plan, available at: <https://www.pib.gov.in/newsite/erecontent.aspx?relid=21996®=48&lang=2>
14. NITI Aayog, SDG India Index and Dashboard 2023-24, available at: <https://www.niti.gov.in>
15. Organisation for Economic Co-operation and Development (OECD), OECD Regulatory Policy Outlook 2021 (OECD Publishing, 2021), available at: <https://www.oecd.org/gov/regulatory-policy/oecd-regulatory-policy-outlook-2021-38b0fdb1-en.htm>
16. Organisation for Economic Co-operation and Development (OECD), OECD Regulatory Policy Outlook 2021 (OECD Publishing, 2021), available at: <https://www.oecd.org/gov/regulatory-policy/oecd-regulatory-policy-outlook-2021-38b0fdb1-en.htm>
17. Organisation for Economic Co-operation and Development (OECD), Regulatory Compliance Cost Assessment Guidance (OECD Publishing, 2014), available at: <https://doi.org/10.1787/9789264209657-en>
18. PARAKH (NCERT), Guidelines for the Establishment and Functioning of State School Standards Authorities (SSSAs), Ministry of Education, Government of India, available at: https://parakh.ncert.gov.in/sites/default/files/ssa/report-files-pdf/SSSA_Guidelines.pdf

19. Pritchett Lant, *The Rebirth of Education: Schooling Ain't Learning* (Brookings Institution Press, 2013) available at: <http://www.jstor.org/stable/10.7864/j.ctt1gpccb8>
20. Staff Reporter, "Assam's education crisis: 2295 schools managed by single teacher", *The Assam Tribune*, 21.02.2025, available at: <https://assamtribune.com/assam/assams-education-crisis-2295-schools-managed-by-single-teacher-1568871#:~:text=Guwahati%2C%20Feb%2021%3A%20Assam%20currently%20has%20three%20government,headmaster%2C%20raising%20serious%20concerns%20about%20their%20administrative%20efficiency.>
21. Teachers Institute, "Key Factors Influencing the Effectiveness of Educational Institutions" available at: <https://teachers.institute/operational-dimensions-education/key-factors-educational-effectiveness/>
22. UNESCO, "What you need to know about education and why it matters", available at: <https://www.unesco.org/en/articles/what-you-need-know-about-education-and-why-it-matters>
23. United Nations Children's Fund (UNICEF), *Convention on the Rights of the Child: Convention Text*, available at: <https://www.unicef.org/child-rights-convention/convention-text>
24. United Nations Treaty Collection, *Convention on the Rights of the Child-Status of Ratifications*, available at: <https://treaties.un.org/>
25. World Bank, *Business Ready (B-READY) Methodology Handbook* (World Bank Group, 2023), available at: <https://www.worldbank.org/en/businessready>
26. World Bank, *Business Ready (B-READY) Methodology Handbook* (World Bank Group, 2023), available at: <https://www.worldbank.org/en/businessready>
27. World Bank, *GovTech Maturity Index 2022: Trends in Public Sector Digital Transformation*, Washington DC, 2022.
28. World Bank, *World Development Report 2017: Governance and the Law* (World Bank Group, 2017), available at: <https://www.worldbank.org/en/publication/wdr2017>

Annexure 1

Definitions of Indicators

DOMAIN 1 – Regulatory Clarity, Predictability & Accessibility (2 Indicators, 41 sub-indicators)

Indicator 1: Regulatory Transparency – This indicator assesses the accessibility of regulatory information relevant to school. It examines the availability of laws, manuals, circulars, guidance documents, and digital support systems through official State Education Department websites and portals.

Indicator 2: Procedural Predictability – This indicator evaluates if schools are able to anticipate administrative decision-making with certainty. Accordingly, it maps clarity of timelines, approving authorities, and codification of administrative procedures.

DOMAIN 2 – Regulatory Compliance (7 Indicators, 27 sub-indicators)

Indicator 1: Compliances during school establishment – This indicator covers procedural and financial requirements for obtaining permission to establish schools. It includes certifications, fees, deposits and other compliance-related conditions during the stage of opening schools.

Indicator 2: Infrastructure norms for school recognition – This indicator broadly covers all infrastructure related requirements mandated by the laws for getting the schools recognized by the state governments. It includes compliances like facilities provided, classroom sizes, and nature of land, etc.

Indicator 3: Procedure for Fee Hike – This indicator covers different steps and documentary requirements imposed on schools for seeking approval for fee hikes.

Indicator 4: Staffing requirements – This indicator assesses the staffing requirements, particularly the prescribed teacher-student ratios. It examines the extent to which staffing standards are fixed through the legal norms.

Indicator 5: Financial Reporting – This indicator evaluates accounting and financial disclosure-related obligations imposed on schools. It also assesses the frequency of such reporting and the consequences for non-compliance with these requirements.

Indicator 6: Affiliation related requirements – This indicator covers certifications relevant for obtaining affiliation from state boards of education.

Indicator 7: Capital requirements for recognition – This indicator measures the financial prerequisites imposed on schools as part of the recognition process. The sub-indicators assess capital adequacy and deposit related requirements during this stage.

DOMAIN 3 – Operations without Arbitrary Regulatory Action (4 indicators, 52 sub-indicators)

Indicator 1: Inspections – This indicator evaluates school inspection procedures on the basis of their safeguards and objectivity. In doing so, it highlights the scope of discretionary risk, along with the availability of procedural protections and appellate mechanisms for schools.

Indicator 2: Withdrawal of Affiliation – This indicator analyses procedural protections available in cases where the state boards withdraw their affiliation granted to schools.

Indicator 3: Withdrawal of approvals and takeover powers – This indicator evaluates the procedural protections available during the withdrawal of approvals such as permission to establish and school recognition, as well as during the takeover of school management or property. It also examines the availability of appellate mechanisms for schools in such cases.

Indicator 4: Parent Grievance Redressal – This indicator evaluates the procedural safeguards available to

schools in fee-related complaints raised by parents. It examines the availability of hearing opportunities, penalties, and appellate mechanisms in such proceedings.

DOMAIN 4 – Financial Sustainability & Resource Mobilization (3 indicators, 18 sub-indicators)

Indicator 1: Fee Collection and Utilization of Funds – This indicator assesses regulatory controls over fee structures. It also examines limitations on the use of school revenues and savings by schools.

Indicator 2: Mechanism for fee approvals – This indicator covers processes and approvals involved for fee fixation and its revision. It determines the extent of regulatory oversight in fee-related decision-making and procedural safeguards available in these approval processes.

Indicator 3: Regulations on capitation fee – This indicator assesses the extent to which the legal framework restricts or permits the charging of capitation fees by schools. It examines prohibitions, exceptions, and penalties relating to the charging of capitation fees under the applicable legal framework.

DOMAIN 5: School Lifecycle Operations (5 Indicators, 16 sub-indicators)

Indicator 1: School Establishment Requirements – This indicator covers steps involved for obtaining a permission to establish schools and the scope of power available with authorities to withdraw such permission.

Indicator 2: School Operation and Expansion Requirements – This indicator broadly covers permissions required for school operations and upgradation, which includes approvals and state government recognition.

Indicator 3: Board Affiliation – The indicator covers procedures for obtaining and retaining board affiliation. This includes norms for inspections, and consequences arising from violation of affiliation norms.

Indicator 4: Voluntary Exit – This indicator assesses if permissions are required if the school wishes to voluntarily close itself, and punishments for violating such norms.

Indicator 5: Forced Exit – This indicator assesses the conditions under which the government has powers to close down a school or take over its property.

DOMAIN 6: Institutional Autonomy (2 Indicators, 10 sub-indicators)

Indicator 1: Payment of Staff Salaries – This indicator analyses the extent schools have power to fix staff salaries.

Indicator 2: Self Governance – This indicator covers the regulatory requirements governing constitution, composition, functioning, and reconstitution of School Management Committees (SMCs). It also examines if the authorities have power to take actions against the SMC.

Annexure 2

The primary data of this research can be accessed on the EoOS website.



Scan this QR to access the website.

Authors' Bio

Dr Animesh Kumar

Dr Animesh Kumar is a Senior Legal Researcher at CCS. As an advocate, he has argued various matters related to civil and criminal disputes at various judicial forums across India. His doctoral research investigated Women's political participation in the PRIs in the State of Bihar. He has published various articles on education. His specialisation includes constitutional law, with a research focus on women's political participation. At the Centre for Civil Society, he has authored the Nagaland State Regulatory Profile which maps the laws governing K-12 education system in the State and reviewed multiple working papers dealing with school education.

Animesh is the recipient of the Best Paper Presentation Award 2024 at ICRE 2.0 at Nirma University, Gujarat (India). He has served as Co-Chair for numerous technical sessions at national and international seminars and conferences. He has also edited three scholarly volumes titled Decentralization in India, Alternative Dispute Resolution in India, and Law & Social Change. Additionally, Animesh is associated with various international & national journals as an editor and advisory editorial board member. He is the Editor-in-Chief of a peer-reviewed journal, Lex Revolution, ISSN 2394-997X (Print), 3107-282X (Online).

Shaivy Maheshwari

Shaivy Maheshwari is an Advocate enrolled with the Bar Council of Delhi. She has pursued her LLM in International Trade and Business Laws from NALSAR, Hyderabad and BALLB(H) from Symbiosis Law School, Noida. At the Centre for Civil Society, Shaivy has authored Bihar State Regulatory Profile, which maps laws, institutions, and education governance in Bihar; and co-authored a working paper on "For-profit Schooling in India Law, Limits, and Loopholes." Having previously worked at CCS, Shaivy brings experience in the areas of public governance, education, and livelihood. Alongside trade and competition law, she brings legal expertise particularly in the domain of Constitutional Law and Administrative Law. Prior to joining CCS, she has interned with various think tanks and research organizations such as NITI Aayog, Quality Council of India, Centre for Policy Research (CPR), CSEP, and Centre for Child and Law, National Law School of India University, Bangalore.

Nitesh Anand

Nitesh Anand is Associate Director, Policy Research & Training at the Centre for Civil Society (CCS) and Advisor to the Department of Policy, Ministry of Education, Youth and Sport, Cambodia. A Friedrich-Naumann-Stiftung Scholar, India Fellow, and graduate of the Technical University of Munich, Nitesh works on education, governance, and regulatory reform across Asia, leading research, policy engagement, and capacity-building initiatives with governments, think tanks, academic institutions, and civil society organizations.

Current work explores liberalising educational governance, institutional innovation, regulatory modernization, legal design, and participatory governance. Guided by a commitment to individual freedom and effective public institutions, this work seeks to create enabling environments that expand opportunity, strengthen accountability, and foster human flourishing.

Disclaimer

All measures have been undertaken to guarantee the precision, thoroughness, and impartiality of the Ease of Operating Schools Index 2026. The findings are derived from a comprehensive analysis of applicable legal and regulatory frameworks which are publicly accessible as of December 2025. The assessment primarily adopts a de jure perspective, encapsulating the authors' interpretation and evaluation of the legal and regulatory provisions applicable during the study period.

Considering the intricate nature of regulatory frameworks and the potential for varied interpretations of legal provisions, it is plausible that readers may reach conclusions that diverge from those articulated in this report. The scores, rankings, and observations should be regarded as indicative and are intended to promote informed discourse regarding regulatory governance of school education.

The Authors and the Centre for Civil Society do not guarantee that the report is devoid of errors or omissions and shall not be liable for any loss, damage, liability, or consequences that may arise from the use of, or reliance on, the findings, analysis, rankings, or opinions presented in this report.



A-69, Hauz Khas, New Delhi - 110016
Email: research@ccs.in | Website: www.ccs.in | www.studentfirst.in